SOCIETY

The pageant of Parliament, vol. 2 of 2

Michael MacDonagh

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[Illustration: THE THRONE AND WOOLSACK IN HOUSE OF LORDS.

(From Sir Benjamin Stone’s pictures, British Museum.)]

THE PAGEANT OF PARLIAMENT

BY

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VOL. II

T. FISHER UNWIN LTD LONDON: ADELPHI TERRACE

First published in 1921

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CHAPTER I

THE BIG DEBATE AND THE DIVISION

1

The varying aspects of a debate in the House of Commons are surprising. During one speech the benches are crowded. During the next there is but a Member here and there amid the desert of green morocco. All the time Members are restlessly moving in and out of the Chamber. Indeed, the general inattention to ordinary speakers is very marked. The doors of the main entrance under the clock swing open and a Member, hat in hand, enters and stands at the Bar. One sentence of the speech that is being delivered suffices. Out he rushes again. Here and there on the benches a Member sits apart in a half-dreamy state, his arms folded, his hat over his eyes, engrossed in his own thoughts. A good deal of babble is heard in the course of the debate. But it is not the babble of argument and contention. It is the babble of Members chatting and joking with each other, heedless of the honourable gentleman who is wrestling with his arguments, and to whom only Mr. Speaker is attentive. A loud laugh is heard. Nothing could be more serious than the speech which is being

addressed to the House. What then is the cause of this misplaced gaiety? A good story is being told in that group of Members yonder making merry among themselves. Still, a few Members listen, but half abstractedly and with expressionless faces. There are some, however, whose attention is eagerly concentrated on the man who is continuing the debate. Yet they, too, seem to hear, but not to heed. Not a gleam of sympathy is to be seen in their looks. Who are they? They are those Members who are all on an edge to join in the debate. Some of them divide their feverish attention between the talker, the clock, and their notes. Others are mumbling to themselves the favourite passages of their own intended speeches. But will the opportunity of delivering these speeches come to them? Time is flying for these Members, impatiently on the pounce.

The hon. gentleman on his legs has long ago said all he really had to say. “Why the blank does he not sit down?” the others ask themselves, and they look at him ferociously. He is in that curious predicament of the unpractised and self-conscious speaker that he does not know how to stop. So he continues his harangue, not that he has anything more to say, but that it seems easier to go on talking to Mr. Speaker than to finish and sit down. Mr. Speaker, certainly, is listening amiably, politely, but scarcely sympathetically. The arguments seem to bring no conviction to Mr. Speaker. Across the face of Mr. Speaker no smile flickers at the jokes. Mr. Speaker follows the remarks of the hon. Member solely to see that he does not offend against the rules. It must be a trying ordeal addressing the House of Commons, that most fastidious or inattentive of audiences, and not the least of its terrors are the sleepless eyes and the vigilant ears of the ever watchful Mr. Speaker. Still, the fate of those to whom was given the chance of taking part in the debate might have been worse. At any rate, they have had the relief and the satisfaction of self-expression. The debate might have closed, and left them, like the unsuccessful competitors for the Speaker’s eye, with carefully prepared unspoken speeches lying oppressively on their minds.

Old as the House of Commons is, there is always a great deal of the unmitigated Boy--with a big B--in its composition. A good joke never fails of a hearty laugh. Humour, especially with an element of a practical joke in it, is highly appreciated. Frivolity often follows fast on an exhibition of emotion. A terrific cry is suddenly raised. “Order, order, order!” Both sides unite in giving vociferous voice to their indignation. Visitors in the gallery stand up with a common impulse, and unheeding the deprecatory hands of the attendants, crane their necks to discover what is taking place on the floor. Surely something affrighting has occurred? Has Black Rod led a hostile excursion of backwoodsmen from the House of Lords? Has some Member seized the Mace and with it shivered the Party system into smithereens? The strangers look at each other questioningly, but in vain. The gallery is an unsatisfactory place for following the incidents of a sitting.

But really all that has happened was that an absent-minded Member, or one new to parliamentary manners, entering the Chamber and walking to his place passed between the Member speaking and the Chair. This breach of etiquette is always resented in the most indignant of exclamations. And the puzzled look of the offender--“What the dickens have I done?”--is not the least delicious part of the sport.

Perhaps soon again strangers are startled by another outburst. This time the uproar is hilariously approving, rather than angrily condemning. Was it aroused by some wise and lofty saying of philosophy, or else some passage of exquisite wit? It was neither. The prosy Member who had been addressing the House was incapable of saying a good thing. But he finished by doing a silly one. He sat down upon his hat. Such are the innocent diversions of the House of Commons. Yet it is quickly sensitive to the deepest seriousness and the highest sweeps of emotion.

In its way a debate in the House of Commons is a very odd proceeding. What is its chief aim and end? Ostensibly, it is to persuade and convert. But it rarely ever does so. It usually confirms each side in their views. One hears of the triumphs of parliamentary oratory. Speeches, regarded as intellectual efforts, are often very wonderful. And often they are but vapour and wind. The orator is inspired only to those whose principles his eloquence upholds. The believers on the benches behind him are moved and kindled by his words and more than ever convinced--if he be a leader--that they are following a guide whom they can implicitly trust. But no light of the faith which illumes his periods goes out to the unregenerate who sit opposite in darkness. By the lure of his eloquence not one of his opponents is entrapped. They may see beauty in his passages, but not conviction. In minor matters minds are shaken and votes influenced by discussion; but rarely, if ever, is it so in great affairs about which opinion on both sides has hardened to conviction. In the course of a Parliament a waverer or two may cross the floor, but it is true generally to say that political opinions are so stoutly built on the foundations of conviction or Party allegiance, that whatever they may be--Conservative or Liberal, Collectivist or Individualist, Unionist or Home Rule--they stand four-square to all the winds of argument that blow in the House of Commons. The real purpose of a great speech, therefore, is not so much to persuade the other side, as to justify a certain political faith to those who profess it, and feed their political courage by resounding words of conviction.

It is true that a Government is often deterred from taking a particular course for fear of the Opposition. It is also true that if the Government do take that particular line of action they are often compelled, or induced, to modify it by criticism in the House of Commons. But the chief purpose of oratory as displayed in a big debate is to revivify the faith of supporters and, perhaps, with luck and grace, make a convert or two. Above all, its object is to influence opinion in the country. “Mr. Speaker, sir,” says every Member who rises in the Council of the Nation to give expression to his views. Many of them might more appropriately begin, “Gentlemen of the Press Gallery,” for to reach the country they must first convince the reporters that what they say is worthy of publication.

2

The Speaker has no power to gag a tiresome talker. All he can do is to call a Member to order for irrelevance or repetition, and on the third unheeded warning to direct him to discontinue his speech. The House, however, shows its resentment of the impertinences or inanities of a talker by cries and exclamations. A Member who was once subjected to much interruption appealed to Mr. Speaker Spencer Compton

for protection, saying that he had a right to be heard. “No, sir,” replied the Speaker, “you have a right to speak, but the House has a right to judge whether they will hear you.” A far finer thing was said by Mr. Speaker Lowther in 1906 in vindication of the order and decorum of debate. There had been unmannerly interruptions by some new Members who had not time to become acquainted with the traditional courtesies of the House. “One of the great boasts of this House,” said the Speaker, in a dignified reprimand of the disorder, “is that we listen to the speeches and reply afterwards.”

Nevertheless, Members have considerable licence in the expression of dissent from the views that are being laid before them, or of their desire to bring an irritating or superfluous speech to a speedy conclusion, by cries, “No, no!” or “’Vide, ’vide!” without fear of censure from the Chair. But these interruptions are to some men only an incentive to extend their unappreciated remarks. “If you don’t allow me to finish my speech in my own way I’ll not leave off at all,” said one Member who was regarded as a bore. The threat had the desired effect. “I am speaking to posterity,” said another Member grandiloquently, in reply to his interruptors. “Faith, if you go on at this rate,” remarked a voice from the Irish quarter, “you will see your audience before you.” “Sir,” retorted the talker, “I can afford to wait.”

It was not until 1882 that the Government was armed with powers to close a debate which, in their opinion, was being deliberately prolonged for the purpose of embarrassing them by delaying the progress of business. Previously to 1882 discussion was guided and controlled not so much by written regulations as by customs and understandings that for generations had been universally observed. “Obstruction” was brought into use by Joseph Gilles Biggar and Charles Stewart Parnell in the late ’seventies of the nineteenth century, and the extent to which it was employed by the Nationalists in the early ’eighties, with the avowed object of dislocating the parliamentary machine, until their objects were conceded, showed that if the opportunities for its abuse were not restricted the progress of business might be long delayed. Accordingly, Gladstone carried a closure resolution on November 11, 1882, in an autumn session held specially for the purpose of considering it. It gave power to the Speaker, or the Chairman of Committees, when it appeared to him that “the evident sense of the House” was in favour of an immediate division, so to inform the House, or Committee, and, on a motion being made, to put the question under discussion forthwith. Henry Bouverie Brand was Speaker at the time. Early in the preceding year, at nine o’clock on the morning of Wednesday, February 2, 1881--an historic date in the annals of Parliament--he had terminated a sitting which lasted forty-two hours, or from the preceding Monday at four o’clock, debating Forster’s motion for leave to introduce a Bill for the Better Protection of Person and Property in Ireland, by refusing to call upon any more of the Nationalist Members who still desired to speak, and thereupon peremptorily putting the question. This was, admittedly, unprecedented. There was no rule, written or unwritten, to justify it. But that it was in accordance with “the evident sense of the House” was indisputable. The new Standing Order was, therefore, passed to bring to an end such a situation, should it again arise. Mr. Brand, however, never had occasion to apply it. The closure was used for the first time on February 28, 1885, close on two and a half years after it had become a rule of the House, by Mr. Speaker

Peel and against the Nationalist Members. In the division on the motion “that the question be now put” the ayes were 207, and the noes 46. The Standing Order provides that the closure must be supported by more than 200 Members, if the minority is over 40, or by 100 Members if the minority is under 40. If the majority had been seven votes less this invocation of the closure by the Speaker would accordingly have been ineffectual. Thus Mr. Peel narrowly escaped a serious rebuff, which would certainly have impaired his authority and might have led to his resignation. It was unlikely that any Speaker would ever again put his position to this hazard. Moreover, the application of the closure, on the sole initiative of the Speaker, must have tended to disturb the good relations between Members and the Chair. A wise move it was, therefore, on the part of the Conservative Administration in 1887 to relieve the Speaker of this invidious responsibility by giving power to any Member--private or official--to try to bring obstructive discussion to an end by moving the closure, leaving, however, to the Speaker the discretion of putting, or refusing to put, the motion to the House. The Speaker is empowered by the Standing Order to refuse the closure should it appear to him to be an abuse of the rules of the House, or an infringement of the rights of the minority.

3

The benches, empty for the most part during the dinner period, fill up again about ten o’clock for the two concluding speeches of the debate--the final attack by the leader of the Opposition, and the defence by the spokesman of the Government. It is then that the Chamber, full of warmth and glow and animation, looks its very best. The ceiling is of glass of the hue of the primrose, divided by carved oaken ribs into panels with delicate floral decorations, through which the electric lights on the outer side send a flood of light that fills the Chamber with radiance, soft and mellow. The lights also bring out the fine carving of the oak wainscot of the Chamber, and the emblazoned panels with the coats-of-arms of the Sovereigns from William the Conqueror to Victoria, which decorate the railings of the side galleries. It is on such an occasion, too, that the debating advantages of a small Chamber are seen and appreciated. The House is crowded. Every Member present may not be comfortably seated, but all can command a complete view of the scene and hear the speeches distinctly. There are no dim distances. This tends to make the debate a more real and earnest thing. The audience can give full play to their feelings. The House occasionally is moved by great excitement. Tempestuous cheers are answered by cries of defiance or mockery. Statements and denials, charges and recriminations are bandied about. Then is also seen the rhetorical aid to invective afforded by the separation of the rival political parties on two sides of the Chamber with only a narrow floor between. The opponents gaze at each other straight in the face. They see each other’s flaming eyes, or curling lips, their merry looks or dour. In moments of passion they add fuel to each other’s wrath. Moreover, with the enemy straight before him, the orator can point at them the finger of scorn. This was a favourite gesture of Gladstone as I remember him during his passionate speeches. Flinging himself almost halfway across the Table, and shooting out his right arm, he would transfix with his extended forefinger the occupants of the Front Bench opposite, his face ablaze with indignation and infinite disdain in his voice, while they--alas, for the

splendid futility of parliamentary oratory!--more often than not beamed with satisfaction that they should be thought worthy of the great orator's rhetorical exasperation. And that reminds me of another characteristic of the House. When a good speech is made all sides are delighted, for it is the common desire of all sides to uphold the debating reputation of the Assembly.

But the last word has been said. The great debate is closed. Then it comes home to you that what consumes the energies of the House of Commons is--talk. At first it seems a startling discovery--talk, and not work. But you quickly remember--or ought to--that you are in a deliberative and debating Chamber which works, and can only work, through talk. There may be much trivial and pointless talk, but the fact remains that the House of Commons can by talk only discharge its functions--to investigate and legislate. The division which follows is sometimes the most dramatic episode of the night. There is no summing-up of the rival cases. The clash of so many conflicting arguments must be most distracting to anyone who desires to come to a calm and unprejudiced conclusion. Would it not be well, then, if the Speaker--the only Member of the House who hears the entire discussion, who is raised above personal likings, above party interests and passions, above class animosities--were to endeavour, at the close of the debate, with the cold neutrality of the impartial judge, to make straight the confusing entanglement of thought, to weigh nicely the many antagonistic opinions, to estimate in its true proportions and according to its proper value the issue at stake for the guidance of the whole House? Fantastic thought! Nothing of the nature of a judicial element can be introduced into the Legislative Chamber of the nation. No representative of the people desires to be helped to a disinterested judgment in the division lobbies. The triumph of Party is the chief consideration. Besides, the art of the Speakership is not concerned with sagacious and logical conclusions. It is not concerned even with the passing of sound legislation. The art of the Speakership lies solely in the preservation of order and the regularity of the proceedings.

4

Therefore, when the debate has concluded, Mr. Speaker rises in his Chair, and simply puts the question, "That this Bill be now read the third time. As many as are of that opinion will say 'Aye.'" A shout of "Aye" arises from the Government benches. "The contrary, 'No,'" continues Mr. Speaker, and a volley of "Noes" comes in response from the Opposition. "I think the 'Ayes' have it," says Mr. Speaker. Quite properly, he always decides in favour of the side supported by the Government, unless the motion be of a non-party character, when he is guided by the volume of sound from the "Ayes" and the "Noes." In most cases, however, the decision of the Speaker is not accepted. The Opposition again roar out, "The 'Noes' have it," but the Speaker does not mind the contradiction apparently flung in his teeth, for it is thus that a division is challenged.

The Speaker then gives the order, "Clear the Lobby," and at the same moment the electric bells in every corridor and in every room of the Palace of Westminster ring out a summons to Members to hurry to the Chamber for the division. The policemen who are on duty in the lobbies and corridors also shout "division!" with all the

strength of their lungs, and so, amid the clanging of the bells, cries of “division” answer other cries of “division” in every part of the Palace. This ringing and shouting continues for two minutes, during which Members come rushing in from dining-rooms, library, and smoking-rooms. Formerly, when the two minutes had passed, the Speaker made a sign to the Serjeant-at-Arms, and the doors of the Chamber were locked, until the division was concluded. Every Member present had to vote. Visitors in the Distinguished Strangers’ Gallery, or peers in the Lords’ Gallery--whose way out lay through the lobbies--could not leave until the division was over, and the doors were again unlocked. Gladstone has an interesting note in his _Diary_ about the visit of the Shah of Persia to the House of Commons, on July 1, 1873, which is worth repeating, as the procedure to which it refers has long since come to an end. “A division on a trifling matter of adjournment took place during his Majesty’s presence, in which he manifested an intelligent interest. The circumstance of his presence at the time is singular in this view (and of this he was informed, rather to his amusement) that until the division is over he could not be released from the walls of the House. It is probably, or possibly, the first time for more than 500 years that a Sovereign has been under personal restraint of any kind in England.” Under the present system of taking divisions, which was invented by Mr. Harcourt (afterwards Lord Harcourt), First Commissioner of Works in 1906, the doors of the Chamber are not locked during the counting of the votes. A Member who does not desire to vote need not leave the Chamber, when the division is challenged, and access to and from the galleries remains open.

At the end of the two minutes’ interval the Speaker puts the question a second time in the same form. The declaration of the Speaker, “I think the ‘Ayes’ have it,” is answered again by a shout from the Opposition benches, “The ‘Noes’ have it.” The die is now cast. The division lobbies must decide the issue. The Speaker accordingly adds, “‘Ayes’ to the right and ‘Noes’ to the left,” and names the two chief Government Whips as the tellers for the former, and the Whips of the Opposition as the tellers for the latter.

This stage sometimes affords an illustration of one of the oddest peculiarities of the House of Commons. A Member speaking must, of course, stand uncovered. Yet there is a time when a Member can only address the Chair wearing a hat and sitting in his place. That is when a division is being taken and there is a point of order to be raised. In such circumstances a Member is condemned to silence, unless he has his own hat to put on, or can borrow another’s for the purpose. Members generally are unacquainted with the origin and purpose of this extraordinary custom. It may interest them to be told that it is very ancient, and that it came into being so as to enable the Member desirous of raising a point of order to attract the attention of the Speaker, or Chairman of Committees, by keeping his seat and wearing his hat, while the general body of Members, on their feet and uncovered, are moving into the division lobbies.

The incident is always provocative of laughter. It almost invariably happens, in the case of a Member who has left his own hat in the cloak-room, that the borrowed hat is either too large, and comes down to his nose, or too small, and covers only the top of

his head, with the result that he has to support it with both hands while he makes his point of order. I have witnessed some ludicrous scenes, especially during late sittings in Committee on a Bill that is strongly opposed, when the proceedings in the small hours have a tendency to become quite hilarious. Members, who had neither their own hats at hand, and failed to induce others to lend theirs, sought to comply with the rule that they must be “covered,” while they said what they wanted to say, by putting on cocked hats made out of the “Orders of the Day.” So do the sports of children satisfy, at times, the Fathers of the Nation.

5

The Members then pour into the division lobbies, which are two wide corridors on each side of the Chamber. The supporters of the “Ayes” come up the House and enter their lobby by the door behind the Speaker’s Chair; the “Noes” go down the House and pass into their lobby by the door under the clock. In each lobby clerks sit at a desk, provided with alphabetically arranged lists of Members. At one side of the desk there is a large card marked “A to M,” and on the other side of the desk another card marked “N to Z.” The Members pass this desk in single file--each on the proper side, according to his initial letter--giving their names to the clerks, who tick them off on the printed list. In this way a record of the Members who take part in each division is obtained. As the Members pass out of the division lobbies they are counted by two tellers, one representing the Government and the other the Opposition, and each acting as a check on the other in the reckoning.

Lecky, the historian, says that Edmund Burke was perhaps the first statesman who urged that lists of voters in every important division should be published, in order that the people might be able to judge the conduct of their representatives. But Burke’s proposal met with general disfavour, as an interference with the independence of Members. Thomas Creevey, in his _Diary_, under date January 29, 1810, writes in reference to the publication in the newspapers of the way certain Members had voted in a particular division:

A damned canting fellow in the House, Mr. Manning, complained of Members’ names being printed as a breach of privilege, and so it would have passed off if I had not showed them that, so far from it being a breach of privilege, it was a vote in King William’s time, “that Members’ names should be printed that the country might know who did, and who did not, their duty.”

It is the fact, however, that not until 1836, four years after the passing of the Reform Act, did the House of Commons adopt the democratic plan of recording the votes of Members and publishing them in the official report of the proceedings of the House. Before that date the votes of Members who joined in the debates--at that time a very small number--might be guessed by the drift of their speeches as reported in the Press, but how the silent majority voted was an absolute secret. All that was publicly known were the numbers on each side. There were then no division lobbies. The usual mode of taking a division was that the “ayes” went out of the House, and the “noes” stayed inside. Those inside were first counted; and the number of the “ayes” was ascertained as they returned to the Chamber. The Press Gallery, as well

as the other galleries, was always cleared when, on the challenging of a division, the Speaker said, “Strangers will withdraw.” Old Members resented the new method of taking a division, introduced in 1836. They declined to give their names to the tellers who at first took the record, and used to rush past them with averted faces.

The average time a division occupies is ten minutes. Some big divisions, for which there is a full muster on each side, take a quarter of an hour. But at length all the Members have returned from the lobbies, and the counting is over. The tellers appear in the Chamber, and report to one of the Clerks at the Table their respective numbers. The victors will be known in a moment. The Clerk writes the figures on a slip of paper, which he hands to the principal teller of the side that has won. Immediately a shout of delight arises from the Party that is triumphant. They do not wait for the announcement of the exact numbers. They know they have won--by what majority does not for the moment concern them--and they rejoice accordingly. Sometimes, even when the issue lies between Government and Opposition, the exact result is uncertain or appears to be uncertain judging by the tone of the speeches. I have often heard debates that ran strongly against the Government, so much so that a defeat seemed probable. But behind the Government were those ranks of Members who sit silently on the back benches--who say nothing, but who vote. Now we shall hear the numbers. The four tellers meet in a row in front of the Table; the tellers for the victors to the right facing the Speaker, the tellers for the vanquished to the left, and when they have bowed to the Chair, the principal teller for the majority reads out the numbers in a loud voice: “‘Ayes’ to the right, 398; ‘Noes’ to the left, 190.” The Ministerialists again lift their voices in exultation and the Opposition answer back with mocking laughter. “Order, order!” is heard from Mr. Speaker. The result of the division must be announced from the Chair. As the tellers return to their places the paper containing the figures has been passed on by the Clerk to the Speaker. “The ‘Ayes’ to the right were 398; the ‘Noes’ to the left, 190,” says the Speaker, and he adds: “The ‘Ayes’ have it.” Once more the vociferations, triumphant and defiant, are renewed.

Does a Bill on its third reading, or a motion that has been carried or rejected, really represent the reasoned and deliberate opinion of the majority? Would the majority have come to the same determination if--instead of being Members of an Assembly dominated by Party interests, depending on the uncertain chances of popular election for their seats in it, and anxious, therefore, to conciliate and stand well with the electorate--they could have independently considered the question in the seclusion of their own minds uninfluenced by these considerations? It is a fascinating because somewhat perplexing question. For my part I do not think it would make much, if any, difference. Most men, however situated, will vote politically according to their Party opinions or interests.

But listen! “Who goes home?” This cry echoes through the lobbies and corridors of the House of Commons when the House has concluded its sitting and is about to shut its doors. Surely, a quaint and curious question to ask of our legislators every night. It had its origin in the far-off time when an M.P., wending his way homewards alone at night, was liable to be attacked and robbed, and so the doorkeepers of the House

made arrangements for parties living in the same district to go home together for mutual protection. Centuries ago the representatives of the people streamed out of the dim vastness of Westminster Hall, and, separating into groups, followed the link-boys carrying flickering torches, through the dark and intricate streets between Westminster and the residential quarter of Covent Garden, catching fleeting glimpses on the way of footpads skulking in the shadows. Dangers of the kind are things of the very remote past. Yet, such is the reluctance to part with old forms and ceremonies at Westminster, that in these secure and orderly times of open thoroughfares, and electric lights and vigilant police, with underground railways and motor-taxis at command, the question is still nightly asked: “Who goes home?”

CHAPTER II

THE EVOLUTION OF AN ACT OF PARLIAMENT

1

Statute law should be of high practical efficiency, as an instrument for good government and human progress, having regard to the time and thought expended upon its production. Parliament makes laws without haste or impulse, deliberately and with patience. Getting a big Government measure through Parliament is, indeed, a long and laborious task, for the success of which ability, experience, tact and judgment of the highest order are essential. A Bill has to pass through no fewer than five distinct and separate stages in both Houses of Parliament before the last ceremony of all, the Royal Assent, makes it the law of the land. It has to be read the first time, and read the second time; it has to pass through Committee, to be reported to the House, and finally read the third time. And having gone through all these five stages in the House in which it is first introduced--always the Commons in the case of measures of great public interest--it has to go through precisely the same stages in the other House. It is a very ancient procedure, and when it was first devised its object must have been not to promote but to impede legislation.

Even before a great Government measure is introduced at all into the House of Commons much anxious consideration is given, first to its principles, and next to its composition. Indeed, Parliament is generally in ignorance of what it is to be asked to sanction until the Minister has unfolded his legislative scheme in the House of Commons. An outline of the Bill is first laid in the rough before the Cabinet by the Minister, and, no doubt after considerable discussion, the proposals are agreed to in so far as they are in conformity with what the Cabinet conceives to be its mandate from the electorate, or, more properly speaking, with the general wishes and inclinations of the Party in the House and in the country.

Gladstone, in his _Diary_ for December 1868, thus describes how he prepared the skeleton plan for the disestablishment of the Irish Church:

_13th._--Saw the Queen at one, and stated the case of the Irish Church. It was graciously received. _24th._--At night, went to work on draft of Irish Church measure, feeling the impulse. _25th._--Christmas Day. Worked much on Irish Church

abbozzo. Finished it at night. _26th._--Revised the Irish Church draft and sent it to be copied with notes.

Next came the Cabinet stage:

February 8, 1869.--Cabinet on the heads of Irish Church Bill. _9th._--Cabinet. We completed the heads of the Irish Church measure to my great satisfaction.

Then comes the work of embodying the principles agreed upon by the Cabinet in a Bill of the prescribed form, divided into many clauses, which again are sub-divided into sections. This is done by Government draughtsmen, lawyers who are adepts in the use of the legal verbiage--quaint, prolix and circumlocutory--which custom ordains must be employed in an Act of Parliament, and which the lay mind often finds so difficult to understand and the legal mind sometimes interprets in various senses, when disputes arising out of an Act come for settlement before the Courts.

The procedure of bringing in Bills in the House of Commons has been much simplified. I can recall a time when no Bill could be introduced by its promoter without leave being asked for first and obtained. When leave was given by the House, the Minister or private Member, in charge of the measure, was asked by the Speaker, “Who will prepare and bring in the Bill?” and in answer the Minister or private Member recited the names of three or four “backers,” including his own. Then retiring to the Bar, he was called upon by the Speaker, and coming up to the Table literally brought in his Bill. This ceremony was a survival from ancient times when the “backers” left the Chamber to draft the Bill, and after an interval returned with the finished composition. The practice since 1902 is for the Minister, or private Member, to give notice of his intention to bring in a Bill, which notice appears on the “Orders of the Day”--the daily agenda of the proceedings in the House--and when called upon by the Speaker he presents his Bill to the Clerk at the Table without any ceremony, and it is thereby read a first time. Occasionally, when it is thought necessary, in the case of a Bill of some consequence, at once to explain its purport, a short statement may be made by the Minister under what is called “the ten minutes’ rule,” the statement and one speech in criticism of the measure being each limited to that period of time.

However, it sometimes happens that a Minister in charge of a Bill of first-rate importance will ask leave, in the old form, to bring it in, and in doing so will make a long speech both explanatory and defensive. Such a Bill usually arouses Party feeling, and the Opposition at once states their objection; but it is customary to allow the motion for leave to be agreed to without a division. The Bill is printed and circulated only after it has been read a first time, and, of course, until its provisions are fully before the House no definite decision can be come to by the Opposition in regard to it. Therefore the usage of permitting a Bill to be introduced unchallenged is rarely departed from, and only when, in the opinion of some section of the House, there are reasons for fighting it even from the very first.

Leave having been given unanimously, or carried on a division, the Minister brings in the Bill. The ceremony of introduction is then carried out. The Minister goes down to the Bar, whence he walks up the floor to the Table, amid the welcoming cheers of

his supporters, hands the Clerk what purports to be a copy of the Bill. Often it is but a dummy copy, usually a folded sheet of paper with the title of the Bill written upon it. Indeed, I have seen a Minister, on obtaining leave to introduce a Bill, pick up from the Table the nearest sheet of notepaper to hand, and while the House rang with the applause of his Party, solemnly hand the Clerk that piece of virgin paper as a copy of the great measure, which, perhaps, was expected to make earth a reflex of Heaven.

2

It is on the motion for the second reading of the Bill that the battle over its principles and proposals really begins. There is a long debate--its length being determined by the importance or contentious nature of the measure--in which the Bill is attacked by the Opposition, and defended by the Ministers and their supporters, on broad and general lines. A hostile amendment is moved. Sometimes it is declaratory of the chief objections to the Bill. Sometimes it runs simply--“That this Bill be read a second time this day six months,” which amounts, in a roundabout way, to a motion for its rejection. The debate of argument is closed by a trial of strength in numbers in the division lobbies, and if the motion for the second reading be carried--usually a foregone conclusion in the case of a Government measure--the principles of the Bill are supposed to have received the approval of the House.

Then comes the most important stage of all, and the most critical--the Committee stage, during which the proposals of the Bill are considered, separately and in detail, and efforts made to amend them or reject them. But, occasionally, “instructions to the Committee” are raised as obstacles to delay the House in getting into Committee on the Bill. Notice was given of fourteen instructions in the case of the Home Rule Bill of 1893. The Committee on a Bill have general powers to make amendments which are relevant to the subject-matter of the Bill as presented. The purpose of an “instruction” is to enable the Committee to amend or alter the Bill in a way unauthorized by their general powers. In other words, an “instruction” is usually intended to empower the Committee to extend or limit the scope of the Bill in a manner not contemplated by its promoters and hostile to the purpose they have in view. “Instructions” are, in fact, usually designed to wreck the Bill, or, at least, to impede its progress through the House, For instance, one of the “instructions” to the Committee on the Home Rule Bill aimed at a contemporaneous settlement of the Irish land question; and another proposed that the number of seats in the House allotted to Ireland should be considerably reduced. But Mr. Speaker Peel, by a stroke of authority unique for its sweeping character perhaps in the history of the Chair, which in a House governed by precedent has had the effect of enormously increasing the power of the Speaker, declared that, with one exception, the whole of the “instructions” were out or order. It must not, however, be supposed that if the Speaker had ruled otherwise the “instructions” would have been adopted, and that a land measure, and a reform measure--to say nothing of the aims of the other eleven “instructions”--would have been included in the scope of the Home Rule Bill of 1893, making it appallingly complicated and unwieldy. If an “instruction” is in order, it is moved and debated like other motions, and its fate--which is, generally, rejection--is decided in the division lobbies.

The House goes into Committee on a Bill simply enough. The Clerk reads the title of the Bill--as, for instance, “The Representation of the People Bill--Committee.” “The question is that I do now leave the chair,” says the Speaker. “As many as are of that opinion will say ‘Aye’; the contrary, ‘No.’ I think the ‘Ayes’ have it.” As his declaration is allowed to pass unchallenged, he adds, positively, “The ‘Ayes’ have it,” and forthwith steps down from the Chair and quits the Chamber. The Serjeant-at-Arms rises from his chair at the Bar, walks up the floor, lifts the Mace from the Table, and places it out of sight on rests below. The Chairman of Committees takes his seat at the Table, not in the Speaker’s high Chair, but in the low chair of the principal Clerk.

The House is now in Committee. It is, in fact, the House without the Speaker and the Mace. Members are provided with copies of the Bill, and a separate paper containing the amendments, of which notice has been given days before to the Clerks. Immediately the second reading of a big Bill is agreed to, there is a rush of Opposition Members to the Table to hand in amendments. Many of these amendments are certain to be duplicates, and he who gets in the first of the number will be called on to move it. The amendment-paper is divided into sections, each opening successively with a clause of the Bill, and containing all the amendments put down to that clause. If the Bill be very contentious, the amendment-paper runs to many pages. It is at this stage that the direct influence of the House at large on the legislative proposals of the Government comes into operation. The House must necessarily allow the Cabinet to draw up the Bill, in accordance with its political principles. Now comes the opportunity of Members generally to criticize the details of the Bill and suggest alternative proposals. Each evening that the Bill is down for consideration in Committee, the Minister in charge--head of the Department which will have the administration of the Act--enters the House with a dispatch box, which he places on the Table in front of his seat on the Treasury Bench. When he opens the box, a mass of documents of all kinds--printed, typed and written--is disclosed to view. These papers are constantly consulted by the Minister during the proceedings. In them he finds most of the arguments with which to reply to the amendments. They have been prepared for him by the permanent officials of his Department--those Civil servants who retain their positions under all Parties and faithfully serve the Ministers of whatever Party may be in power. Not only that, but one or two of these officials are sitting in a little gallery behind the Speaker’s Chair ready to hand to be personally referred to by the Minister for advice or guidance should he find himself hard pressed by any of the critics of the Bill. The Minister is also helped by his Parliamentary Secretary. One of the Law Officers, the Attorney-General or the Solicitor-General, comes to his assistance when an amendment raising legal points is moved. But most of the burden necessarily falls upon the Minister. He gets little or no aid from his colleagues in the Administration. Every other Minister has his own Department to look after, and it is the custom for each to confine himself to his own affairs, and not to interfere in the consideration of a measure affecting another Department unless he is invited to do so by the Minister in charge. It is a difficult and wearying task, indeed, to steer a big controversial Bill through the always uncertain and sometimes turbulent waters of the Committee stage, avoiding the rocks and shoals that thickly abound in the form of unforeseen waverings and dissatisfactions in the ranks of

supporters, and sudden accessions of strength, in numbers or in argument, to the Opposition.

3

The first amendment considered is, of course, the first amendment put down to Clause 1. It is moved by the Member in whose name it stands on the paper. A reply is given by the Minister in charge. He may accept the amendment, but generally he opposes it. At any rate, there follows a discussion which ends in a division. So the amendments to a clause are dealt with in regular order as they appear on the paper. For some days the amendment-paper shows no appreciable sign of diminution. For as amendments to the earlier clauses are being disposed of, fresh amendments to later clauses are being evolved from the active and ingenious minds of the opponents of the Bill. While a Bill is in Committee the amendments to it are reprinted every night and distributed to Members in the morning, with other parliamentary papers.

It is customary for big controversial measures to occupy a month or two of the session in Committee. Gladstone's Land Bill of 1881 had a run of twenty-five days in that stage; the Home Rule Bill of 1898 forty-seven days; and Balfour's Education Bill, 1902, forty-five days. Such Bills are discussed most carefully and elaborately, not only clause by clause, but word by word. A Member can speak but once on any question when the House is sitting. He may speak as often as he pleases on any question in Committee subject to the opinion of the Chairman as to the relevancy of the talk to the amendment. At times there is undisguised obstruction by the opponents of the Bill. One of the chief faculties of the Opposition bent on thwarting the nefarious designs of the Government is that of elaboration of speech--a prolongation of the "cackle" in order to delay getting to the "'osses." But generally debate in Committee of the whole House is much more businesslike than debate in the House with the Speaker in the Chair. There is, occasionally, full debate on an important amendment, a "field night" on which all the controversial forces of each Party are brought into action; but, as a rule, Members talk in a conversational fashion, and argue the points in brief pointed speeches. The House on the occasion of the second reading suggests rather an amphitheatre for oratorical gladiators. In Committee it seems more the temple of legislation in which not so much Party principles as free individual opinions are brought to bear upon the subject.

The Bill, as I have said, is considered clause by clause. When all the amendments to a clause have been disposed of, the Chairman puts the question--"Clause 1" or "Clause 20" (as the case may be), "the question is that 'this clause stand part of the Bill,'" or, if it has undergone alteration, "that this clause as amended stand part of the Bill," and on that question the principle of the clause may be again debated, no matter how fully it may have been discussed indirectly as amendment after amendment was moved to the clause. A Bill is not rejected in Committee. If, however, an important clause is defeated, not only is the Bill dropped, but the Administration, on whom a vote of censure has thus, in fact, been passed, resigns--throwing upon the Opposition the responsibility of carrying on the Government--or appeals to the country to decide the issue in a General Election. But that is an extremely rare occurrence. Amendment of the legislative proposals of the Government is really

limited by the operation of the Party system. If the passing of the Bill, substantially in the form in which it is brought in, is insisted upon by the Government, their will is upheld by the majority of Members--their pledged Party supporters.

Nevertheless, a Bill occasionally undergoes alteration in Committee. The Minister in charge puts down amendments with a view to removing defects in the measure which have been brought out in the debate on the second reading, and these, of course, are carried. Modifications proposed by followers of the Government are also often accepted. Moreover, there are compromises designed to gain support by satisfying the wishes of particular sections of Members, or to disarm or appease the Opposition, but leaving unaffected the main principles of the measure. All the abilities of the House--its practical experience, its special knowledge--are brought to bear on a big Bill in Committee, and when at last that stage is concluded, when the Chairman puts the question, “That I report this Bill with amendments to the House,” and it is agreed to, there has been fashioned as good a piece of legislative workmanship as is possible for the trained intelligence of the Legislature, or rather of the Party in power, to produce--in the light of their political opinions and pledges.

Thus the Government can rely upon the organized discipline of its followers, the dead weight of its majority, to carry a big Bill ultimately through the Committee stage with but little change in principle or even in form, despite the constructive, or destructive, criticism and action of the Opposition. And if the progress of the Bill be too slow to their liking, they are armed with power to expedite it. This is done by means of the system of closure by compartments. The “guillotine,” as it is called for short, or the “gag,” which is the rougher and briefer designation given to it by the Opposition, was first applied in Committee on the Irish Crimes Bill of 1887. Arthur Balfour, who, as Chief Secretary for Ireland, was in charge, moved, when the Bill had been in Committee fifteen days, that in a week’s time such clauses as remained undisposed of should be put forthwith from the Chair without amendment or debate, and this was done on the day appointed. Debate on the Home Rule Bill of 1893 in Committee was curtailed by the same mechanical process. A time-table is accordingly part of the established procedure in the case of large, complicated and controversial Bills. It is used by all Parties when they are in power. A motion for this closure is not carried if it appears on a division that less than 100 members voted for it. Another form of closure is known as the “kangaroo.” By this process the Chairman of Committees is empowered to jump over the less important amendments on the paper, and select for discussion those which raise more vital issues. The Coalition Government under Lloyd George introduced a new principle in the session of 1920. This was the appointment of an unofficial committee, representative of Members generally, to select the questions to be raised and debated by amendments to the Government of Ireland Bill in the Committee stage for which twenty-one days were allotted.

4

The House of Commons recognized in 1882 that it is impossible for it to do itself, and within its own Chamber, the vast amount of legislative work, which, owing to the ever widening extension in all directions of the operations of government, it is called

upon to perform. It decided, therefore, to delegate some of its functions to committees or sections of itself sitting in rooms upstairs. Two Standing Committees were appointed for the consideration of all Bills relating to law and to trade. So valuable did this reform in parliamentary procedure prove to be that in 1907 the Liberals, then in office, increased the number of Standing Committees to four, for the consideration of Bills of a larger and more general class. Each Committee consisted of not less than sixty and not more than eighty Members, and was intended to be the House in little, the various Parties or interests being proportionally represented. In 1919 the number of Standing Committees was increased to six, and the membership of each was reduced to fifty. The members are nominated by the Committee of Selection--a small body of the oldest and most experienced men in the House, appointed for this special purpose, and who act upon the principle of giving representation to all Parties and all sections of opinion. The system of Standing Committees also provides for the devolution of business on the principle of nationality. A Bill relating exclusively to Scotland is referred to a Standing Committee consisting of all the representatives of Scottish constituencies, together with ten other Members nominated by the Committee of Selection and specially conversant with the subject to be dealt with. In the same way Welsh Bills are referred to a Standing Committee of Members from Wales, with fifteen other Members selected from the general body. Every Bill, after the second reading, is automatically sent to a Standing Committee, unless it is proposed and agreed to that a particular measure be retained for consideration by the Committee of the whole House, a course which is always followed in the case of Bills of first-rate importance and Bills which, being highly controversial, excite passion and antagonize Parties.

Each Standing Committee sits, with a chairman, in one of the Committee-rooms upstairs, from eleven or twelve o’clock until the hour the House meets, on alternate days, until its labours are over. Twenty members form a quorum. Clause after clause of the Bill is considered, amended, rejected, or adopted, in exactly the same way as if it were a Bill before a Committee of the whole House. Service upon these Standing Committees impose heavy additional obligations upon Members. But the burden is, as a rule, cheerfully borne. They afford Members a larger opportunity of taking an effective part in the work of legislation. Many a Member of talent and business capacity, who, probably because of the lack of a glib tongue, has failed to make himself a prominent figure on the larger stage of the House, transfers his ambition for distinction to the rather obscure shades of the Committee-rooms. The reporters are admitted to the meetings of the Standing Committees, but the newspapers give to the discussions not a tithe of the space which they would give to proceedings on Bills of a similar kind in Committee of the whole House. But despite the absence of that incentive to devotion to duty which publicity is supposed to provide--or perhaps, as some should say, because of it--the details of Bills so referred to Standing Committees are carefully considered, the discussions are brief and to the point, and, as a rule, the Acts which are so dealt with will bear favourable comparison, in the matter of freedom from blots and contradictions, with the statutes that have passed through the Committee of the whole House. This is due largely to the Chairmen, who are always chosen for their experience and discretion.

When a Bill has emerged from the Committee stage the worst of its troubles are over, in the House of Commons at least. The Speaker is sent for--if the Committee be one of the whole House--the Mace is again placed upon the Table, and the House resumes. The Chairman of Committees, standing by the Chair with a copy of the Bill in his hand, reports to the Speaker that the measure has passed through Committee. If a Bill be reported to the House without amendment, it may be read a third time forthwith, and its passage through the House of Commons be thus completed. But as it never happens that a big Government measure goes through Committee without amendment, a day is fixed for the fourth stage of a Bill, known as “the report stage,” and for it the Bill as amended is reprinted.

On the report stage amendments may again be moved to the clauses of the Bill, or new clauses may be proposed, or the Bill may even be recommitted to the Committee again, if it has been found that matters which can only be properly dealt with in that stage have been overlooked. Still, the report stage is usually brief, the amendments being generally confined to points that have not been dealt with in Committee. It must be added, however, that in the case of a controversial Bill which has been referred to one or other of the Standing Committees the deliberations upstairs have little restraining effect on the same contentions being debated at length in the House on the report stage. What comes out most prominently in the passing of a big Bill through its various stages is the persistence with which the same questions are raised over and over again, showing how obstinate is the reluctance of the Opposition to accept anything as settled, and their desire to upset it while a chance to do so remains. Then comes the fifth and last stage of the Bill--“the third reading.” There is a set debate in which the principles of the Bill are attacked and defended, as at the second reading stage. But the Bill cannot now be altered in any way. It must be either adopted or rejected, and that question is decided by a division. Of course, it is read the third time. The defeat of a Government Bill on its third reading in the House of Commons is a thing almost unknown.

5

The Bill then goes to the House of Lords. It was formerly the custom for the Minister in charge of a Bill which passed the Commons to bring it up to the Lords with much ostentation. The Reform Bill of 1831, for instance, was brought up to the Lords by Lord John Russell, who had conducted it through the Commons, and Lord Althorp, the Leader of the House. The Ministers were accompanied by close on 200 Whig Members, who burst into loud cheers when Lord Chancellor Brougham came down to the Bar and received the Bill from Lord John Russell. But a different procedure has been followed since 1855. The Clerk of the House of Commons brings the Bill to the Bar of the House of Lords, where he hands it over to the Clerk of the Parliaments. “A message from the Commons,” says the Clerk of the Parliaments, “desiring your lordships’ concurrence in the first reading of the Representation of the People Bill.” The Bill is then read the first time, and is again reprinted for the use of the peers.

The Lords having given the measure a second reading, may alter its details substantially in Committee. When they are in Committee on a Bill the Lord Chancellor

leaves the Woolsack and sits with other Ministers on the Front Bench, and the Lord Chairman of Committees, taking his seat at the Table, presides. After a Bill has passed through Committee of the House, it is referred for further revision to the Standing Committee, which consists of the Lord Chairman and eight other peers. The Lords have also the power to amend a Bill at the third reading stage--a practice which was abolished in the House of Commons in 1856--and further opportunity for debate is provided by an additional stage--dropped by the House of Commons also in 1856--“That this Bill do pass.” But, however trivial the alteration made in the Bill by the Lords may be, the Bill must be submitted again to the Commons, who may agree or may not agree with the Lords. If they agree with the Lords’ amendments, well and good. If they disagree, the Lords’ amendments are struck out, and the Bill is sent back to “another place” (as the House of Lords is called in the House of Commons) in its original form. It is generally recognized that the working of the Constitution depends on compromise, and usually an arrangement smooths, in the end, the differences between the two Houses. The Bill accordingly is passed, and remains with the Lords for the Royal Assent.

But what if the Lords throw out a Bill at the first or second reading stage? The Bill can ultimately be carried over their heads by means of the Parliament Act which was passed in 1911 by the Liberal Government, under Asquith as Prime Minister, to cope with the situation created by the Lords in rejecting their Bill to give Home Rule to Ireland. This Act provides that a Bill which is passed by the House of Commons in three successive sessions, and is rejected by the Lords in each of these sessions, shall on its rejection for the third time by the Lords be presented to the King and become an Act of Parliament on the Royal Assent being signified. It was by this procedure that the Government of Ireland Act, 1914, was placed on the Statute Book. The enacting words of an Act carried through both Houses in the ordinary way declares that it has been passed by and with the advice and consent of the Lords and Commons in Parliament assembled. A different form of words is used in the case of an Act carried under the Parliament Act. It says:

Be it enacted by the King’s most excellent Majesty, by and with the advice and consent of the Commons in this present Parliament assembled, in accordance with the provisions of the Parliament Act, 1911, and by authority of the same, as follows:

6

Such is the long and elaborate process by which a Bill passes through both Houses towards its transformation into an Act of Parliament by the Royal Assent. Nevertheless, a Bill may pass through all its stages in both Houses and receive the Royal Assent within a single day. Such expeditious law-making is rendered possible by the suspension of the Standing Orders of both Houses which regulate procedure in regard to Bills. It is resorted to only in a grave emergency. The Bill for the suspension of the Habeas Corpus Act in Ireland during the Fenian troubles in 1866--allowing arrest and imprisonment without trial--was carried through both Houses on a Saturday, but owing to the delay caused by the absence of Queen Victoria from London, it did not receive the Royal Assent until one o’clock on Sunday morning--the only occasion, perhaps, that Parliament has sat on the Sabbath. In like manner the

Explosive Bill, to cope with the dynamite conspiracy for the blowing up of public buildings in 1883, passed through both Houses before the midnight of the day on which it was introduced. In 1914, shortly after the outbreak of the World War, the Defence of the Realm Act--which practically placed British liberty at the feet of that capricious and whimsical lady, “Dora,” for the duration of the War--was swiftly passed into law, all on one day, without having been printed or circulated. The Standing Orders are also sometimes suspended by agreement towards the end of a session in order to wind up business quickly.

CHAPTER III

THE ROYAL ASSENT

1

Of the incidents to be witnessed at Westminster associated with the evolution of an Act of Parliament, one of the most curious and certainly the most picturesque is the announcement in the House of Lords of the Royal Assent. In theory, it is from the King all legislation proceeds. Parliament but agrees. Each statute opens with what is called “the enacting clause,” which is as follows:

Be it enacted by the King’s most excellent Majesty, by and with the advice and consent of the Lords spiritual and temporal and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

This formula contains within it, brief as it is, a history of the development of the legislative power. At first the King made laws; next he made them with the advice and consent of Lords and Commons; and finally in the reign of Henry VII--about the middle of the fifteenth century--“by the authority of the same,” thus proclaiming that the two Houses had become exclusively possessed of the power to make statute law. The power of the Crown in regard to legislation has never, since the reign of Henry VII, been more than a right to express assent or dissent to Bills which have passed both Houses. This right, according to the theory of the Constitution, still exists. Therefore, before any Bill which has passed both Houses is declared to be the law of the land it must be presented to the King and receive the Royal Assent. But Bills are not now laid before the Sovereign that he may exercise his independent judgment upon them, rejecting some and approving others as he thinks fit. The “veto” of the Sovereign to reject Bills according to the bias of his own personal views has completely lapsed. He could not personally say “nay” to any of them. He is bound to act on the advice of his Ministers. The theory of the Constitution that the veto of the Crown still exists has its uses. Just as the assent of the Crown is really the assent of the Ministers, by whom the Bills have been introduced, so the veto of the Crown, should it ever be exercised, would really be the veto of the Ministers. If it were found desirable at the twelfth hour not to place on the Statute Book a Bill which had passed both Houses, the Sovereign need only say “nay,” on the advice of the Ministers, and the measure would be as dead as if it had been rejected on a division in the House of Commons or the House of Lords.

Even George III, who endeavoured to rule as well as to reign, recognized that the giving of the Royal Assent had become but a matter of form. Lord Eldon has told the story of his visit as Lord Chancellor to Kew to obtain the assent of George III to certain measures. He was reading a list of the titles of the Bills and explaining briefly their provisions, when the King, interrupting him, said: “You are not acting correctly. You should do one of two things: either bring me down the Bills for my perusal, or say as Thurlow once said to me on a like occasion. Having read several of the Bills, Thurlow stopped and said to me, ‘It is all damned nonsense trying to make you understand them, and you had better consent to them at once.’”

2

What really happens now is that, when a number of Bills await the Royal Assent in the House of Lords, their titles are submitted to the King for approval by the Clerk of the Crown, and Letters Patent, signed by the King, are issued under the Great Seal, appointing a Royal Commission, consisting of five peers, to go through the form of assenting to these Bills on behalf of his Majesty. Then the House of Lords meets for the ceremony. The five Lords Commissioners are seen in vivid scarlet robes slashed with ermine, white as the driven snow, seated all in a row, on a bench immediately beneath the imposing Throne. In front of them is the scarlet Woolsack--like a comfortable well-padded lounge--on which rests the glittering Mace and the embroidered satchel which is supposed to hold the Great Seal. The centre figure is the Lord Chancellor. He wears on top of his full-bottomed wig a three-cornered hat. The others have cocked hats. What does it symbolize, this difference in head-dress? Why should the Lord Chancellor wear his hat athwart his head, and his colleagues wear theirs fore and aft? The distinction must have had a meaning once, but what it was there is no one alive to tell. At a nod from the Lord Chancellor, “Black Rod,” the messenger of the Lords, goes to the Lower Chamber to summon the Commons, for both Houses must be present at the ceremony, and in a few minutes he returns with Mr. Speaker, attended by the Clerk and the Serjeant-at-Arms, and followed by a crowd of Members who congregate at the Bar or overflow into their galleries. The Lords Commissioners retain their seats when the Commons appear at the Bar, but they raise their hats in acknowledgment of the profound bow of the Speaker. The Reading Clerk reads the Royal Commission, a long proclamation engrossed on parchment, having a wafer of the Great Seal attached by a silken cord, in which is set forth, with much circumlocution, in the name of the King, that his Majesty has appointed “our most trusted and well-beloved councillor” the Lord Chancellor, and “our most dear cousins and councillors,” or “our well-beloved and faithful councillors,” naming the other Commissioners--each peer doffing his hat at the mention of his name and title--to signify the Royal Assent to Bills by Commission. Then the Clerk of the Crown and the Clerk of the Parliaments take up positions, one on each side of the Table. The Clerk of the Crown, standing on the Opposition side and provided with a list of the Bills awaiting the Royal Assent, bows to the Commissioners and reads the title of the first Bill. The Clerk of the Parliaments, standing on the Government side, then does his appointed part in the ceremony. He first bows to the Lords Commissioners, then turns to Mr. Speaker and the Commons at the Bar, and declares to them the Royal Assent in the Norman-French phrase, “Le

roy le veult," or, "The King wills it." That particular Bill has been thus transformed into an Act of Parliament. The Clerk of the Crown again bows to the Commissioners, reads the title of another Bill, bows once more, and again the Clerk of the Parliaments bows to the Commissioners, then turning to the Commons, he again declares "Le roy le veult." And so on till the list of Bills is gone through.

There is a change made now and then in the form of words in which the Clerk of the Parliaments announces the Royal Assent. If the measure be a private Bill, such as a Bill empowering a gas, or water, or railway company to extend its operations, he says: "Soit fait comme il est desire"; or should the Bill be one for granting subsidies to the Crown, he says: "Le roy remercie ses bon sujets, accepte leur benevolence, et ainsi le veult."

If the Sovereign thought fit to refuse assent to a Bill--not because of any personal objection to its provisions, but because he was advised to do so by his Ministers--the Clerk would declare it in the mild fashion of "Le roy (or la reigne) s'avisera," "the King (or Queen) will consider it." But in 1707, when Queen Anne withheld her approval of a "Bill for the Militia of that part of Great Britain called Scotland," this expression was heard for the last time in the House of Lords. It is asserted by some constitutional writers that Queen Anne thereby overruled the wishes not only of both Houses but of her Ministers. That is not so. The Queen exercised her veto on the advice of the Government. After the Bill had passed through all its stages, there arose in Scotland a movement for the restoration of the Stuarts, which in the opinion of the Government rendered the establishment of a Militia in that country very inadvisable.

The use of Norman-French in this ceremony is a survival from the time, at the very beginning of Parliament, when all the proceedings appear to have been conducted in French, and when the King of England was supposed to be the ruler also of France. English came into general use in the reign of Henry VII, but the ancient form of giving the Royal Assent was retained. The year 1707, in which, as I have said, the Royal prerogative of refusing assent to a Bill was last exercised, was remarkable also for a proposal to establish by legislation the giving of the Royal Assent to Bills in the English tongue--the tongue in which Oliver Cromwell gave his assent to Bills passed during the Commonwealth. A Bill with that object was introduced in the House of Lords, passed through all its stages there, and had got a second reading in the House of Commons, when a dissolution of Parliament terminated its career. Nothing was afterwards done to revive it. Close on seventy years later a protest made in the House of Commons against the use of Norman-French caused great hilarity. On December 4, 1772, on the return of the Speaker and Commons from the House of Lords after hearing the Royal Assent given to Bills, Richard Whitworth asked that an address be presented to the King desiring him "to give his assent in his own native language." "The ceremony of the King's Assent being given in French is," said Whitworth, "the remains of Norman slavery and a disgrace to the British Parliament." It is recorded in the _Parliamentary History_ (_Hansard_) that "the House was in a continual laugh" during the protest. The Speaker replied "very gravely" that the matter was so weighty the House should take time to consider of it. "This occasioned a second flow of good humour," according to _Hansard_.

3

An Act has the force and effect of law on receiving the Royal Assent, unless some date for the commencement of its operation is specifically stated in the measure itself. Accordingly the Clerk of the Parliaments is required to endorse on each Act, immediately after its title, the day, the month, and the year the Royal Assent was given to it. And that is the end of a mighty long story. When the procedure of passing Bills was fashioned, Governments, no doubt, desired to interfere with or control as little as possible the activities of the people by legislation, and when legislation was deemed necessary it was made a matter of long drawn out consideration. Life was simple then. Now it is perplexingly complex. All the more reason, perhaps, that in the framing of legislation neither time nor thought should be spared.

Acts of Parliament are not promulgated in any way. The ancient custom of having them proclaimed by the sheriff in the market-place of each county was suspended on the introduction of printing. They are printed “by authority” by the King’s printers--which ensures their acceptance as correct in every court of justice. Two copies of each Act are specially printed on vellum. One is for preservation in the Rolls of Parliament, deposited in the Victoria Tower, and being endorsed with the Royal Assent is regarded as the official copy. The other copy is sent to the Record Office. That is all that is done in the way of bringing Acts of Parliament to the notice of the King’s subjects. Nevertheless, all subjects are expected to know the law. Breach of a statute is not extenuated by a plea of ignorance. The whole Nation is, in strict constitutional theory, present within the walls of the Palace of Westminster when the Estates of the Realm are engaged in the work of legislation. Therefore, an Act of Parliament requires no public notification in the country. In practice it is not easy for a subject to get into the Houses of Parliament as a spectator, but of that little detail the Constitution takes no count. The operation of a statute, should a question of law arise out of it, is confined by the interpretation given to its terms, or the construction put upon its powers, by the Judges of the High Court. Another very interesting and important fact in relation to Acts of Parliament is that each Act is but the expression of the will of Parliament for the moment. Parliament may, the very next day, recall it. An Act which is unchangeable and everlasting is beyond the power of Parliament to pass. Every Act is revocable or open to revision. Parliament is the transcendant and absolute authority of the land. It is free and unfettered. It can bind and loose. What one Parliament does can be undone by another.

CHAPTER IV

BLACK ROD’S KNOCK

1

“Black Rod” is, perhaps, the most picturesque officer of Parliament. According to the Royal decree of Henry VIII constituting the office, he is “Chief of all the Ushers of England,” and also “Custodian of the doors of the High Court called Parliament.” As such, he has the appointment of the doorkeepers and messengers of the House of

Lords and of his assistant, the Yeoman Usher. As such, he or his deputy sits in a box to the right of the Bar in the House of Lords, and controls the admission of strangers to that Chamber. But it is, as the “Messenger of the Sovereign” that he has for centuries played a part in the romance of parliamentary history.

When the King appears in the House of Lords, either personally or by Commission to open Parliament, to give the Royal Assent to Acts which have passed both Houses, or to prorogue Parliament--three constitutional functions which are controlled by the prerogatives of the Crown--the Members of both Chambers must be present; and it is in his capacity as Royal Messenger that Black Rod is deputed, on such occasions, to summon the Commons to the House of Peers. The Sovereign attends in person only at the opening of Parliament. The prerogatives of the Crown are exercised, in respect to the other functions, by Commission. That is to say, five Lords Commissioners are appointed by the King to give--as we have already seen--the Royal Assent to the Bills that have obtained the sanction of both Houses, and also to dismiss the peers and the representatives of the people on the conclusion of their labours for the session.

But whether the King be personally present, or present only by Commission, the message which Black Rod brings to the Commons is the message of his Majesty. As he walks through the lobbies between the Houses of Lords and Commons Black Rod’s consequence as the King’s Messenger is made strikingly manifest. One of the doorkeepers of the Lords heralds his approach with cries of “Black Rod!” “Way for Black Rod!” and the Inspector of Police is there to see that his passage is impeded neither by strangers nor by Commons.

Yet it would seem, from the reception always given to Black Rod at the portals of the House of Commons, that the Commons regard him as rather a hostile visitor. The moment the usher’s stentorian cry of “Way for Black Rod!” betrays the approach of the King’s Messenger, the Serjeant-at-Arms in the House of Commons springs from his chair, which is close to the main entrance to the Chamber, and rushing to the open door, not only closes it with an inhospitable clang in the very face of Black Rod, but proceeds securely to bolt it. Presently three faint knocks are heard. The Serjeant-at-Arms reconnoitres through a grated peephole with a wooden slot in the stout oaken door and sees “Black Rod” outside. Curiously enough, no displeasure or alarm mantles the cheek of the Serjeant-at-Arms at the sight of the messenger from the Lords. There is not even a look of mild surprise in his eyes. He does not challenge Black Rod, or ask him for the countersign, or demand whether his intent be wicked or charitable. According to the programme, not a word passes between these officials of the two Houses of the Legislature, but, unless they are entirely lacking in humour--which it is impossible to suppose--they may slily wink at each other, or pass remarks, by way of a joke, that are not at all parliamentary, in the sense, that is, of having no reference to Parliament. At any rate, all that is heard by the assembled Commons is the subdued knocking at their portals. The petitionary appeal of that soft and humble request for admittance it would be impossible for the hardest heart even to resist, and, accordingly, the Serjeant-at-Arms looks over his shoulder towards the Chair, and at a nod from the Speaker the door is flung open by the Serjeant-at-Arms, and in walks the King’s Messenger.

Here let me explain that the post of Black Rod is in the personal gift of the King. The ancient decree establishing it says it must be filled by “a gentleman famous in arms and in blood.” Therefore it is bestowed on old naval or military officers, a sailor and a soldier alternately enjoying its dignity and emoluments. The “Gentleman Usher of the Black Rod” has £1,000 a year; and his deputy, “Yeoman Usher of the Black Rod,” gets £500. But whether he be a soldier or a sailor, Black Rod is not a very formidable-looking person as he is seen on his visits to the House of Commons. On occasions of State, such as the opening of Parliament by the King, he dons his full military or naval uniform. When he comes to summon the Commons to hear, in the course of the session, the Royal Assent given by Commission to Bills, he wears his official dress--a black cut-away tunic, knee-breeches, silk stockings, silver-buckled shoes, and a cocked hat tucked under his left armpit. There is not the faintest suggestion of aggressiveness in his appearance, notwithstanding the sword that dangles by his side, and the short ebony rod of office, surmounted by a golden lion rampant, which he carries in his right hand.

His message, too, is absolutely blameless. When the door of the House of Commons is opened unto him, the loud-voiced usher precedes him to the Bar and cries: “Black Rod!” Whatever business the Commons may be engaged in at the moment is at once interrupted. The Speaker respectfully rises to receive the message of the Sovereign. Members retain their seats, but take off their hats. “Black Rod” advances slowly to the Table with solemn mien, as if to show that he is becomingly impressed by the dignity of the House, and makes during his progress up the floor three low obeisances to the Chair. On reaching the Table, he simply says: “The Lords Commissioners desire the immediate attendance of this honourable House in the House of Peers.” When his Majesty is personally present in the House of Lords the message which Black Rod delivers to the Commons is more peremptorily worded. It runs:

“The King commands this honourable House to attend his Majesty immediately in the House of Peers to hear the King’s Speech read.” Having thus said what he was sent to say, Black Rod retires backwards, bowing as he goes, to the Bar, where he awaits the Speaker, and escorts him, followed by the Ministers and others of the Commons, to the House of Lords.

2

The wording of the message was once the cause of an interesting episode in the House of Commons. General Sir W. Knollys was Black Rod at the time. In March, 1880, he came down to summon the Commons to the House of Lords to hear the Royal Assent given by Commission to certain Bills. But instead of “desiring” their attendance he “required” it. Sir George Bowyer, a great stickler for constitutional usage, subsequently called the attention of the Speaker to what he described as “the unusual language” of Black Rod, which, he contended, was contrary to established custom, if not a breach of the privileges of the House of Commons. He therefore appealed to the Speaker for a definite ruling that the word should be “desire” and not “require,” in order that the objectionable expression unwarrantably used by Black Rod might not become a precedent. Mr. Speaker Brand said the customary word

certainly was “desire,” but he thought “require” was only another form of “desire,” and accordingly would not say that it was an improper expression. Happily, perhaps, for the good relations between the two Houses of Legislature, the slightly stiffer form of words was not again used by Black Rod.

Indeed, so awe-struck is Black Rod in the presence of the Commons that at times he forgets even the exact wording of his short and simple message. There was the case of General Sir Michael Biddulph, R.A. He was a brilliant soldier. He served through the Crimean campaign with great distinction. For his gallant services at the occupation of Candahar in the Afghan War he received the thanks of both Houses of Parliament. Yet I have seen this great soldier, who looked death in the face a hundred times without a tremor, shaking with nervousness when, as Black Rod, he stood at the Table to desire the presence of the Commons in the House of Peers. During the session of 1896, so great was his fright that the few words he had to say stuck in his throat or entirely escaped his recollection. The Clerk at the Table whispered the “cue,” but Black Rod failed to recall the message or to recover his articulation. Here, indeed, was an unprecedented constitutional difficulty. How could the Commons answer to a summons unless they knew what the summons was?

Fortunately, the embarrassing situation was relieved by the presence of mind and ingenuity of Mr. Speaker Gully. “I presume,” said he, addressing the tongue-tied Black Rod with a kindly smile, “that the presence of this honourable House is desired in the House of Peers.” Sir Michael Biddulph bowed gratefully to the Speaker for his readiness in guessing the object of his mission. Then, instead of retiring to the Bar backwards, Black Rod, in his confusion, did what no danger to his life would have induced him to do in face of the enemy--he turned round and walked away frontwards, or in the manner of progression ordained by Nature. Ever afterwards Sir Michael Biddulph took the precaution to carry a card containing the words of the Royal Message in his cocked hat, at which he used furtively to glance as he stood mumbling at the Table.

Sir Michael Biddulph was succeeded by Admiral Sir Henry Stephenson as Black Rod. Stephenson served with the Naval Brigade in the Indian Mutiny. He was commander of the Channel Squadron. Yet this brave sailor also entered the House of Commons, as I once witnessed, in fear and trembling. At the opening of Parliament by King Edward VII in 1906 he, too, stood stock still at the Table unable to utter his Majesty’s message. Thanks to the kindly prompting of the then Prime Minister, Sir H. Campbell-Bannerman, he at last got out most of the message in nervous gasps. “The King commands--honourable House--House of Lords.” Then there was another awkward pause which Mr. Speaker Lowther, with the same admirable understanding as his predecessor in the Chair, filled up by saying, “to hear the King’s Speech read,” and, stepping from the Chair, he followed the embarrassed Black Rod down the floor.

What, then, is the meaning of this hostile banging of the door of the House of Commons in the wholly inoffensive face of the mild-mannered Black Rod? Why must the King’s Messenger humbly knock three times for admission and wait submissively on the mat outside until the representatives of the people decide to open their doors unto him? It is an episode really of great constitutional interest and moment. This

jealousy of the Commons respecting the intrusion into their Chamber of any representative of the Sovereign or the Lords recalls to us times when the Commons and the Crown were in conflict as to their respective constitutional functions, and the Lords were on the side of the Throne. It is a survival from a period of history when the House of Commons was not so free and independent, or so sacred from Royal intrusion, as it has been since the Revolution. Therefore, it is one of several quaint and curious customs still preserved in Parliament which, perhaps, seem meaningless in these days of constitutional government, so far are they removed from the realities of things, but which in far-off years were of the gravest significance.

3

The visits of Black Rod to the House of Commons are now usually attended with becoming decorum. But it is not so long ago since the Royal Messenger was greeted by a section of the Commons with irreverent laughter and sarcastic remarks. Indeed, I have heard “the invasion of Black Rod,” as it was called, made the subject of angry discussions in the House of Commons. Formerly the Royal Messenger was often announced in the middle of a speech, and the representative of the people, addressing the House, whoever he might be--whether Minister or unofficial Member--had, perforce, to resume his seat and nurse his oratorical passion to keep it warm--if that were possible under such chilling circumstances--for the quarter of an hour that business was suspended and the Speaker was away in the House of Lords. The more Radical section of the House assailed this venerable ceremony in a spirit of destructiveness. They argued that as the Royal Assent is nowadays an empty form, it might well be dispensed with altogether. That view, however, found little sympathy in the House generally. The Royal Assent is still essential to the validity of an Act of Parliament, though it is now given only on the advice of the Ministers. On the other hand, there was a general desire that the coming of Black Rod should be so timed as not to cause any awkward interruption of the proceedings of the House of Commons. The case was hardly met by the good-humoured reply which it is said one Black Rod, Admiral Sir James Drummond, made to a remonstrance on the untimeliness of his appearance in the Lower Chamber. “I fully understand your feelings on the subject,” said he, “but you ought to remember that while there are 670 Members of Parliament, there is only one Black Rod.”

But nothing was done in the matter until the session of 1890, when Gladstone was interrupted in the making of a speech by the appearance of the Royal Messenger. I well remember this incident, which may be described as historic, for it led to a constitutional change of some importance. An Irish grievance was under discussion. A politician had been sent to prison in Ireland for obstructing a police constable who was “shadowing” him, or, in other words, keeping an eye on his movements. The answer of the Government was that the man had his “legal remedy” if he felt aggrieved. Gladstone, who then led the Opposition--it was during Arthur Balfour’s term of office as Chief Secretary for Ireland--sprang to his feet, and leaning halfway across the Table, and shaking a minatory forefinger at the Irish Attorney-General, proceeded in a voice of deep severity to reprimand that learned gentleman, possibly on his use of the cold jargon of the lawyer in a matter of such weight and seriousness

as the liberty of the subject. But the Grand Old Man was stopped by the usher's shout of "Black Rod!" and, manifestly a little startled, he dropped back into his seat. Gladstone had too much reverence for ancient procedures and old-time ceremonies of Parliament to have felt any annoyance at his remarks being thus abruptly cut short, but his followers--especially the Radical and Nationalist wings--showed their resentment in the menacing glances they cast at the Royal Messenger as he walked up the floor, and the loud cheers with which they greeted the sentiment "Bother the House of Lords!" to which one of their Party gave expression.

The incident, however, was not without its amusing side. When the Speaker returned from the House of Lords he made the customary announcement of what had taken place there. "I have to acquaint the House," said he, "that this House has been to the House of Peers, where it has been announced that her Majesty has been graciously pleased to give by Commission her Royal Assent to the Suck Drainage (No. 2) Bill." A roar of laughter went up from all sides of the House. So all the row, the ill-temper, the amusement; the breaking-in upon the proceedings of the House of Commons at the moment when its most eloquent and most renowned Member was on his feet addressing it; the angry remonstrance of the Opposition; the dignified march of Mr. Speaker across the corridors to the House of Lords; the elaborate ceremony of giving the Royal Assent in that Chamber; the solemn return of the Speaker again to the House of Commons--were caused by the antics of a little insignificant river, with the comic but appropriate name of Suck, in the county of Galway, whose voracious appetite for cows and hayricks in the winter season, when its waters are reinforced by the tributes of the hills, the Bill in question was intended by drainage to curb.

Well, the drainage of the Suck indirectly led to a readjustment of the machinery of Parliament. Following the interruption of Gladstone's speech by that particular visit of Black Rod, communications passed between the Lord Chancellor on behalf of the House of Lords, and the Speaker on behalf of the House of Commons, which resulted in an arrangement being made that in future the Commons should be summoned to hear the Royal Assent given to Bills on such a day and at such an hour, arranged by these authorities beforehand, as would cause the least inconvenience or interruption of business. But the Commons continue still to bang their door in the face of Black Rod.

4

Members of the House of Commons may bring friends to see the House of Lords, and the place allotted for the purpose is at the Bar, just inside the main entrance to the Chamber, where, as I have said, there is a box for the accommodation of Black Rod. During the session of 1908, an Irish Member, Richard Hazleton, brought there a friend who wore the ancient Irish costume of saffron-coloured plaid and kilt; and as they were leaving one of the attendants conveyed to Hazleton the message from Black Rod that it was not the correct thing for him to introduce a person so attired into the House of Lords during a sitting. The then Gentleman Usher of the Black Rod was Admiral Sir Henry Stephenson, whom we have already met. Hazleton wrote to him asking for an explanation of the grounds of his objection to "the national dress of Ireland," and the answer he got was as follows:

SIR,--In reply to your letter, I must remind you that the admission to the House of Lords of friends of Members of the House of Commons is entirely a matter of courtesy, and it is my duty to make any inquiries about them that I may consider necessary.

It then transpired that a Scottish Member, Galloway Weir, had had a somewhat similar experience. A young relative in one of the Highland regiments, fresh from the South African War, and wearing his khaki uniform with kilts, who called upon him at the House of Commons, was brought by him across the lobbies to see the House of Lords. At the door Black Rod objected to the soldier entering the Chamber in his uniform. “But,” said Galloway Weir, telling the story, “I took him there, and kept him there.” Thereupon, Hazleton wrote to Black Rod, inquiring: “Why do you object to kilts, anyhow? You don’t even wear trousers yourself, and as for the rest of your costume it is hardly a model of conventional austerity--is it?” and concluding with the “P.S.”: “If you object to the Celtic costume the next time I introduce a visitor wearing it, I shall have to take a more serious view of your conduct.” Black Rod did not further reply, but, I have been told that the clothes thought proper to a gentleman on a visit to the House of Lords are morning dress or evening dress. So far as I have been able to discover, the last occasion, before that, when notice was taken of the attire of strangers visiting Parliament was in August 1855, when it was stated in the House of Commons that two soldiers in uniform, lately returned from the Crimea, had been refused admission to the Strangers’ Gallery. The Speaker said there was no rule for their exclusion--wonderful to relate!--and since then soldiers in uniform have been--again wonderful to relate--freely admitted.

Black Rod, as we have seen, is an official with many titles. Another of his rôles remains to be described. He may also be called “the policeman of the House of Lords.” Black Rod discharges in the House of Lords the functions which come within the duties of the Serjeant-at-Arms in the House of Commons. He executes warrants issued by the peers for the arrest of persons who have been adjudged guilty of a breach of their privileges or a contempt of their dignities. But it is many years now since a poor trembling wretch stood, in the custody of Black Rod, at the Bar of the House of Lords, charged with having insulted the awful majesty of what was then known as the Upper Chamber. He was a tradesman of Westminster named Bell. One winter’s evening, after he had put up the shutters of his shop, he strolled across Old Palace Yard to hear a debate in the House of Lords. He had with him an umbrella, which he left in the charge of one of the doorkeepers. He never again saw that umbrella. Another stranger, yielding to a too common weakness of humanity, carried it off, while its rightful owner--trustful of the might of the Imperial Parliament to safeguard, at least within its own sacred precincts, the property of its subjects--was drinking in political wisdom from the lips, perhaps, of that embodiment of the Empire’s force, the Duke of Wellington, then a Member of the House. The good tradesman of Westminster was naturally stirred to indignation. Unfortunately for himself, the expression of his feelings assumed a form that was subversive of the ancient privileges of the Lords. He actually issued a process against the doorkeeper of the House for the recovery of the lost umbrella. This was more than the peers could stand. One of their doorkeepers haled to a court of law as a defendant!

Lord Chancellor Eldon delivered a powerful philippic against the audacious Bell. “This address,” says a London newspaper of the day, “delivered with amazing emphasis and earnestness, occasioned an extraordinary sensation in the House.” If Bell had attempted to blow up the House of Peers he could not have been depicted in blacker colours as a villain by the enraged Lord Chancellor. Tom Moore tried to put into verse this “Speech on the Umbrella Question, by Lord Eld-n.” The satirical poem thus ended:

No, Heaven be my judge, were I dying to-day, Ere I dropt in the grave, like a medlar that’s mellow, For God’s sake--at that awful moment I’d say-- For God’s sake, _don’t_ give Mr. Bell his umbrella.

Black Rod was dispatched to arrest the shopkeeper, who was brought forthwith to the Bar and soundly rated by Lord Chancellor Eldon for his unparalleled effrontery. However, he was not consigned to the Tower. On his knees he humbly apologized for his conduct. He promised to stop his action against the doorkeeper. Then, after another severe reprimand, he was escorted ignominiously by Black Rod to Old Palace Yard, and there sent about his contemptable business.

That was the last public appearance of Black Rod as the executive officer of the House of Lords. But again and again during every session he may be seen as the King’s Parliamentary Messenger knocking humbly for admission to the House of Commons. It is a theme to rhapsodize about. This most interesting spectacle is a demonstration of the right of the representatives of the people to conduct their deliberations in secret, should they deem it necessary; to shut their doors, especially against the messengers of Sovereigns or peers; and also a declaration that no stranger, low or high, dare enter their Chamber on the floor without permission, humbly asked for and expressly granted. Therefore, these three solemn knocks of Black Rod on the door of the House of Commons make a vivid appeal to the spirit of patriotism, as well as to the historical imagination. They recall so many momentous parliamentary incidents in the long and bitter struggle for constitutional liberty, that although those of us who are not Members of Parliament may hear them only in fancy, they affect us like a trumpet blast, and we feel the impulses of our ancestors for freedom and right stirring within us still.

CHAPTER V

A NIGHT IN THE HOUSE OF LORDS

1

As the visitor to the House of Lords mounts to the public gallery he sees the following warning painted twice in bold letters on the wall, first at the foot of the staircase, and again at the top:

NOTICE.--All demonstrations by Strangers in the Gallery are out of order, and must be treated accordingly.

Strangers have frequently been expelled from the gallery of the House of Commons for disturbing the proceedings. In the long history of the House of Lords there is not a single case on record of a visitor having to be turned out of the gallery for disorderly conduct. On August 9, 1920--the day may well become historic--the proceedings were interrupted for the first time by an Irish Privy Councillor making a protest against the use of coercion in Ireland, and he spoke not from the gallery, but from more sacred precincts, the steps of the Throne. As the ordinary stranger takes his seat in the gallery and surveys the House of Lords, he sees much to charm his eye, to kindle his imagination, and even to stimulate his sense of reverence. He feels humbled, if not intimidated, by the almost religious solemnness of the place. It is glowing in gold and colours. All the glory of the “tiger moth’s deep damasked wings” gleams in its splendid decorations. Yet there is nothing gorgeous in the scene. The subdued light of a cathedral--“dim and yellow” as Shelley found it at Milan--prevails, transforming things that might otherwise strike upon the senses as garish into a delight to the eye and an inspiration to the mind. Everything heightens the impression that one is in the beautiful chapel of an ancient cathedral rather than in a modern Legislative Chamber.

The lofty stained-glass windows have blue and crimson figures of the kings and queens of England. Most of them were worldly-minded men and women, but in their antique garments, and the seeming of rapt meditation and ecstatic introspection on their faces, they appear as if clad in celestial glory and to be shining brightly as we understand saints do shine in Heaven. Between the windows are pedestals on which stand large bronze statues of knights in armour, grave and stern of aspect, leaning on their naked swords. They recall times when the battle of principles was fought, not with words by subtle-minded and ready-tongued men in frock-coat and silk hat, but with sword and battle-axe, wielded by brawny soldiers in armour on prancing steeds. These are the barons who, in the dawn of English freedom, beat out the eternal principles of Magna Charta with their mailed fists. Bold men they were, and wicked too, many of them. But here they look like patriarchs and apostles.

At the top of the Chamber is the Throne, canopied, finely carved, glistening with gold, sparkling with precious stones. The Throne of England is often spoken of constitutionally, or in the historic sense, as a metaphorical symbol of the Monarchy. If there be a material Throne of England it surely is this, for here the King sits at the opening of Parliament, and the three Estates of the Realm--the Lords spiritual and temporal and the Commons--are assembled in his presence. At that ceremony the unity of the Nation, under the headship of the Sovereign, takes visible form. It is imaginative, beautiful, moving, in its symbolism. The Throne, flanked as it is by two magnificent candelabra of brass, having wax candles in their many branches, looks like a high altar. There are two Chairs of State under the canopy. Formerly there was but one. The old chair was designed by Augustus Welby Pugin, who assisted Charles Barry in designing and erecting the Palace of Westminster. It has been in the House of Lords since the Chamber was first used in 1847, and Queen Victoria sat in it on the occasions that she opened Parliament in person. But an historical innovation marked the first opening of Parliament by King Edward VII on February 14, 1901. By command of his Majesty, the Throne was provided with a second State chair for

Queen Alexandra. It was the first time in English history that a Queen-Consort accompanied the King in equal state to the opening of Parliament. The new State chair--that on the left of the Throne--is almost an exact replica of the old in design and ornamentation, the only difference being that it is an inch and a half lower. Both chairs, with their superb carvings, gilt with English gold-leaf, and the rich embroideries of the Royal Arms on their crimson velvet backs, greatly enhance the imposing splendour of the Throne. By the side of the Throne, to the right, is a small chair for the Prince of Wales at the ceremony of the opening of Parliament.

Most things in the Chamber tell of the large place which the House of Lords has so long filled in history and tradition. You feel in the presence of an institution of which ages are the dower. Here is manifestly a survival of a very ancient constitution of society. “There is no more reason in hereditary legislators,” said Benjamin Franklin, “than there would be in hereditary professors of mathematics.” How is it then that this strange anomaly, this assembly of men who are law-makers merely by the accident of birth, still lifts its ancient towers and battlements high and dry in an apparently secure position, above the ever rising and roaring tide of democracy? There are magnificent frescoes which contribute to the storied beauty of the Chamber, and perhaps it is in the lessons which these pictures teach in the temple of the hereditary principle that the explanation of its survival is to be found. Three of the frescoes are above the Throne, set in archways with elaborate gilt mouldings. The centre one is “The Baptism of Ethelbert,” and on either side are “Edward III conferring the Order of the Garter on Edward the Black Prince,” and “Henry, Prince of Wales, committed to prison for assaulting Judge Gascoigne.” Behind the Strangers’ Gallery are three others representing the forces which are supposed to infuse the Assembly with their spiritual influences--“Religion,” “Chivalry,” and “Justice.” Has this hereditary order of legislators survived because it has taken to heart the lesson of a time which smiles at claims of long descent--the constitutional, as well as the religious lesson, of the native equality of all members of the Commonwealth?

2

It is only when the Lord Chancellor, a severely judicial figure in big grey wig and black silk gown, comes in, attended by the Serjeant-at-Arms of the House of Lords, carrying the Mace, and takes his seat on the Woolsack--that crimson lounge just inside the light railing which fronts the Throne--that the illusion of being in the splendid chapel of a great cathedral vanishes. The Mace is placed on the Woolsack behind the Lord Chancellor. Seated at the Table fronting the Lord Chancellor is the Clerk of the Parliaments, and his two assistant Clerks, in wigs and gowns. Next, in the centre of the floor, are three or four benches which are known as “the cross-benches.” Here the Prince of Wales sits when he comes to the House for an important debate. The benches are also occupied by peers of “cross-bench mind” (as Earl Granville once happily described them), who disclaim having any allegiance strictly to either of the two great political Parties. This is a fact of some significance. It indicates that there may be Lords who, to some extent at least, are independent of the Party system. In the House of Commons there are no cross-benches. Nor are they needed. There has not been in that House for many years a Member wholly

independent of pledges either to a Party or to the constituency. The elected representatives of the people are almost invariably pledged men, though since the "group system" made its appearance after the World War they are not all of the Unionist, Liberal or Labour persuasion. Even in the House of Lords the non-Party men are easily counted. I have never seen more than six or eight sitting on the cross-benches. Sometimes one may hear it contended that the Lords' high place in Society and their wealth, with their seats in their House secure, and no constituents to trouble them, must make them quite independent of Party considerations. What is forgotten is that the nature of one's politics, like one's religion, depends by no means entirely on one's position in life, but chiefly on one's mind and temperament and up-bringing. And so it is that in a way the House of Lords is just as much influenced by Party principles and opinions as is the House of Commons. The difference between the two Houses in that respect is seen in the marked contrast of the Lords' independence of the Government with the subservience of the Commons. It is unquestionable that the constant fear of a dissolution of Parliament contributes to the alacrity with which followers of the Party in power rally to the support of the Government in an emergency. The Lords never hesitate to vote against the Government--even though they are generally allied to it by Party principles--when something is proposed which is not quite in harmony with their political or class opinions. For, unlike the Commons, the Lords hold their seats for life, and a defeat of the Government in the House of Lords does not involve resignation of office, as it might do in the Commons. But if there should be at stake a Conservative or Unionist principle, the Lords are found strongly massed behind the Unionist Government, or in front of the Radical Government, impeding their path, just as much as the Unionist or Conservative Members of the House of Commons.

The peers temporal are divided into dukes, marquises, earls, viscounts, and barons--titles which take precedence in the order given--and certain of the crimson benches on each side of the Chamber are allotted to each of these grades of the Peerage by a statute passed as long ago as 1541, in the reign of Henry VIII. Yet it is only when Parliament is opened by the Sovereign that this seating of the peers according to rank is observed, though not very strictly even then. At all ordinary meetings they sit indiscriminately, dukes and barons cheek by jowl, on the right or on the left of the Lord Chancellor, according as they are attached to the Party that is "in" or "out." The spiritual peers, however, always occupy the same benches on the Government side of the House, and close to the Throne, no matter what Party may be in office. In the popular fancy, fed perhaps on novelettes of high-born society, supplemented often by cartoons dealing with the political situation, the peers attending the House of Lords are glittering beings clad in magnificent robes and golden coronets flashing with jewels upon their heads. As a matter of fact, the peers wear sober suits of customary black or grey, just like the Commons, and when a Joint Committee of both Houses sit together for the consideration of a Bill there is nothing--no, not even a strawberry mark, so far, at least, as I could see--to distinguish the hereditary legislators from the elected. It is also a mistake of Radical cartoonists--or perhaps only their fun--to depict the Lords as elderly gentlemen with a weakness for single eye-glasses, prominent noses, retreating chins, and bushy

side-whiskers, with a foolish or angry expression of face. The great majority of them are past middle age, it is true, but many are quite young men, and whether old or young, there are some fine specimens of humanity among them. In points of physique the Lords compare very favourably with the Commons. It is improbable that at any time the tenth transmitters of foolish faces, spoken of by Savage, the poet, were to be found in the House of Lords.

The spiritual peers are distinguished from the Lords temporal by their flowing black gowns and their ample lawn sleeves. The presence of the Archbishops and Bishops of the Church of England harmonizes with the religious atmosphere of the Chamber. One of their number opens each sitting of the House with prayer. During the service the Lord Chancellor kneels on the Woolsack, and the peers on each side turn to the wall and kneel or lean over the backs of the benches. That notwithstanding, the Bishops are rather an anomaly in this sanctuary of the hereditary principle, inasmuch as they are but life peers. To some strangers they may also seem a foreign element, on account of their distinctive garb. They really play a modest and retiring part in the deliberations of the House. It is true that in times past the Bishops, mitre on head and crozier in hand, metaphorically speaking, led the cohorts of the reactionary peers in stubbornly contesting every effort of the Commons to sweep away the disabilities, constitutional and educational, of Roman Catholics, Jews and Dissenters, to make civil and political rights independent of creed, to guarantee to all subjects perfect liberty of conscience and worship; and the Bishops did so, it would seem, in the odd conviction that the things they upheld were not evil, but good, and the stoutest fortifications of the Church Established. They also strongly opposed the Reform Bill of 1882. But for years they have ceased to act the part of narrow sectarians, political or religious. They have been touched with a new spirit, singularly worthy of their great office as pastors. Party politics give them no concern. They are deeply interested in Bills which affect in any degree the morals, the fortunes, the comforts, and the pleasures of the poor and the disinherited. Everything that tends to spiritualize the national life, every effort to lessen the sobbing of suffering humanity, may count upon their fullest support.

A new peer is introduced with a ceremony that suggests a religious rite of initiation into a higher order of mankind. He is brought in from the ante-room behind the Throne by two Lords of his own rank in the peerage who act as sponsors. The three are wearing their scarlet and ermine robes--the white bars of ermine indicating their rank like the chevrons on the sleeves of non-commissioned army officers. Accompanying them are the Earl Marshal in his robes, Garter King-of-Arms (head of the College of Arms), wearing his tabard emblazoned with the Royal Arms, and Black Rod carrying his baton. At the Woolsack the new peer bends his knee as he presents a roll of parchment to the Lord Chancellor--the patent of his peerage from the Crown. This document is then read aloud at the Table by the Reading Clerk. It specifies the title by which the new peer is to be known. In ancient times the dignity of peerage was attached to the possession of land. A peer is still named in his patent as being of a particular place, chosen by himself for family or other personal reasons; but it is no longer necessary that he should have a landed estate there, or indeed anywhere else. When the patent has been read and the writ of summons produced, the oath of

allegiance is sworn to by the new peer, and he signs the Roll. Then he is conducted by Garter King-of-Arms to the bench of his rank in the peerage--viscount or baron usually--and sitting there, with his sponsors on either side, he and they rise three times, take off their cocked hats and bow to the Lord Chancellor, who, having put on his three-cornered hat for the ceremony, uncovers at each salute. As the new peer passes out with his sponsors he stops at the Woolsack to be welcomed with a hand-shake by the Lord Chancellor.

3

What a contrast is presented by the two Houses in deliberation! They deal with the same topics. Yet they suggest, in all their aspects, points of difference rather than of comparison. The life and spirit of the Chambers are entirely distinct. The Commons are responsive, emotional and boisterous. They have their disorderly scenes. The atmosphere of the House of Lords, on the other hand, is ever calm and serene. How quietly and reposefully are its discussions conducted! There is little rivalry or competition among its Members. As a rule the attendance is scanty, except on occasions when an urgent summons is issued for an important Party division. There are as many Lords as there are Commons; but three Lords form a quorum, while in the Commons forty Members must be present to “make a House.” It is, however, provided by the Standing Orders of the Lords that if on a division it should appear that thirty peers are not present the business in hand must be adjourned. Twelve or twenty peers scattered over the expanse of red benches is a common spectacle. Oftentimes the low-voiced peer speaking in the solemn hush of the superb Chamber might be likened to some solitary being appealing on an abstruse subject to a company strange and indifferent to him. Certainly, the nobles are politely listening to the speech. But if there is no imperious haughtiness in their demeanour, there is that which, perhaps, is worse--a coldness which nothing, seemingly, could melt. Their way of listening, some with an equanimity chilling but well bred, others with a lounging listlessness, adds to the curiously unreal effect of the proceedings. The bustle and restlessness of the Commons are here unknown. Nothing heartier than a low and perfectly polite laugh disturbs the solemnity of the Chamber. A murmuring “Hear, hear” does duty for a shout of approval. The stirring sense of life and reality that pervades the representative Chamber is usually altogether wanting in the hereditary. What the Lords lack most is enthusiasm. They do not excite each other. They do not make each other shout and laugh and tremble and cry as the Commons do. Only on the faces of the Bishops will you find that look of anxious sympathy which is the secret of those who come into close contact with people and affairs. On the episcopal benches there is usually a glow of apostolic zeal.

No wonder, then, that over the strangers in the gallery, there steals a most subduing spell. Are not these placid and intensely modern gentlemen in frock-coats and tall hats, sitting on the red benches below, really the statues; and the barons on the pedestals above arrayed in all the panoply of combat, from plumed crest to spurred heel, the living, pulsing beings? See, the heads of the knights are bent as if they were listening with the deepest attention. Surely, if they were but addressed by an orator of intense and glowing mind, they would raise their voices in tempestuous

uproar and shake their swords and lances with thunderous menace! Even so, the stranger in the gallery would be but all the more petrified into silence!

I was in the Reporters' Gallery of the House of Lords on August 9, 1920, when there was an unprecedented interruption of the proceedings by a stranger. The subject of discussion was a new Coercion Bill for Ireland, one of the proposals of which was to substitute courts-martial for trials by jury. I noticed in the railed space before the Throne--which is reserved for sons of peers and Privy Councillors who are not peers--an elderly looking man with a grey beard, restlessly moving about as if he were in a perturbed mood of mind. Immediately the Lord Chancellor (Lord Birkenhead) finished his speech moving the second reading of "this drastic but very necessary Bill," as he described it, the man near the steps of the Throne called out in a loud voice, "My Lords, if you pass this Bill you may kill England, not Ireland!" A strange voice coming from so unaccustomed a quarter, where no one save the King ever addresses the House, naturally somewhat startled the peers. Some of them, however, did no more than turn their heads in curiosity. The Lord Chancellor on the Woolsack looked round to see who it was that was speaking immediately behind him, and then, with upraised right hand, hurriedly signalled to an attendant; but before the latter could approach, the man walked away and disappeared into the ante-room behind the Throne.

The interrupter was the Right Hon. A. M. Carlisle (late of Harland and Wolfe, Shipbuilders, Belfast), a member of the Privy Council of Ireland.

The peers at their next meeting agreed that the interruption was "a serious affront to the dignity of their House," and Earl Curzon, as Leader of the House, wrote at their request to Mr. Carlisle, calling his attention to the gravity of his offence, and inviting him to make to the House such explanation as he thought it proper to furnish. Mr. Carlisle was impenitent. He declined to apologize. "Their Lordships," he wrote, "were about to pass a measure which had for its object the wanton destruction of the constitutional liberties of my countrymen. Under such conditions as those the petty restraints of procedure may justly give place to the righteous indignation, not merely of an honest patriot, but all true lovers of freedom." On August 16th their lordships, on the motion of Earl Curzon, unanimously passed the following resolution: "The Right Hon. A. M. Carlisle, having abused the privilege of being admitted to the steps of the Throne by disorderly conduct on August 9, 1920, should be debarred from the exercise of the privilege in future." Had the episode occurred in 1820, or even later, the interrupter would undoubtedly have been sent to the Tower. Yes, but how Carlisle would have gloried in being a prisoner of the House of Lords!

The unchanging difference between the Lords and the Commons is vividly presented in the _Diary_ of the Earl of Shaftesbury, the philanthropist. He had had the advantage of many years' experience in the House of Commons as Lord Ashley before he was called to the House of Lords on the death of his father. On the evening of the day that he took his seat in the House of Lords, June 28, 1851, he wrote in his _Diary_:

It seems no place for me; a “statue gallery,” some say a “dormitory.” Full half a dozen peers said to me within as many minutes, “You’ll find this very different from the House of Commons. We have no orders, no rules, no sympathies to be stirred.” Shall I ever be able to do anything? They are cold, short, and impatient. But God has willed it, and I must, and by His grace, will do my duty.

He spoke the very next day--though briefly and with apologies for addressing their lordships so soon--on the second reading of his Bill for the inspection and registration of lodging-houses, which he had carried through all its stages in the House of Commons, and was now--an unprecedented occurrence--to conduct through all its stages in the House of Lords. In the course of the debate the Marquis of Lansdowne hoped that Lord Shaftesbury might pursue in the House of Lords the career of philanthropy and social reform he had followed in the House of Commons. Commenting on this in his _Diary_ the earl writes:

It is, however, a totally different thing and far less stirring, far less gratifying. Success here is but a shadow of success there, and little can be gained, little attempted.... One of the most striking effects to me on removal from the House of Commons is my absolute ignorance of the political movements, thoughts and facts of the day. Everything of importance revolves round the centre of the Commons’ House. Unless you be there to see it, hear it, feel it, you get it at second-hand, and then only half.

Two days later he writes:

The difficulties of the House of Lords seem to thicken as I survey them. Everything must be done between five and half-past six, or you will have no auditory; consequently there is an unseemly scramble for the precedence, and a terrible impatience after you have got it. Yet I have received many expressions, and heard of more, that I should rouse them, and give them business to do, and in some measure “popularize” the House.

He achieved one success, at any rate. On July 8th of the same year he made a speech in favour of giving to local authorities powers for the erection of model lodging-houses, which was well received and even cheered. “My surprise knew no bounds,” he writes, “I had warmed Nova Zembla!” The Commons are often in the session summoned to the Bar of the Lords. Should the Commons ever summon the Lords to their Bar it will be a stern call to the realities. And the Lords will probably receive it without lifting an eyebrow in surprise.

Yet it is true to say that on great Party issues, or on subjects of high national consequence, debates in the House of Lords are often sustained throughout at a higher level of argumentative power than debates in the House of Commons. Discussions, of course, are of shorter duration in the Lords. The Commons take a week or a fortnight to thrash out a topic which the peers will exhaust in a single sitting. More eloquent speeches are made in the representative Chamber; but between them frequently are long intervals of dull and pointless talk. In the Lords, as a rule, only the ablest and most distinguished peers venture to take part in a big debate; and the speeches, sober and serious in tone, give the impression that they are

delivered because there is really something to be said, and not--as is too often the case in the House of Commons--because one has to say something in order to get mentioned in newspapers for the satisfaction of one’s constituency.

The debates in the House of Lords are not only models of grave discussion. In them is also often displayed to a remarkable degree matured statemanship and administrative experience. Some of the highest living authorities on many subjects are usually to be found in the House of Lords. Archbishop Magee remarked that nothing struck him more in the House of Lords than the large amount of special knowledge it possessed. No matter how generally little known the subject of discussion might be, he said, some obscure peer was certain to rise on a back bench and show that he had made a particular study of it.

The House is not composed even mainly of landed aristocrats. In it are numbers of men who have distinguished themselves in the most varied capacities--merchants, manufacturers, lawyers, soldiers, bankers, journalists, civil servants, administrators of distant parts of the Empire, who have all been promoted to the peerage for their success in business, for their practical experience of affairs, or for their services to the State. Moreover, many peers who have succeeded to seats in the House of Lords had the advantage of previously serving in the House of Commons. John Wilson Croker, in a letter written shortly before his death in 1857, mentions that going over to the Lords from the Commons one evening he noticed, as a fact, “not unimportant to constitutional history,” that every one of the thirty peers then present had sat with him in the House of Commons. “It shows,” he says, “how completely the House of Commons has been the nursery of the House of Lords.”

CHAPTER VI

THE LORD CHANCELLOR, HIS POWERS AND DUTIES

1

But it is not alone the difference in the demeanour of their Members that accentuates the contrast between the two Chambers. In forms of procedure also there is a wide divergence. On the Order Paper of the Lords the day and the month are still given in Latin, as they have been for centuries. In February 1866 the first House of Commons led by Gladstone agreed to the substitution of English for Latin. Although the Lord Chancellor presides at the deliberations of the House of Lords (save in Committee on a Bill, when his place is taken by the Lord Chairman of Committees), he possesses none of the duties and powers which are vested in the Speaker of the House of Commons. The Speaker must be a Member of the House of Commons returned as the representative of a constituency. The Lord Chancellor need not necessarily be even a peer. Lord Chancellor Brougham presided over the House of Lords in November 1830 before the patent of his creation as a peer had been issued. The Speaker is elected by the House of Commons. The Lord Chancellor is appointed by the Government, and is, in fact, a leading member of the Cabinet. In the House of Commons a Member speaking addresses himself to “Mr. Speaker.” In the

House of Lords it is not the Lord Chancellor who is addressed, but the whole House. “My Lords,” each peer begins. Another curious distinction between the Speaker and the Lord Chancellor is that while the Speaker cannot take part in debate--“he must not sway the House by argument,” as the old order has it--the Lord Chancellor joins in every important debate in the interest of the Government. When the Lord Chancellor rises to speak he moves away several paces to the left of the Woolsack. There is a special significance in that movement. It is sometimes accounted for by the statement--which is true--that the Woolsack is technically outside the Chamber. But the real explanation lies in the fact that the Standing Orders of the House direct that if the Lord Chancellor speaks on any question for himself, and not as the “mouth of the House,” he is to go to his own place as a peer. Hence, he steps aside from the Woolsack. On other occasions, when, for instance, he puts a motion to the House for decision, he stands up right in front of the Woolsack.

The Speaker is the sole judge of all questions of order in the House of Commons. The Lord Chancellor, or the Lord Chairman of Committees, has no authority to rule a peer out of order for any word or act whatever. In the House of Lords, if there be a conflict of opinion or personalities, or any breach of order or decorum, the matter is decided by the whole House, and not by the Lord Chancellor or the Lord Chairman of Committees. When several Members rise simultaneously to take part in debate, as happens frequently in the House of Commons, the Speaker decides which shall speak first by calling him by name. But if two or more peers rise together in the House of Lords, each insisting on speaking, the Lord Chancellor has not the power of deciding who shall first be heard. It is the voice of the House which determines the question. The Lord Chancellor, powerless to interpose effectively, must content himself with looking silently on at the scene, and, to judge from the expression on his face, speculating in a spirit of curiosity as to what would happen next. Of course, if it pleases him the more, he may give vent to his feelings by joining in the hubbub, like any other peer. The Standing Orders of the House puts the impotence of the Lord Chancellor in language of almost crude violence. According to Order No. 20, even the Lord Chancellor himself--

Is not to adjourn the House, or to do anything else as the mouth of the House, without the consent of the Lords first had, except the ordinary things about Bills, which are, of course, wherein the Lords may likewise overrule; as for preferring one Bill before another, and such like, and in case of difference among the Lords, it is to be put to the question.

Happily, so strong is the sense of order and demeanour in the Lords, that when the House expresses its desire to hear one of the peers contending for its ear, by calling out his name, the others at once resume their seats. But there was once a notable Party wrangle over the question which of two peers, who had risen simultaneously, one from the Liberal benches and the other from the Tory benches, should speak first. Neither peer would give way to the other. To bring the deadlock to an end, Earl Granville, then Leader of the Liberal Party, moved that the Liberal lord be heard. The House divided on the motion, and decided by a large majority that the Tory peer should be the first to speak. In the session of 1870 Lord Campbell proposed a new

Standing Order giving power to the Lord Chancellor or Lord Chairman of Committees to decide the succession of Members who desired to speak in a debate; but he ultimately withdrew it owing to the widespread feeling among the peers that the ruling of all questions of order should remain vested in the House as a whole. But with a view to the avoidance of such disputes, it is now the custom, when a long debate is in prospect, for the Whips of both sides to arrange beforehand the order in which peers who desire to take part in it shall speak.

2

It may be asked, Why should not the Lord Chancellor be allowed to exercise the authority which lies in the chairman of every meeting of determining the order in which those desirous of joining in a debate shall speak? All the peers are supposed to be equal, however they may differ in degree. In no one of them can authority over his fellows be vested. In fact--as the Irishman is said to have said--one man is as good as another, and twenty times better. Therefore, when a point of order arises, it must be decided by the whole House, and not by the Lord Chancellor. The only right the Lord Chancellor possesses is the right common to every peer, that of calling attention to an irregularity. In a debate on the employment of Chinese coolies in the Transvaal mines, on June 28, 1905, Lord Chancellor Halsbury rose to a point of order. But he was careful to say that in doing so he was but simply exercising his right as a Member of the House. “Of course,” said the Marquis of Ripon, then Leader of the Liberal Opposition, “the authority of the noble and learned earl on the Woolsack is great, but I wish to point out that as a matter of order he has no more right to call anybody to order than any other, even the youngest, peer in this House.” “No, but I have the right to protest,” said the Lord Chancellor. “I said I had no greater but no less a right than any other Member of your lordships’ House.” “I do not deny,” said Lord Ripon, “that the noble and learned earl has the same right.”

Should the proceedings in the Lords become very disorderly, the only means provided for bringing the scene to an end is the reading by the Clerk of two old Standing Orders dealing with asperity of speech and personal quarrels. In Committee on the Ballot Bill of 1872, the discussion, or rather the recrimination between noble lords on different sides of the House, became so inflamed that a motion was made to have these Standing Orders read. The Reading Clerk did read them with most impressive emphasis, and, lo and behold! the demon of unruliness was exorcised, and the debate was resumed in a cool and amicable manner. Quaintly worded, indeed, are these Standing Orders for soothing the ruffled tempers of the peers. The first, passed so long ago as June 13, 1628, is as follows:

To prevent misunderstanding, and for avoiding of offensive speeches, when matters are debating, either in the House or at Committees, it is for honour sake thought fit and so ordered that all personal, sharp or teasing speeches be forborn, and whosoever answereth another man’s speech shall apply his answer to the matter without wrong to the person: and as nothing offensive is to be spoken, so nothing is to be ill taken, if the party that speaks it shall presently make a fair exposition, or clear denial of the words that might bear any ill-construction; and if any offence be given in that kind, as the House itself will be very sensible thereof, so it will sharply censure

the offender, and give the party offended a fit reparation and a full satisfaction.

The second Standing Order, which was passed August 9, 1641, says:

For avoiding of all mistakes, unkindnesses, or other differences which may grow to quarrels, tending to the breach of peace, it is ordered that if any lord shall conceive himself to have received any effront or injury from any other member of the House, either in the Parliament House or at any Committee, or in any of the rooms belonging to the Lords' House of Parliament, he shall appeal to the Lords in Parliament for his reparation, which if he shall not do, but occasion or entertain quarrels, declining the justice of the House, then the lord that shall be found therein delinquent shall undergo the severe censure of the Lords' House of Parliament.

3

Yet what potentialities of contention and uproar in the House of Lords lie in the hereditary principle--in the extraordinary privilege that certain men, solely because they are the eldest sons of their fathers, without any regard to their moral any more than to their mental qualities, become, indefeasibly, Members of this renowned Legislative Assembly. There is only one bar, be it remembered, to the right of succession to a seat in the House of Lords. That is bankruptcy. It is not so very long ago since English law regarded property as more sacred even than human life. The English Constitution still disqualifies its hereditary legislators for want of financial integrity, but not for lack of character. A bankrupt cannot sit in the House of Lords, but a blackguard may.

Conduct undignified need not be feared from the few aged and high-minded peers of whom the House of Lords in session is usually composed. Nothing can disturb the habitual self-possession of these quiet and sedate gentlemen, nothing can surprise or annoy them, nothing can discompose the fixed decorum of their looks and demeanor. However wistfully they may look back upon their own stormy youth, they may always be relied on, in the respectability and solid seriousness of their old age, to treat the House with the reserve that is due to its ancient dignity. But, then, there are the young and frivolous bloods of the peerage, who are so noted for their physical virility and their high spirits. Supposing they were to bring into the House of Lords the levity and wilfulness and violence in which they have been nurtured--the wild practical jokes and fisticuffs of the Public School, the rowdy diversions of the University, the "ragging" of the Army? How they could turn the solemn House topsy-turvy! Unhampered as the play of their caprices and antics would be by rules of order, what a disruptive and demoralizing element they might introduce into this select and tranquil and most sedate circle of dignified legislators! What a spectacle, if under the eager gaze of the crowded Reporters' Gallery they first were to lock up "Black Rod" in his box, overpower the Serjeant-at-Arms with a knock of his Mace, and then--in imitation of the Irish tenants of old who used to compel the process-server to swallow the latitats he came to serve them with--proceed by force to feed the unhappy Lord Chancellor on the Woolsack with slips of the pious maxims of the seventeenth-century Standing Orders!

What splendid newspaper copy! What public sensation! What notoriety for the young scapegraces! They could not be haled before the police magistrate. If they were brought to justice at all it could only be through the splendid, stirring ordeal of an impeachment before their peers. They could not be expelled from the House. Its doors could not be even temporarily closed against them. Nor need they have to fear being brought to account by constituencies justly inflamed by their outrages on the sanctity and dignity of Parliament. In all seriousness, a few young irresponsible peers, united in mischief, might easily turn the House of Lords into an assembly more unruly even than the House of Commons is at times--unless they, too, should fall, as is probable enough, under the sobering influence of the solemn atmosphere of the place, and, like their elders, be content to possess their souls in peace. I once saw a young peer who was speaking called to order by an elderly one, on the ground that his remarks were not quite relevant, and, to my surprise, he made no attempt to go on with his speech, but sat down at once, without any apparent sense of humiliation or even of embarrassment. He was frozen out.

In the absence of regulations as to order and debate, peers of eccentric habits occasionally cause a good deal of trouble, not unmixed, happily, with amusement. I remember well the droll antics of the second Lord Denman, who died suddenly in 1894, at the grand old age of ninety. To the very last he attended the sittings. A tall, gaunt figure, with a grey melancholy face, surmounted by a red skull-cap, his hands covered with white gloves and leaning heavily on a stick, he would roam about the Chamber, sitting where he listed. He had always a pet topic. For many years it was the dire necessity of the provision by the railway companies of carriages labelled “Men Only.” By Bill and by motion, in season and out of season, he enlarged upon the danger to men travelling alone on the railway of being black-mailed by unscrupulous women. “Even in smoking carriages we are not safe from these false frail ones,” he would exclaim. A common habit of his was to interpose in some debate on foreign complications, or some equally serious subject, to ask whether the Government had yet thought fit to compel the railway companies to provide compartments for men only; and having put the question, he would hobble out of the Chamber, well knowing, no doubt from experience, that no answer would be given.

In later years Lord Denman took up, curiously enough, the subject of the extension of the franchise to women. Session after session he brought in a Women’s Suffrage Bill. His speeches in support of the measure were invariably rambling and rather incoherent discourses on all sorts of irrelevant topics. Once when he was appealed to by the Leader of the House to keep to the point, he bridled up and exclaimed: “I may not be your equal in debate, but I am the match of any one of you in my shirt-sleeves.” Each of the noble lord’s Bills was brushed aside by the customary parliamentary motion of rejection--that it be read “this day six months.” It happened one session, when Parliament continued its sittings for a longer period than usual, that the period of interdiction expired before the prorogation; and the noble lord, turning up on “this day six months,” claimed the fulfilment of the motion that the Bill should then be read! But, like all his Bills and motions, it was “resolved in the negative.” On another day, in a different session, that he had the Bill down for second reading he did not hear the Clerk call upon him to move the motion, owing to his deafness; and his

surprise was comical to witness on ascertaining that, as all the business down for the day was transacted, the adjournment of the House had been moved. Then the sight of the dispersing peers turned his anger to fury, and, addressing the Lord Chancellor, as that high personage was ceremoniously retiring from the Chamber, he called out, “If you wait for a minute, I’ll assist your progress with the toe of my boot!” The reporters were accustomed to dispose of his long and rambling speeches in a line--“After a few words from Lord Denman,” etc. This led him once to exclaim: “It’s my firm belief that no newspaper reporter will be permitted to enter the Kingdom of Heaven.”

Another unconsciously humorous figure in the House of Lords, of a more recent date, was Lord Stanley of Alderley. Unlike Lord Denman, he had no special subject or grievance to ventilate. In fact, he took the whole world for his province. Great, indeed, was the variety of the topics upon which he spoke in one and the same speech. He was just as irrelevant as Lord Denman and more deaf. He would place on the notice-paper a question calling attention to the state of affairs in Uganda. For a time--but only for a very brief time--his speech would relate to that particular matter. Then suddenly he would be heard discussing the heavy burden of the rates, the difficulty of access to the Houses of Parliament owing to the congestion of traffic, the advantage of the rotation of crops in agriculture, the danger to the Nation of the fall in the birth-rate, and the evil effects of Ritualism in the Church of England. It was not easy for the Reporters’ Gallery to follow him, owing to his indistinct utterance, but always when he finished his speech he would throw the manuscript on the desk of the official shorthand writer, who has a seat on the floor of the House, and it would be printed fully in _Hansard_.

However rambling Lord Stanley of Alderley might be, there was no power in the House to stop him. He missed his train on a day that a Bill to allow the deceased wife’s sister to marry her brother-in-law was down for consideration; but as he had written out his speech on the wrongs of that lady, he was determined that it should not be wasted. Accordingly, at the next sitting, when the House was discussing the opening of museums on Sunday, he joined in the debate and enlarged at great length on his sympathy with the sister of the deceased wife. So deaf was the noble lord that the reply on behalf of the Government to any of his questions was quite lost on him. He might be seen gazing fixedly at the Minister, with a pitiful look of helplessness on his face. One day a happy thought struck him. He got one of the Clerks at the Table to write out for him a summary of the answer of the Minister as it was being delivered. This custom he followed till the House of Lords knew him no more; and as he leaned over the shoulder of the Clerk, reading the transcription of the Ministers remarks, he could be heard muttering to himself: “Does he really say that? How ridiculous! How ridiculous!”

4

The division which follows a debate in the House of Lords brings out another distinction between the Lord Chancellor and the Speaker. The Speaker is debarred from voting in a division. The vote of the Lord Chancellor is taken, though he does not pass through the division lobby like the other peers. The Lord Chancellor, however, has no casting vote. If the numbers in a division should be equal, the

“Not-Contents”--or those who support the negative--prevail. In other words, the position remains unaltered. A matter can only be reversed or changed by a majority. In the House of Commons the issue, in a like contingency, would be decided by the casting vote of the Speaker.

The only function of a chairman which the Lord Chancellor is empowered to perform is that of “putting the question.” This is done in the same form as in the House of Commons, save that “content” is used for “aye” and “not-content” for “no.” “As many as are of that opinion say ‘content,’” says the Lord Chancellor, “the contrary ‘not-content.’” A division is then challenged on the motion. “The Contents will go to the right of the Throne,” continues the Lord Chancellor, “and the Not-Contents to the left of the Bar.” Two tellers are appointed on each side, carrying white wands, and the peers pass through the division lobbies, just outside the Chamber, to have their votes counted and names recorded. The tellers on each side are included in the numbers, differing from the practice in the House of Commons, where the tellers are not counted. When the tellers return to the Chamber a slip of paper containing the numbers is given to the Lord Chancellor, who thus announces them: “Contents, 89; Not-Contents, 16.” “The Contents have it,” adds the Lord Chancellor, and so the motion is carried.

But what, after all, is the main distinction between the two Houses of Parliament? It was the custom at one time to describe them officially as the “Upper” Chamber and the “Lower” Chamber. The terms are still in use, though more for convenience sake than in the sense of implying difference in rank and position. Bills which originate in the Commons are “sent up” to the Lords. The Lords, however, are careful to endorse these Bills with the simple words, “Brought from the Commons.” On the other hand, the Commons, when issuing a new writ for a constituency vacated by the succession of its representative to a peerage, describes the outgoing member as “called up to the House of Lords.” Thomas Creevey relates that, discussing with Wellington the relative positions of the two Houses, the great soldier declared that able men were lost by being in the House of Lords. “Nobody cares a damn for the House of Lords,” said he. “The House of Commons is everything in England and the House of Lords is nothing.” That was in 1818. Much has occurred since then still further to exalt the House of Commons. That House has absorbed in itself all the main powers of the State. Social position and wealth are as strongly entrenched as ever in the House of Lords, and are as stoutly defended as ever by the Conservative instinct in politics by which the majority of its Members are moved. That House, all the same, fills but a secondary position in the Constitution. Its suspensory veto, by which it could delay the passing of great changes until they had been directly sanctioned by the country, was abolished by the Parliament Act of 1911, providing for the carrying of Bills that have passed the Commons in two sessions, however the Lords might object.

Structurally, the two Chambers are in a position of equality. Passing from one to the other, you have neither to go upstairs nor downstairs. Long corridors separate them, but should their doors be open the Speaker and the Lord Chancellor may see one another face to face across the level distance.

There can be no question, however, that æsthetically the House of Lords is on a vastly higher plane than the House of Commons. From that point of view it may be said the Commons appeal to the material cravings of human nature, and the peers to its emotional and more poetic side. The House of Commons is pushful, eager, striving, noisy. The House of Lords is calm and dignified, cultured, polished. The qualities that find the greatest scope in the House of Commons--energy, resolution, enterprise--contribute in a higher degree, perhaps, to social and political advancement, though it may be doubted whether in their operation they tend to distinction and refinement. By passing the Parliament Act, 1911, the Radical Government really gave to the Lords a long renewal of the lease of their House, subject to certain conditions that they must not unduly interfere in the political business of their neighbours in the adjoining House. But it appears to me that in these democratic and drab times the best justification of the existence of the Lords would be provided by spectacles of patrician pride and superb elegance, and oratory of a pomp worthy of their beautiful and stately Chamber.

CHAPTER VII

THE LORDS AS THE SUPREME COURT OF APPEAL

1

The House of Lords is a judicial tribunal as well as a legislative assembly. Sitting as the Supreme Court of Appeal, it gives to the law, which it assists in passing, its final interpretation according to the occasion and necessity of a particular case. As such it is the ultimate resort of the suitor who thinks an injustice has been done him by a decision of any of the Law Courts. Its judgment in the case is conclusive, and can be set aside only by Act of Parliament.

The judicial sittings of the House of Lords are unaffected by the adjournment, prorogation, or even the dissolution of Parliament. They are held as frequently as the list of appeals awaiting trial during term requires. The public are freely admitted. A visitor, moved solely by curiosity, seldom finds his way there, and yet to see the highest court of justice in the land at work is well worth while. With the legislative House of Lords the public is quite familiar. Little is generally known of the judicial House of Lords. The distinction between the two does not appear, at times, to be clearly understood.

In its composition, its procedure, and its environment, the House of Lords is utterly unlike any other Court. The Lord Chancellor enters the Chamber, wearing his long flowing robe and full-bottomed wig. He is preceded by the Serjeant-at-Arms, bearing the Mace on his shoulder, and by another officer of the House called the Purse-Bearer, carrying a richly embroidered satchel, which is supposed to hold the Great Seal of which the Chancellor is the Lord Keeper. The other Law Lords are already in their places. The Lord Chancellor takes his seat on the Woolsack and the Mace is placed behind him. The presence of the Mace indicates that the House of Lords is in being, whether for legislative or judicial purposes. The House always

opens its proceedings with devotions. Prayers for Divine light and leading in the debates or trials are said by the junior Bishop, or, in his absence, by the Lord Chancellor. The responses are given by the other Law Lords.

But the doors of the Chamber have not yet been opened to the litigants and their counsel. Apart from the Lord Chancellor and the Law Lords, the only persons present at devotions are the Serjeant-at-Arms, the Purse-Bearer, one of the Clerks of the House, who takes minutes of the proceedings of the Court, its orders and judgments, and the Yeoman Usher of the Black Rod. After prayers the Clerk reads the title of the first appeal case on the list. “Call in the parties in the case,” says the Lord Chancellor to Black Rod, and thereupon the doors of the Chamber are thrown open. Immediately inside the portals is a low oak partition, or barrier, running across the Chamber. This is the Bar. Here the lawyers, litigants, and general public assemble. In the centre of the barrier there is a sort of pen, in which the Speaker stands when the Commons are summoned by Black Rod to the House of Lords, and within it counsel for both appellant and respondent, with their solicitors, are accommodated when the House sits as the Court of Appeal. The Lord Chancellor comes down from the Woolsack and takes his seat at a temporary table, spread with a scarlet cloth, placed near to the Bar. The other Law Lords sit on the front benches to the right and left of him, each having a small movable table provided with pens, ink and paper, and a copy of a book, purple-bound, containing the statements of the case on which the rival parties in the appeal about to be heard respectively rely. Unlike the Lord Chancellor, the Law Lords are in ordinary morning attire. How strange it seems that while in all the lower Law Courts the judges are distinguished by the imposing trappings of their office, here, in the Supreme Court of Appeal, the Lord Chancellor alone wears wig and gown. It is another indication that what we are witnessing is a sitting, not really of a Law Court, but of the House of Lords. The forms and procedure of a legislative body, rather than of a Law Court, are observed.

2

Every peer has the right to assist in the proceedings of the House of Lords, whether it sits as a Court of Appeal or as a branch of the Legislature. But in practice lay peers do not now interfere in the appellate business of the House, and the hearing of appeals is left entirely to what are called Law Lords. It was not always so. By an Act passed in 1824 every lay peer was bound to attend the House when it sat as a Court of Appeal at least once in a session, under a penalty of £50. Three Lords have always constituted a House for judicial as well as for legislative purposes. At that time the Court often consisted of the Lord Chancellor, or one of his surviving predecessors in office, and two lay peers. The decision in the appeal was, however, always left to the Law Lord. The lay peers were simply dumb figures brought in to form the quorum of three necessary to enable business to be transacted. Several attempts were unsuccessfully made to remedy this state of things before a solution was found. With a view to strengthening the legal element in the House by making peers of ex-Judges of the High Court, it happened in 1856 that Queen Victoria, on the advice of Lord Palmerston’s Government, revived the right of the Crown to make life peers which had been in abeyance for 400 years, and issued a patent creating Sir

James Parke, formerly a Baron of the Exchequer, Lord Wensleydale “for and during the term of his natural life.” The Lords were jealous of their hereditary rank and privileges. They disputed the right of the Crown to create peerages for life, and contended that hereditary peers only could have seats in the House. “The very essence of Nobility,” said Lord Malmesbury, “is in the succession to the title by posterity.”

The Law Lords joined in the protest. They regarded the relegating of a law peerage to a lower or secondary class in dignity as a dishonour to their profession. Lord Lyndhurst, a Law Lord then in his eighty-sixth year, reappeared in the House of Lords to lead the opposition. “What has the profession of the law done to merit this indignity?” he asked. But it was on the ground of privilege that he mainly relied. He insisted that as the Constitution, being unwritten, was one of usage, no act of the prerogative which, like the creation of a peerage for life, had fallen into complete disuse for centuries, could be revived without the sanction of an Act of Parliament. Other constitutional authorities argued that prerogatives of the Sovereign cannot become obsolete by reason that they are not used, and are never abrogated except by Act of Parliament. Finally, the peers passed a resolution declaring that the patent in question conferred only the empty title of “Lord,” without the right to sit and vote, and the Government, bowing to the storm, made an hereditary peer of Baron Wensleydale, with the customary right of succession to “heirs male of his body lawfully begotten.”

In 1872 the constitution of the House of Lords as the final Court of Appeal again became the subject of public discussion. Lord Hatherley, the Lord Chancellor of Gladstone’s Administration, brought in a Bill to abolish the appellate jurisdiction both of the House of Lords and of the Judicial Committee of the Privy Council--which hears appeals from India and the Dominions--and to create, instead, an Imperial Court of Appeal for the decision of all cases of the kind which went hitherto to these separate and independent tribunals. The feeling among the Lords was strongly against any invasion of their ancient right to revise on appeal the judgments of the Courts of Law, and the Bill consequently had to be withdrawn. In the following year Lord Selbourne--who had succeeded to the Woolsack, in the same Administration, on the resignation of Lord Hatherley owing to failing eyesight--introduced another Supreme Court of Judicature Bill. It proposed to substitute for the duplicate machinery of the House of Lords and the Judicial Committee of the Privy Council one Court of Appeal consisting of nine judges, sitting in three divisions. Strange to say, the Bill this time passed both Houses. The Lords had now surrendered by Act of Parliament their judicial functions. However, they soon repented of their action, and not too late to prevent the change taking effect. Parliament restored what Parliament two years before had taken away.

3

In 1876 Lord Cairns--then the Lord Chancellor of Disraeli’s Administration--also tried his hand at the reorganization of the judicature system. The Appellate Jurisdiction Bill he brought in was passed and came into operation. By it the judicial functions of the Lords were preserved, and the House, as the Supreme Court of

Appeal, was made more efficient. Formerly the House, sitting as the Court of Appeal, was often constituted, as we have seen, of one Law Lord and two lay peers. The Act of 1876 provided that at least three Law Lords shall be present at the hearing and determination of appeals. The Lord Chancellor of England continued to be the president of the Court. Four Lords of Appeal in Ordinary were specially created by the Act of 1876 to assist in the discharge of judicial business. The qualification required of a Lord of Appeal in Ordinary is that he has been a Judge of the Superior Courts for not less than two years, or that for not less than fifteen years he has been a practising barrister in England or Ireland, or a practising advocate in Scotland. The number of Lords of Appeal in Ordinary was subsequently increased to six. It is now generally accepted that one should represent Scottish interests, another Irish interests, and the remaining four English interests. Each has a salary of £6,000 a year, with a pension of £4,000 a year on retirement, and the rank of a Baron. Though a Lord of Appeal in Ordinary receives a writ of summons to sit and vote as a peer in the House of Lords as a branch of the Legislature, his peerage is but a life one, and, accordingly, his title does not descend to his heir. Besides these paid Law Lords, it was provided that hereditary peers who had held high judicial offices should, ex officio, be entitled to take part in the hearing of appeals. So by gradually established usage the judicial sittings of the House of Lords are attended only by the Law Lords. It would be lawful for lay peers to attend and to vote, but it would not be constitutional.

The Appellate Jurisdiction Act of 1876, under which the offices of Lords of Appeal in Ordinary were appointed, expressly provided that each of the holders of these offices “shall during the time that he continues in his office of Lord of Appeal in Ordinary, and no longer, be entitled to a writ of summons to attend and to sit and vote in the House of Lords.” In other words, a Lord of Appeal in Ordinary, on ceasing to hold office, retained his title as a peer, but lost his seat in the House of Lords. This was the position of a Lord of Appeal in Ordinary until 1887, when another Appellate Jurisdiction Act was passed, enacting, among other things, that a retired Lord of Appeal in Ordinary is to continue to be a Member of the House of Lords for life. It was under its provisions that Lord Russell of Killowen retained his life peerage and a seat in the House of Lords after his promotion from a Lordship of Appeal in Ordinary to the Lord Chief Justiceship. By passing these two Acts, providing for the appointment of life peers to discharge legislative as well as judicial functions, the House of Lords surrendered their claim that none but hereditary peers should sit and vote. Lords of Appeal in Ordinary sometimes speak in debates on questions of party politics even at the ordinary meetings of the House.

4

An appeal may be made to the House of Lords from any order or judgment in a civil suit of the Court of Appeal in England, the Court of Appeal in Ireland, or the Court of Session in Scotland. Before the case has reached any of these appeal courts it must, of course, have been heard and decided in a lower tribunal, so that the question at issue has been the subject of a judgment in at least two courts--the court in which the suit originated and the Court of Appeal--before it comes finally before the House of

Lords. If the litigant who has lost in the Court of Appeal retains his faith in the justice of his cause, or is advised by counsel that the decision is against the law, he can obtain from the House of Lords a definite and conclusive judgment. But this final pronouncement by the highest legal authorities in the land on the point at issue is a very costly thing to obtain. The appellant who seeks to have the verdict of the court below reversed must give as security for costs--should the judgment of the House of Lords be against him--his personal obligation to the amount of £500, and the bond of a surety for £200. There are also the fees of the agents and counsel, which are very high. The respondent, or the party in whose favour the Court of Appeal has decided, is not required to give security for costs, but should he be defeated in the House of Lords, he may be ordered to bear portion of the expenses of the appellant.

Something else, besides giving security for costs, is required of the appellant beforehand. An appeal to the House of Lords is brought by way of petition. It must be addressed “To the Right Honourable the House of Lords,” and set forth that it is “the humble petition and appeal” of So-and-so, praying that the judgment in such-and-such a case “may be reviewed before his Majesty the King in his Court of Parliament, in order that the said Court may determine what of right and according to the law and custom of this Realm ought to be done in the subject-matter of such appeal.” The petition must be printed on parchment. Its prayer must be supported by two counsel, who have appeared for the appellant in the Court of Appeal, or propose to plead for him before the House of Lords. Several copies of the counter cases of the disputants, printed in clear type on quarto sheets, and bound in book form, at the expense of the appellant, must be lodged with the petition. It is also necessary to supply copies of the book bound in purple cloth for the use of the Law Lords.

The case opens at once. No preliminary objections of a technical nature or applications for adjournment are allowed. Such points are previously dealt with by a Committee of the House of Lords called the Appeal Committee, which is appointed at the opening of every session to relieve the House of the task of seeing that the Standing Orders have been complied with by appellant, and of dealing with any objection of the respondent to the appeal being heard, or with any application for an extension of time. There is no bustle and no excitement. The methods of the Court are austerely judicial. No witnesses are examined. It is all argument. Brow-beating is, therefore, unknown. Two counsel are heard on each side. Though lawyers who are Members of the House of Commons are precluded from practising as counsel before any Committee of the House of Commons, or from advising upon any Private Bill, or other proceeding before Parliament, they may plead at the Bar of the House of Lords in all judicial cases. The lawyer who opens the case stands at the centre of the Bar, and in a placid conversational style states at great length the facts and the points of law upon which he relies. Then counsel on the other side leisurely and with similar amplitude unfolds the case of his client. Their lordships listen with unwearied patience and the closest attention to the speeches. They interpose with questions only to seek information, or to make intelligible a point laboured by counsel. They may even be heard commenting on the obscurity or confusion of Acts of Parliament bearing on the case which the House of Lords, and, perhaps their lordships themselves, have had a share in framing. Judgment is not, as a rule, delivered at the

close of the arguments. Knotty legal problems, or delicate and difficult points of equity, are always involved in these appeals, and therefore their lordships allow themselves plenty of time for the consideration of their judgment.

5

On the day of judgment the Law Lords are not disposed in quite the same way as they were on the day the arguments were heard. The Law Lords are again sitting on the front benches close to the Bar, with their little tables before them; but the Lord Chancellor is now on the Woolsack. Rising from his seat, the Lord Chancellor reads his judgment from a manuscript, and concludes by moving that it be agreed to--that the appeal be affirmed, altered, or reversed, as the case may be. The Lord Chancellor is followed by the other Law Lords, in the order of precedence, each reading from a manuscript, in like manner, reasons justifying the decision to which he has come. All begin their addresses with the invocation, “My Lords.” They are supposed to be not Judges delivering judgment in a case, but Members of the House of Lords as a legislative assembly stating in debate the reasons why the House should take a particular course in regard to the question before it.

When all the Law Lords have spoken, the question at issue is put in exactly the same form as if the House were sitting for the purposes of legislation. Should the Lord Chancellor have, for example, arrived at a decision hostile to the appellant, he says: “The question is that this appeal be dismissed. As many as are of that opinion will say ‘Content’; of the contrary opinion, ‘Not-Content’” and then he adds, “The Contents have it.” The House is usually unanimous in its decisions. But should there be a conflict of opinion among the Law Lords, judgment is pronounced in accordance with the views of the majority. It is possible, however, that there may not be a majority one way or the other. In the event of their lordships being equally divided in opinion, the decision of the Court of Appeal stands affirmed, and each party has to pay his own costs. With a view to avoiding such a result it is usually arranged that the tribunal should be composed of an uneven number of Law Lords. The Lord Chancellor, in cases where the issue has been decided unanimously or by a majority, finally declares: “The judgment of the House is that this appeal be dismissed, and that the appellant do pay the respondent’s costs in the appeal.” The decision thus given is the judgment of the House of Lords, and it is entered as such in the Journals of the House. It does not make the law, nor alter the law. It interprets and fixes the law. What it says is the last word on the tangled legal point at issue. The fiat is final, and irrevocable save by Act of Parliament, for Parliament, as was once said, can do anything, except make a man a woman or a woman a man.

CHAPTER VIII

PARLIAMENT AND THE PRESS

1

That it is a high indignity to, and a notorious breach of the privilege of, this House for any news-writer in letters or other papers (as minutes or under any other

denomination), or for any printer or publisher of any printed newspaper of any denomination, to presume to insert in the said letters or papers, or to give there in any account of the doings or other proceedings of this House, or any Committee thereof, as well during the Recess as the sitting of Parliament, and that this House will proceed with the utmost severity against such offenders.

The above resolution, drawn up by the Speaker, Arthur Onslow, was adopted unanimously on April 13, 1738--a time when the magazines were audaciously reporting the debates--to give emphasis to much earlier declarations of the inviolable secrecy of Parliament. It still stands unrepealed in the Journals of the House of Commons. And yet, for many years now, about 200 journalists have been employed in the Press Galleries of the two Houses, the Lobby of the House of Commons--in which the London correspondents and the writers of political notes get most of their interesting gossip during the session--and in the committee-rooms of both Houses upstairs, where commercial projects which need parliamentary sanction and special matters of public policy are investigated before the Bills or resolutions embodying them are passed into law. There are five varieties of the parliamentary journalist. The largest and most important of the groups are the reporters of the debates and committees. Then there are the sketch-writers; the Lobbyists; the writers of London letters, and the artists. The diversity of their work has the common unifying aim of satisfying the inquisitiveness of the public in regard to Parliament.

The secrecy of the debates in Parliament, which, as Macaulay says, would now be a grievance more intolerable than ship-money or the Star Chamber, was inseparably associated with constitutional freedom before the Revolution of 1688. It was a precaution devised to protect the country party--the first fore-runners of democracy--against the displeasure of the King. In 1641 the Commons made it a breach of privilege for a Member to deliver out a copy, or notes, of anything that was brought into their House, or propounded or agitated there. In the very next year Sir Edward Dearing published a collection of speeches which he had made in the House. It was innocently done. Nevertheless, a resolution was solemnly passed by the House ordering the book to be publicly burnt by the common hangman, and committing Dearing to the Tower. But in later times the objection of Parliament to any publication of its debate was due to an intense jealousy of its independent authority, and resentfulness of any attempt to bring popular, or outside, influence to bear upon it. In 1788 the growing practice of giving in the newspapers accounts of what was being done in the House of Commons was denounced by the Speaker as “a reflection on the dignity of the House.” A Member said that if such publications were not sternly repressed, “Parliament would be talked of, when it did amiss, with the same freedom as any other set of men whatever,” and Sir Robert Walpole, then at the head of the Government, declared that if the debates were to be hawked up and down the streets for sale, the House would be looked upon as the most contemptible Legislative Assembly on the face of the earth.

This discussion arose on a complaint that the _Gentleman’s Magazine_ was making the reporting of Parliament one of its main features. Its editor, Edward Cave, was brought to the Bar of the House and condemned to fine and imprisonment. But the

reporting of the debates went on, for it sent up the circulation of the _Gentleman's Magazine_. So as to evade the Standing Order against printing or publishing in print anything relating to the proceedings in Parliament, the magazine resorted to the expedient of giving its reports the heading "Debates in the Senate of Great Lilliput," and only the first and last letters of the speakers' names with a -- in between. Dr. Samuel Johnson was subsequently employed as the parliamentary reporter of the _Gentleman's Magazine_, and his versions of the debates made the oratorical reputation of some of the statesmen of the eighteenth century. "The eloquence of Greece and Rome is revived in the British Senate," said Voltaire. He had probably read some of Johnson's reports, and these reports were written by Johnson in a garret off the Strand, as he said, without ever having been down to the House of Commons, and possessed of no more material than the names of the speakers and a few notes supplied by Cave. Johnson also told Boswell that he "took care the Whig dogs should not have the best of it," a saying which explains a thing that greatly puzzled Sir Robert Walpole the Whig. "He had read," he said in the House of Commons, "professed debates of the House, wherein all the wit, learning and argument appeared on one side, and on the other nothing was shown but what was low, mean and ridiculous, and yet, strange to say, the division had gone against the side which, according to the report, had reason and justice to support it." Well, even nowadays the division is carried by the big battalions of the Government, without reference, sometimes, to the right or wrong of the question at issue. At least, so it is said.

2

The first of the parliamentary reporters, in the real sense of the term, was William Woodfall (brother of Henry Woodfall, editor of _The Public Advertiser_, in which the famous political letters signed Junius appeared); for he was the first to publish reports of the debates in both Houses on the following day in _The Morning Chronicle_, from 1769 until 1789, and afterwards in _The Diary_, which he established for himself. His method of reporting was entirely an effort of memory. As the taking of notes was prohibited by the Orders of the House, his custom was to sit in the Strangers' Gallery during a debate, with his eyes closed, leaning both hands on his stick and listening intently. He was popularly supposed to be endowed with something like supernatural powers, and such was his fame that the first question of the visitor from the country, on entering the House of Commons, was, "Which is Memory Woodfall, and which is the Speaker?"

Woodfall's versions of the speeches were accepted in his day as wonderful examples of accuracy. In our times, when reporting has attained so high a perfection, they would be regarded as inadequate and possibly garbled summaries. Still, they reflected with far greater faithfulness what was actually said than the more or less imaginary reports of Dr. Johnson. It is to Woodfall that we owe the best report extant of one of the most renowned of parliamentary orations--the speech in which Sheridan moved in the House of Commons on February 7, 1787, that the spoliation of the Begums of Oude should be included in the articles of the impeachment of Warren Hastings. So great was the sensation caused by this speech that the Prime Minister, William Pitt, consented to the adjournment of the House for the extraordinary reason

that the minds of Members were too agitated to continue the discussion of the question. I have read Woodfall's version in _The Morning Chronicle_ of the following day. The newspaper is a small sheet of four pages, with four columns each. The report of the speech fills just a page, and is preceded by the following modest apology:

It would be the most arrogant presumption in the Reporter of a newspaper were he to attempt to follow Mr. Sheridan under an expectation of its being in his power to do him justice. A faint sketch of the outlines of his speech which, like the title to an elegant and copious work, may give the reader an idea of the nature of the contents, is all that can be pretended to, and we heartily wish we were able to do even that better; but we ardently hope the speech will be given to the public completely and correctly in a separate publication.

Sheridan spoke for five hours and a half, and, at the average rate of speaking, he must have uttered at least 32,000 words. Woodfall's report contains only 4,000 words, just one-eighth of what Sheridan must have said. If the oration were reported fully and in the first person, as great parliamentary speeches are now reported, it would fill sixteen columns of _The Times_, and could hardly have been got into two numbers of _The Morning Chronicle_ of 1787. Woodfall merely gave the compressed essence of Sheridan's argument, making no attempt to reproduce the fire and energy of the orator. "Mr. Sheridan," says he in the course of his report, "whenever occasion offered, animated his speech and gave it abundant variety and attraction by blending glowing expressions and figures of rhetoric with his pursuit of detail and his narration of facts." To report Sheridan fully and accurately must have been a difficult feat.

3

At the opening of the nineteenth century the hostility of Parliament to the Press had almost entirely subsided. The reporters were no longer regarded as pernicious interlopers and eavesdroppers in the galleries and lobbies of Westminster. No longer had they to take fugitive notes by stealth or rely entirely upon their memory, in order to escape the harrying of the officials. Members had tasted the delight of seeing their opinions in print, and, to be sure, they liked it. But the reporters still pursued their avocation arduously under many difficulties. They had to scramble for places in the Strangers' Gallery with mere sightseers. In those days the reporters were allowed to take notes on the back-row of the Strangers' Gallery. It was the worst place in the gallery for seeing and hearing; but notebooks and pencils were still an unholy sight in the eyes of the Speaker, and the reporters, sitting in darkness, and so remotely that their heads were but three feet from the ceiling, were unobserved from the Chair. Even to secure seats on the back-row the reporters had to be early at the door, especially on important occasions, for they had no recognized title to the bench as against other strangers, and it was a case of first come first seated.

The year 1803 is memorable in the history of the Reporters' Gallery as witnessing the first official recognition of the existence of the reporters, and the breaking with the ancient fiction of Parliament that in deliberation it is neither seen nor heard by

the public. Mr. Speaker Abbot then acknowledged the right of the reporters to the exclusive occupation of the back-row of the Strangers' Gallery. It came about by an accidental circumstance, rather than through the operation of general causes. One night William Pitt was expected to make a great speech on the war with France. A crowd gathered before the door of the gallery, and in the general rush for the seats the reporters were unsuccessful. The occupants of the back-row refused to budge, even when the reporters held out to them the alluring prospect that if they would only give up their seats they might read Pitt's speech in print. Consequently, instead of the usual parliamentary report appearing in the papers next day, there was given only an account of the difficulties under which the reports were made as an explanation why nothing that Pitt had said was made public. The result was that on May 24, 1803, Abbot wrote in his _Diary_: "Settled with Serjeant-at-Arms that the gallery door should be opened every day, if required, at twelve; and the Serjeant would let the housekeeper understand that the newswriters might be let in in their usual places (the back-row of the gallery), as being understood to have the order of particular Members like any other stranger." Not only was the back bench thus reserved to the reporters, but soon after a door was constructed giving them special access to it, and a room for writing was also placed at their service. Simple though it appears, what a stage in the democratization of the State is marked by this incident! The statesman had come at last to understand that he could no longer afford to address himself solely to the House of Commons, that if he was to succeed in his mission he must appeal to the people outside, and that he could reach them only by favour of the newspapers.

One of the most famous of parliamentary reporters is Charles Dickens. He was nineteen years of age in 1831, when he joined _The True Sun_ (his father being engaged in the same capacity for _The Morning Chronicle_), and he subsequently reported for _The Mirror of Parliament_ (a short-lived rival to Hansard) and also for _The Morning Chronicle_. In May 1865, presiding at the dinner of the Newspaper Press Fund, he gave an interesting and amusing glimpse of his experiences as a parliamentary reporter. "I have worn my knees," said he, "by writing on them on the old back-row of the old gallery of the old House of Commons; and I have worn my feet standing to write in a preposterous pen in the old House of Lords, where we used to be huddled together like so many sheep, kept in waiting, say, until the Woolsack might want restuffing."

Dickens, indeed, was a witness of that mighty event--the official establishment of a Reporters' Gallery in both Houses of Parliament. In the temporary building that was erected for the Commons after the fire of 1834 a separate gallery was provided for the Press. The day it was first occupied, February 19, 1835, should be for ever famous. The Lords preceded the Commons by three years in recognizing that a Reporters' Gallery had become an essential adjunct to Parliament. At the opening of the nineteenth century the reporters were permitted to stand with other strangers below the Bar of the House of Lords, and listen to the debates. In time the taking of notes was allowed, provided it was done furtively, or with some pretence of concealment. One evening Lord Chancellor Eldon came down to the Bar to receive from Mr. Speaker a message from the Commons, and with the expansive sleeve of his

flowing gown knocked the notebook from the hand of a too forward and indiscreet reporter, Samuel Carter Hall, a well-known writer in his day. For a moment the panic-stricken attendants were fearful of dismissal for not having kept the reporter in his proper place. The journalists were convinced it was their last appearance at the Bar. But it was the unexpected that happened. The mighty Lord High Chancellor, in his wig and gown, before that assembly of Lords and Commons, actually stooped and picked up the notebook, and with a smile and a word of apology handed it to the reporter. From that evening all the ridiculous make-belief that no notes were being taken of the proceedings was at an end. On the ever memorable October 15, 1831, the Lords took the sensible and yet portentous step of providing a gallery for the reporters. The recognition of the Press by the Commons came in 1850. When the present Chamber was opened for the first time in that year it was found to contain a Reporters' Gallery, not as an excrescence or makeshift, but as an integral part of the Assembly, extending the whole width of the Chamber over the Speaker's Chair. Then a remarkable thing occurred. The Chamber had a lofty Gothic roof, similar to the beautiful roof of the House of Lords, but it was found to affect injuriously the acoustic properties. And the Prime Minister, Lord John Russell, and the Leader of the Opposition, Sir Robert Peel, actually went up to the Reporters' Gallery personally to put the matter to the test, with the result that the Commons went back to their temporary Chamber for another two years until the present glass ceiling was constructed, thus willingly reducing the architectural splendour of their House in order that the reporters might hear and publish their speeches. The complete and final act in the evolution of the Reporters' Gallery took place in 1909 when both Houses appointed official staffs to report their proceedings, in continuation of the old record known as _Hansard_, which was compiled as a private enterprise.

4

Special tickets of admission are issued to the Press representatives by the Serjeant-at-Arms for the House of Commons, and by the Lord Great Chamberlain for the House of Lords. The number of men composing a reporting staff varies on different newspapers, and ranges from five to twelve. But be the staff large or small, the system of working is identical in every case. The reporters follow each other in regular rotation and at stated times, according to the roll, or list, drawn up by their chief. The "turns" are usually a quarter of an hour, to begin with, and are shortened, first to ten minutes, and subsequently to five minutes, as the night advances, bringing nearer the hour at which the newspaper is to be printed. The object of this system of relays and short "turns" is to get the "copy" speedily to the compositors. The entire staff is quickly brought into operation; the preparation of the report begins within less than half an hour after the House opens, and thenceforth until the close of the sitting there is a regular conveyance of "copy" by messengers from Westminster to the printing offices in the Strand and Fleet Street, or to the London offices of the provincial newspapers, whence it is telegraphed to the place of publication. When his "turn" is over, and he is relieved by his successor, the reporter goes to one of the writing-out rooms. He has a choice of several large and comfortable rooms in which to transcribe his notes. This extensive suite of apartments has been added to from time to time since the opening of the House of Commons in 1852.

Then there are the sketch-writers who produce descriptive summaries of the proceedings, giving pictures of the scene in the House, the characteristics of its leading personages, and describing the varying effects of a great speech in a debate--the passages that were loudly cheered or ironically greeted. The function of the parliamentary correspondent, or “Lobbyist,” as he is commonly called, differs entirely from both reporting and sketch-writing. The Lobbyist frequents the Lobby of the House of Commons, with the special permission of the Speaker and the Serjeant-at-Arms, on the search for news.

“The Lobby,” by which name the antechamber of the House of Commons is known, is a spacious square hall. Its four symmetrical walls are of limestone of a rather drab colour, with floriated embellishments, and have windows of painted glass. The ceiling is of carved oak, with coloured armorial devices. The tessellated pavement, into which the motto “God Save the Queen” has been worked, has probably been trodden by more distinguished men and women of every race than have walked the floor of any other hall in the world. Under lofty archways of exactly similar proportions and arrangements are four massive swing-doors with glass panels, through which Members and visitors continually come and go while the House of Commons is sitting. One door gives entrance from the fine Central Hall, to which the general public have admittance; the opposite door leads directly into the Legislative Chamber; the door to the right admits to the refreshment-rooms, libraries, and smoking-rooms of the Members; and its opposite door leads out into New Palace Yard. Such is the outward semblance of that famous Lobby of the House of Commons, which is often more the centre of political activity than the Legislative Chamber itself. Bill after Bill may be introduced in the House, and business may be progressing with the surety and uneventfulness which all Governments desire, but to get at the true inwardness of things political one must walk the Lobby. There it is that events are turned over and discussed from the inside. It is there you will learn what is going on behind the scenes, the secret moves and counter-moves in the great fight for place and power between the rival political Parties.

Here, then, the parliamentary correspondent gathers the political gossip of Members, the official communications of Government and the Opposition, and serves them up in crisp paragraphs, often with spicy personal comments, in the “London Letters” of the provincial Press, or in the columns headed “Political Notes” of the London morning papers.

5

It was my privilege once to witness statesmen absolutely refusing to allow the great machinery of Parliament to be put in motion because of the absence of the reporters. That remarkable event took place in the House of Lords on December 2, 1902. The Education Bill of the Unionist Government was before the House. The peers met that day for the resumption of the debate on the second reading at four o’clock, instead of a quarter-past four, their usual hour, but by an oversight no notification of the earlier sitting was conveyed to the Press. The result was that the Reporters’ Gallery was empty when the time came for the Marquis of Londonderry, President of the Council of Education, to address the House, and in the circumstances

his lordship naturally declined to speak. The reporters took their places in the gallery at a quarter-past four, and Lord Londonderry, seeing them ready with notebooks and pencils, rose and delivered his speech. What an absolute change in the point of view of statesmen since William Woodfall sat in the Strangers' Gallery of the House of Commons with closed eyes, endeavouring to fix on his memory the points of the discussion, and, later still, Charles Dickens stood for hours with tired feet among the crowd at the Bar of the House of Lords furtively reporting!

"There are three estates in Parliament," said Macaulay once in a speech in the House of Commons, "but in the Reporters' Gallery yonder there sits a fourth estate more important than them all!" By means of the fourth estate, or the Press--its relentless observation, its ceaseless criticism--Parliament has been brought completely under the domination of the people. The numbers of those who closely and jealously watch the proceedings of Parliament have, through the agency of the newspapers, become multitudinous. Each Member of the House of Commons is thereby impressed with a deep sense of his responsibility to the millions outside, and especially to that section of them by whose favour he sits in the Assembly. The influence the Press has upon him is twofold. So splendidly public is the stage of the House of Commons, so vast is the audience of interested onlookers, that he is stimulated to do his best in the service of the State--to achieve great things, if he has the capacity so to do, as well as the desire--and at the same time he is oppressed with the uncertainty of his position; and knowing that those who made him M.P. have the power to unmake, he has often to stoop in order to placate them and keep them in good humour with himself. Thus has the Reporters' Gallery at once made sweet and bitter the career of the politician, filling it with resounding fame, adding to its cares and drudgery.

CHAPTER IX

THE KING'S PARLIAMENTARY REPORTER

1

During the session of Parliament the King receives every night a report of the proceedings of the House of Commons. It is written by the Comptroller of the Household, a political office held by a Member of the Government, whose duty it is to convey all messages from the Commons to the Sovereign. In his absence the report is supplied by one of the Junior Lords of the Treasury, who are assistant Whips. The report was formerly written by the Prime Minister, if he were a Member of the House of Commons, or by the Leader of the House when the Prime Minister was a peer, and it was delivered to the Sovereign next morning, giving an account of the chief subject of discussion in the House, with descriptive particulars and personal comment, of the kind now so familiar to newspaper readers in the "Parliamentary Sketch." During Mr. Balfour's last term of office as Prime Minister the writing of the letter was taken over by the Home Secretary. Later on another change took place by which a telegram was substituted for the autograph letter, and the sending of the report in this form

devolved upon the Comptroller of the Household, or, failing him, to one or other of the Whips. The custom now is to telegraph a summary of the proceedings, running to 500 or 600 words, to the King every night about ten o'clock.

The story of "The King's Parliamentary Reporter," as the office may be called, tells of an interesting development in the relations between the Sovereign and the Parliament which is practically unnoticed in the great text-books on the British Constitution.

The King of England labours under one curious disability. He may not hear a debate in the House of Commons. Admission to the Representative Chamber, which is open to his lowliest subject, is constitutionally denied to the Sovereign. The King is the head of Parliament. According to the theory of the Constitution, his Majesty summons Parliament to meet in order that it might advise him in the government of the realm. Indeed, he is supposed theoretically to preside over its deliberations. Yet it has long since come to pass that the actual presence of the Sovereign in Parliament, except on certain ceremonial occasions, would be regarded as unconstitutional. The King cannot appear at all in the House of Commons. He may attend in the House of Lords to open Parliament, to give the Royal Assent to Bills which have passed both Houses, or to prorogue Parliament at the end of the session. The Royal Assent is given, as we have seen, by Lords Commissioners on behalf of the Sovereign. The functions of prorogation are similarly discharged. It may therefore be said that the only occasion on which the King may appear in person in Parliament is at the State opening of a new session.

Is it not an extraordinary circumstance that Queen Victoria, during the course of her long reign of sixty-three years, was never in the House of Commons? She never saw "her faithful Commons" at work! It happened that in a letter to one of her Prime Ministers she chanced to use the expression, "If I were in the House of Commons." The Indian Mutiny was raging. News of disaster after disaster was coming by every mail. In those dark days her Majesty wrote the note in which the words occurred to Lord Palmerston, then Prime Minister, asking, perhaps rather impatiently, whether the Government were really alive to the gravity of the situation. Palmerston, in his reply dated July 18, 1857, assured her Majesty that the Government were taking every possible measure to meet the terrible emergency. Then he became awkwardly gallant and heavily jocose in the following fashion:

Viscount Palmerston may perhaps be permitted to take the liberty of saying that it is fortunate for those from whose opinions your Majesty differs that your Majesty is not in the House of Commons, for they would have had to encounter a formidable antagonist in argument, although, on the other hand, those whose opinions your Majesty approves would have had the support of a powerful ally in debate.

The presence of a member of the Royal Family in the House of Commons on an historic occasion aroused the ire of a section of the Members. On January 27, 1846, Prince Albert sat in the Peers' Gallery of the House of Commons to hear the opening of the debate on Sir Robert Peel's resolution for leave to introduce a Bill for the abolition of the Corn Laws. A few nights subsequently, before the debate had

terminated, Lord George Bentinck, a vehement opponent of the resolution, and the leader of the Protectionists, charged the Prince with having come to the House to show his sympathy with Peel's proposal. "The Prince Consort allowed himself," said the Tory squire, "to be seduced by the Minister of the Crown to come down to this House, to usher in, to give éclat, and, as it were by reflection from the Queen, to give the semblance of a personal sanction of her Majesty to the measure." Queen Victoria, as well as Prince Albert, keenly resented this insinuation and taunt. The Prince was never again seen in the House of Commons. It would seem, however, as if there was some foundation for the belief that the Prince did come to the House of Commons at the earnest wish of Sir Robert Peel and the Duke of Wellington, who both thought his presence might in some way appease the wrath of the great county magnates at the proposal to repeal the Corn Laws. Greville mentions in his _Journal_ that the Prince was present "to mark the confidence of the Court" in the Government. It was the first time that a member of the Royal Family attended a debate in the House of Commons. The Prince of Wales is sometimes seen in the Peers' Gallery nowadays, and no one dreams of suggesting that the visit is meant to influence the House.

2

It is out of order to use the name of the Sovereign in debate. During the public excitement aroused in 1876 by the proposal of Disraeli, then Prime Minister, to confer the title of "Empress of India" on Queen Victoria, Robert Lowe, who had been Chancellor of the Exchequer in the preceding Liberal Government, speaking at a political dinner, said the Queen had unsuccessfully endeavoured to induce two previous Prime Ministers to confer the title upon her, and that then, it would appear, a more pliant tool had been found. Attention was called to the speech in the House of Commons on May 2, 1876. Lowe contented himself with denying the right of any Member to call him to account for anything he might choose to say outside the House, so long as he violated none of the privileges of Parliament.

Disraeli rose and said he was authorized to make a statement on behalf of the Queen. He had pointed out to her Majesty, he said, that the name of the Sovereign could not be introduced in debate, and therefore it rested with the House to say whether or not he should make the statement. Mr. Speaker Brand said that if the statement related to matters of fact, and was not intended to influence the judgment of Members, he was not prepared to say that, with the indulgence of the House, her Majesty's name might not be introduced. Disraeli then stated, on the authority of the Queen, that she had never made any proposal to any Minister for any change in the Royal title. Lowe, speaking in the House two days later, withdrew his statement and expressed extreme and sincere regret that it had put the Queen to the disagreeable necessity of making a communication to the House.

The point arose in the House of Commons again on March 29, 1908. The House was in Committee of Supply, when it was urged that in the administration of Crown property every opportunity should be availed of to encourage a system of small agricultural holdings. Then followed this curious dispute between an Irish Member and the Chairman of Committees, Mr. Emmott.

Mr. W. Redmond (Clare, E.) said he was sure the Sovereign would be delighted to get the people back on the land, and would not stop to consider whether he could get a few pounds more from this tenant or that. (Cheers.)

The Chairman: The hon. Member has used the Sovereign’s name in order to influence the House. That is out of order.

Mr. W. Redmond: I have had the satisfaction of saying what I wanted to say.

The Chairman: That is an improper remark to make. I must ask the hon. gentleman to withdraw it.

Mr. W. Redmond: With great respect, I decline to withdraw it.

The Chairman: I must ask the hon. gentleman not to disregard the authority of the Chair.

Mr. W. Redmond said his remark elicited the sympathy of the House, and he ought not to be penalized for making it. (Cheers.) If he could not use the name of the Sovereign he would say the Crown, and he hoped that would be in order. (Laughter and cheers.)

3

But in early times it was customary for the Sovereign to be present in the House of Lords, and even to take part in its proceedings. Later on the Sovereign visited the Upper Chamber merely as a spectator. Charles II found a few hours spent there a pleasant interlude in the gaieties of the Court at Whitehall. “It is as good as a play,” said the Merrie Monarch. On the first occasion that Charles entered the House of Lords for this purpose the peers were in Committee on some Bill, and the House immediately resumed to ascertain the meaning of the unexpected and unceremonious visit of the Sovereign. He told them, in reply, that he meant to follow the example of his ancestors, who often attended the debates in the House of Lords. But he was kind enough to add that their lordships need not be disconcerted by his Royal presence, and that he would not mind if they were even to wear their hats.

James II, William III, and Anne also frequently attended the debates in the House of Lords. The custom was discontinued by George I on his accession to the Throne in 1714, but solely for the reason that as he did not know a word of English the debates were not likely to afford him instruction or amusement. The last occasion on which a Sovereign was present at a debate in the House of Lords was on January 12, 1710, when Queen Anne came down to hear the peers on the subject of the war with Spain. Since then no King or Queen has been present in the House of Lords, save at the opening or proroguing of Parliament.

Charles I was the only Sovereign that ever crossed the threshold of the House of Commons. The occasion was the memorable January 4, 1642, when he sallied out of Whitehall, and, leaving 300 armed men in Westminster Hall, suddenly entered the House to seize the five Members--Hampden, Pym, Halles, Strode and Hazelrig--who, along with Lord Kimbolton, had been the day before impeached for high treason in the name of the King at the Bar of the House of Lords. The peers, nevertheless,

refused to order the accused Members to be taken into custody, and Charles came to effect their capture himself. He strode up to the chair, wearing his hat, and, addressing Mr. Speaker Lenthall, said: “By your leave, Mr. Speaker, I must borrow your chair a little.” Lenthall came down and stood by the table, as the King from the dais looked around to see if the five who dared to dispute his Royal will were present. But, as he said himself, “the birds were flown”; and so commanding Lenthall to “send them unto him as soon as they returned hither,” he left the Chamber, followed by a shout of “Privilege, privilege!” from Members incensed by this unconstitutional intrusion upon their deliberations.

The Commons’ _Journal_ deals in a perfunctory fashion with the historic episode. “His Majesty,” it states, “came into the House and took Mr. Speaker’s chair: ‘Gentlemen, I am sorry to have this occasion to come unto you,’” and then the record breaks off abruptly. But as the King stood on the dais haranguing the Commons, he observed John Rushworth, the assistant Clerk, who sat at the table beneath him, apparently taking down his words in strange characters. What could those curious dots and strokes and curves mean? Immediately after he left the Chamber the King made inquiries to satisfy his curiosity, and on being informed that Rushworth wrote a system of shorthand, he at once sent “Black Rod” for the Clerk, and commanded him to give him a copy of his speech. Rushworth in vain represented the danger he ran of punishment by the Commons if, in breach of its ancient privilege, he reported to his Majesty anything that had been spoken in the House. “I do not ask you to tell me what was said by any Member of the House, but what I said myself,” said the King. So the Clerk wrote out the speech, and his Majesty had it printed and circulated next morning.

It was George III who first thought of having a parliamentary report all to himself. If he could not go down to the House of Commons to listen to the debates, he arranged to have an account of them furnished to him at the earliest possible moment and from the highest and most authentic source. It was useless for him to go to the newspapers for the information. In fact, his Majesty took care that the newspapers should publish parliamentary intelligence only at the risk of heavy fines and long terms of imprisonment. During the exciting contest between John Wilkes and the House of Commons, from 1763 to 1770, as to whether, in consequence of his writings in his newspaper, the _North Briton_, he was a fit and proper person to sit as the representative of Middlesex, the populace, who sympathized with Wilkes, were anxious to know how it fared with their hero, and they naturally turned to the newspapers for news. Some of the newspapers tried to justify their existence by publishing brief summaries of the debates. Their enterprise aroused the ire of George III. “It is highly necessary,” he wrote in deep dudgeon to Lord North, the Prime Minister, “that this strange and lawless method of publishing debates in the papers should be put a stop to.” “Strange and lawless!” How strange--aye, and how lawless!--these adjectives sound in these days of unfettered parliamentary reporting! The ordinary courts of justice were unreliable, apparently, for the purpose of punishing the editors. “Is not the House of Lords, as a court of record on which we can rely, the best court to bring such miscreants before, as it can fine as well as imprison,” the King continues, “and as the Lords have broader shoulders to support

any odium that this salutary measure may occasion in the minds of the vulgar?" But while George III thus endeavoured to keep from his subjects all knowledge of what their representatives were doing and saying, he determined that he himself should be duly informed of the proceedings of the House of Commons. He therefore commanded Lord North, the Leader of the House of Commons, to send him a report nightly, and North complied, despite the regulation which Parliament enacted years before, in the times of the Stuart Kings, that in order to guard against the arbitrary interference of the Crown in its proceedings the Sovereign should neither hear its debates nor give credit to reports of them. In this way was the post of the King's Parliamentary Reporter created.

4

It was the custom for the Minister to use the third person, and to address the Sovereign in the second, in these communications. One of the earliest examples available was sent to William IV, dealing with a motion by Mr. Spencer Perceval, a religious fanatic, for a General Fast owing to the disturbed condition of the country. It is as follows:

DOWNING STREET, _January 27, 1832_.

Viscount Althorp presents his humble duty to your Majesty, and has the honour to inform your Majesty that the debates in the House of Commons began last night by a motion by Mr. Perceval for an address to your Majesty to appoint a General Fast. Mr. Perceval excluded strangers on this occasion; there is not, therefore, any account of the debate--or, rather, of his speech--in the newspapers. Viscount A. had endeavoured to prevent him from making the motion by informing him that it was the intention of your Majesty's servants to advise your Majesty to issue a proclamation for this purpose. Mr. Perceval was not, however, satisfied by this, and persevered in making the motion, stating that he thought the suggestion ought to originate in the House of Commons. Mr. Perceval spoke under the highest state of excitement, with a Bible in his hand, from which he made quotation for an hour and three-quarters; but was at last persuaded to allow the motion to be negatived without a division.

The first parliamentary report received by Queen Victoria was written by Lord John Russell, as Leader of the House of Commons, on June 22, 1837, a few days after her Majesty's accession to the Throne:

Lord John Russell presents his humble duty to your Majesty, and has the honour to report that he presented to the House of Commons this day your Majesty's Gracious Message. He then moved an Address of Condolence and Congratulation which was seconded by Sir Robert Peel. Sir Robert Peel very properly took occasion to speak in terms of high admiration of the deportment of your Majesty before the Privy Council on Tuesday. The address was agreed to without a dissentient voice, and your Majesty may rest assured that the House of Commons is animated by a feeling of loyalty to the Throne, and of devotion to your Majesty.

The library at Buckingham Palace contains all the reports, bound in volumes, which Queen Victoria received during her reign. The writers of the reports were great parliamentarians and statesmen--Lord John Russell, Sir Robert Peel, Lord

Palmerston, Disraeli, Sir Stafford Northcote, Gladstone, Lord Randolph Churchill, W. H. Smith, Sir William Harcourt and Arthur Balfour, acting either as Prime Minister or Leader of the House of Commons. What interesting reading they must make, these descriptions of many memorable nights in the House of Commons from the pens of the Leaders of the Assembly! The writers would naturally aim at making their reports bright and descriptive, and conveying to her Majesty incidents which she might look for in vain in the newspapers. At any rate, the glimpses we have been given of the contents of these volumes show that Lord Palmerston and Disraeli, at least, sent pictorial sketches of scenes in the House, and indulged in humorous and critical comments on the speeches and personal peculiarities of Members. Sir Theodore Martin was the first writer to be allowed to give extracts from the reports in his _Life of the Prince Consort_ (1874-80). _Some Selections from the Correspondence of Queen Victoria_, edited by Lord Esher and A. C. Benson, and published in 1907, includes many of the reports, and a few more are given in the _Life of Disraeli_ by Moneypenny and Buckle (1912-20).

On the night of Friday, February 17, 1843, there was great excitement in the House of Commons. Lord Howick moved that the House do go into Committee to consider the prevailing depression in manufacturing industry. The debate turned mainly on the Corn Laws as a cause of the depression. Cobden attacked Sir Robert Peel, who was Prime Minister, and not yet converted to Free Trade. A couple of weeks earlier, Peel’s private secretary, Edward Drummond, was shot as he was walking down Whitehall by a lunatic named Daniel Macnaghten, who, it appeared, had mistaken him for Peel. It is obvious that Peel had this tragic event in mind as he wrote the following report of the debate for Queen Victoria:

Sir Robert Peel presents his humble duty to your Majesty, and begs leave to acquaint your Majesty that the debate was brought to a close this morning about half-past three o’clock. The motion of Lord Howick was rejected by a large majority, the numbers being--

For the motion 191 Against it 305 ---- Majority 114 ----

The chief speakers were Mr. R. Cobden and Lord John Russell in favour of the motion; Mr. Attwood, Lord Francis Egerton and Sir Robert Peel against it.

In the course of the evening there was much excitement and animated discussion, in consequence of the speech of Mr. Cobden, who is the chief patron of the Anti-Corn Law League.

Mr. Cobden with great vehemence of manner observed more than once that Sir Robert Peel ought to be held individually responsible for the distress of the country.

Coupling these expressions with the language frequently held at the meetings of the Anti-Corn Law League, and by the Press in connection with it, Sir Robert Peel in replying to Mr. Cobden charged him with holding language calculated to excite to personal violence.

5

The most graphic of the reports are those written by Disraeli. On his first appointment to office, as Chancellor of the Exchequer and Leader of the House of Commons, during the brief Derby Administration in 1852, he set himself assiduously to win the confidence of the Queen, by whom he was at this time regarded with disfavour. His letters are fine examples of the best descriptive reporting. The different speakers are epigrammatically portrayed, and the atmosphere and feeling of the House conveyed. Here is a quotation from one of his earliest reports, dated March 15, 1852, relating to a debate which turned on the speculation whether the new Government would attempt to reimpose the old duties on corn:

The great speech on the Opposition side was that of Sir James Graham, elaborate, malignant, mischievous. His position was this: that Lord Derby as a man of honour was bound to propose taxes on food, and that if he did so revolution was inevitable.

Describing a debate raised by Lord John Russell on June 21, 1852, on a Minute issued by the Committee of Council on Education, Disraeli says:

Lord John Russell made a languid statement to a rather full House. His speech was not very effective as it proceeded, and there was silence when he sat down. Then Mr. Walpole rose and vindicated the Minute. He spoke with animation and was cheered when he concluded.

Sir Harry Verney followed, and the House very much dispersed; indeed the discussion would probably have terminated when Sir Harry finished, had not Mr. Gladstone then risen. Mr. Gladstone gave only a very guarded approval to the Minute, which he treated as insignificant. It was not a happy effort, and the debate, for a while revived by his interposition, continued to languish until this hour (nine o'clock), with successive relays of mediocrity, until it yielded its last gasp in the arms of Mr. Slaney.

The style of the openings and conclusions of Disraeli's reports are characteristic of the man. They commenced: "The Chancellor of the Exchequer, with his humble duty to your Majesty, informs your Majesty of what occurred in the House of Commons this evening"; and ended with this flourish: "All which is most humbly submitted to your Majesty by your Majesty's most dutiful subject and servant, B. Disraeli." In one communication he gives his opinion as to the proper purpose of the reports, and describes the conditions in which they were written:

The Chancellor of the Exchequer fears that he sent to your Majesty a somewhat crude note from the House of Commons on Thursday night, but he humbly begs your Majesty will deign to remember that these bulletins are often written in tumult, and sometimes in perplexity; and that he is under the impression that your Majesty would prefer a genuine report of the feeling of the moment, however miniature, to a more artificial and prepared statement.

Queen Victoria tells her uncle, Leopold, King of the Belgians, what she thought of Disraeli's reports, in a letter dated March 30, 1852. She says: "Mr. Disraeli (_alias_ Dizzy) writes very curious reports to me of the House of Commons proceedings--much in the style of his books."

Disraeli’s first Budget, which was introduced late in 1852, proposed to increase the house tax, reduce the duties on malt and tea, and give concession to farmers in the payment of income tax. The letter to the Queen was written by the Prime Minister, and is in the following terms:

Lord Derby, with his humble duty, ventures to hope that your Majesty may feel some interest in hearing, so far as he is able to give it, his impression of the effect of Mr. Disraeli’s announcement of the Budget this evening. Lord Derby was not able to hear quite the commencement of the Speech, having been obliged to attend the House of Lords, which, however, was up at a quarter-past five, Mr. Disraeli having then been speaking about half an hour. From that time till ten, when he sat down, Lord Derby was in the House of Commons, and anxiously watching the effect produced, which he ventures to assure your Majesty was most favourable, according to his own judgment after some considerable experience in Parliament, and also from what he heard from others.

Mr. Disraeli spoke for about five hours, with no apparent effort, with perfect self-possession, and with hardly an exception to the fixed attention with which the House listened to the exposition of the views of your Majesty’s servants. It was altogether a most masterly performance, and he kept alive the attention of the House with the greatest ability, introducing the most important statements, and the broadest principles of legislation, just at the moments when he had excited the greatest anxiety to learn the precise measures which the Government intended to introduce.

The Derby Government were defeated on the resolution to increase the house tax and resigned, and in the Government formed by Lord John Russell, Gladstone succeeded Disraeli as Chancellor of the Exchequer. The Budget of 1853--the first of a long series introduced by Gladstone--inheritors of real property were made to pay a duty, and the income tax was extended to Ireland. In his letter to Queen Victoria, written from the House of Commons on the night of April 19, 1853, Lord John Russell is very eulogistic of Gladstone’s speech. He says:

Lord John Russell presents his humble duty to your Majesty, and is happy to say that Mr. Gladstone’s statement last night was one of the most powerful financial speeches ever made in the House of Commons. Mr. Pitt in the days of his glory might have been more imposing, but he could not have been more persuasive.

Prince Albert sent a copy of Russell’s report to Gladstone, with a letter of congratulation on his success.

6

Examples of the reports made by Lord Palmerston, as Leader of the House of Commons, are also available. The famous debate on Roebuck’s motion for an inquiry into the conduct of the Crimean War in 1855, the carrying of which brought about the downfall of the Government of Lord Aberdeen, is thus described by Palmerston, writing to Queen Victoria from 144 Piccadilly on January 26, 1855:

Mr. Roebuck rose to make his motion, but the paralytic affection under which he has for some time laboured soon overpowered him; and before he had proceeded far in his speech he became so unwell that he was obliged to finish abruptly, make his motion and sit down. Mr. Sidney Herbert, who was to reply to Mr. Roebuck, rose therefore, under great disadvantage, as he had to reply to a speech which had not been made; but he acquitted himself with great ability, and made an excellent statement in explanation and defence of the conduct of the Government.

The report thus concludes: “Viscount Palmerston regrets to say that the general aspect of the House was not very encouraging.” Writing to the Queen at 2 a.m., on the morning of January 30, he reports that Roebuck’s motion was carried by 305 votes against 148, the majority being composed mainly of Conservatives, but including a large number of Liberals. Palmerston adds: “The Conservative Party abstained, by order from their chiefs, from giving the cheer of triumph which usually issues from a majority after a vote upon an important occasion.”

Palmerston indulged in some characteristically jaunty and humorous remarks in his reports. Describing a debate on a motion relating to India he mentions that Mr. Hadfield “shortly stated in his provincial dialect that--‘we can never keep our ’old upon Hindia by force of harms.’” The following is an extract from a report written in August, towards the close of the session:

Members are leaving town; but the tiresome ones, who have no occupation of their own, and no chance of seeing their names in the newspapers when Parliament is up, remain to obstruct and delay by talking. The Speaker, who has not been quite well, grows as impatient as any official who has hired a grousing moor and cannot get to it; and a few nights ago, when a tiresome orator got up to speak just as the end of the debate had been expected, the Speaker cried out, “Oh, oh!” in chorus with the rest of the House.

Disraeli was again Chancellor of the Exchequer and Leader of the House of Commons in the second Derby Administration. His sense of humour and love of the picturesque are shown in two reports of that period. Writing to Queen Victoria from the House of Commons on April 13, 1858, he says:

The Chancellor of the Exchequer with his humble duty to your Majesty.

The night tranquil and interesting. Lord Bury, with much intelligence, introduced the subject of the Straits Settlements; the speech of Sir J. Elphinstone, master of the subject, and full of striking details, produced a great effect. His vindication of the convict population of Singapore, as the moral element of that strange society, might have been considered as the richest humour, had it not been for its unmistakable simplicity.

His inquiry of the Governor’s lady, who never hired any servant but a convict, whether she employed in her nursery “thieves or murderers,” and the answer, “Always murderers,” was very effective.

In 1859 the Government introduced a Reform Bill, only to be defeated on an amendment moved by Lord John Russell. On the night of March 22nd, in the course of

the debate, two important speeches were delivered--one against the Bill by Sir Edward Bulwer Lytton, and the other in its support by Sir Hugh Cairns, the Solicitor-General. Disraeli thus describes the scene for Queen Victoria:

A night of immense power and excitement. Two of the greatest speeches ever delivered in Parliament--by Sir Edward Lytton and the Solicitor-General.... Both spoke in a crowded House; one before dinner, the other concluding, just down. Never was a greater contrast between two orators, resembling each other in nothing but their excellence. Deaf, fantastic, modulating his voice with difficulty--at first almost an object of ridicule to the superficial--Lytton occasionally reached even the sublime, and perfectly enchained his audience. His description of the English Constitution; his analysis of democracy--as rich and more powerful than Burke. Sir Hugh Cairns devoted an hour to a reply to Lord John's Resolutions, and to a vindication of the Government Bill, which charmed everyone by its lucidity and controlled everyone by its logic. When he had, in the most masterly manner, and with concinnity which none can equal, closed the business part of his address, he directed himself to the political portion of the theme, and, having literally demolished the mover of the amendment, sat down amid universal cheers.

In a letter written in March 1858, Disraeli says: "Your Majesty once deigned to say that your Majesty wished in these remarks to have the temper of the House placed before your Majesty, and to find what your Majesty could not meet in newspapers. This is the Chancellor of the Exchequer's excuse for these rough notes written on the field of battle, which he humbly offers to your Majesty." Yet very soon afterwards the Queen met with something in the newspapers as to what had happened in the House of Commons the night before which made her very angry, especially as there was no mention of it in Disraeli's report of the proceedings. Writing to Derby, the Prime Minister, in sharp terms she said that in reading in the papers the debate on the India Bill--transferring the Government of India from the East India Company to the Secretary of State for India in Council--she "was shocked to find that in several points her Government had surrendered the prerogatives of the Crown"; and she complained that Mr. Disraeli not alone did not tell her of this, but overbore the Opposition which "attempted to guard the Queen's prerogative."

7

Sir Erskine May, the classic authority on parliamentary procedure, and for many years Clerk of the House of Commons, considered this practice of sending reports of the proceedings of the House to the Sovereign a violation of the privileges of Parliament. In order to guard against the arbitrary interference of the Crown in its proceedings, had not Parliament established the ancient constitutional doctrine that the Sovereign should neither hear its debates nor give credit to reports of them? However, this opinion, when quoted, in the House of Commons in 1879, in presence of Sir Erskine May, received but scanty support. The occasion was a debate on a Radical motion, which declared "that to prevent the growing abuse by her Majesty's Ministers of the prerogative and influence of the Crown, it is necessary that the modes and limits of the action of the prerogative should be more strictly observed." Mr. Leonard Courtney, who supported the motion, contended that it was "an

undoubted breach of the Constitution" for a Minister to send a report of the proceedings of the House to the Queen, and when Members laughed in derision of his argument, he supported it by quoting Sir Erskine May. But Gladstone, who was in Opposition at the time, effectively disposed of the contention. The House might, he said, fairly object to the details of its proceedings being conveyed to the Sovereign during the eighteenth century, when the people were denied any information about the doings of Parliament; but, in his opinion, it was ridiculous to say that it was a breach of privilege to communicate them to the Queen in days when they were published in every newspaper in the land. The House evidently agreed with Gladstone. At any rate, the motion was not pressed to a division.

Gladstone, who filled the post of Parliamentary Reporter to Queen Victoria in five Parliaments, used to write his report on the Treasury Bench towards the close of each sitting. Often have I seen him taking a quarto sheet of notepaper and blotting-pad from the Table, seize the nearest quill pen to hand, and, writing on his knee, dash off the report with characteristic eagerness and celerity. Scratch, scratch, scratch went his pen unceasingly--unless interrupted to receive a report from his chief Whip, or to exchange a few words with a colleague in the Ministry, or to give a prompt contradiction of some statement by the Member addressing the House--until the four sides of the sheet of notepaper were covered.

What a painful duty it must have been to the "Old Parliamentary Hand" (as he called himself), with his intense love of the House of Commons, and all its historic associations, his high conception of its dignity as the governing body of the British Empire, to have to inform the Queen, on Thursday, July 27, 1893, that blows were exchanged between honourable Members on the floor of the House that very night. He cannot have given a detailed account of the scene which occurred in Committee on the second Home Rule Bill, for, as he told the Speaker subsequently, neither his eyes nor his ears were sharp enough to enable him to describe what had actually occurred; and I saw him myself, from the Reporters' Gallery, half-reclining on the Treasury Bench, during the brawl, gazing sorrowfully at the Chairman (Mr. Mellor), who was vainly endeavouring to restore order, while the crowd of Members on the floor prevented him from seeing--if he had cared to see--the fight between Ulster Unionist and Nationalist Members on the Opposition benches. But the angry shouts and fierce ejaculations of the brawling Members must have reached the aged Premier, however desirous he might have been to shut his ears to the clamour. That was at ten o'clock. Before midnight I saw Gladstone again on the Treasury Bench writing his report of the proceedings. I noticed that it was rather a slow process. He would pause for a few seconds after finishing a sentence, and delete or alter a word or two of what he had written. Obviously he was devoting much painstaking care and premeditation to the composition of the report for Queen Victoria.

CHAPTER X

THE THUMB OF THE PARTY WHIP

1

When the electric bells in every room and corridor of the great Palace of Westminster furiously ring out their warning to Members of the House of Commons to hasten to the Chamber, as a division is about to take place, a spectacle may be witnessed which is not the least curious and instructive that Parliament affords. “Hurry up, hurry up,” the bells seem to cry in their urgent clangour. Six minutes are allowed to elapse before the doors of the lobbies are locked. Representatives of the people come rushing in from all quarters. Some are yawning as if they had been disturbed from sleep by the clamour of the bells; others are shouting the last words of business instructions to private secretaries; some, again, are tardily parting from fair companions. Eagerly bustling about in the skurrying throng of legislators are the Government Whips--always greatly excited on critical occasions--crying out to their followers, “Don’t be late! don’t be late!” in unison with the clanging bells.

The debate is over. The arguments have been advanced and disputed. The political question at stake is now to be settled by the weight of numbers in the division lobbies. Many of the Members who thus come thronging breathlessly to the Chamber in answer to the summons of the bells are often ignorant of the particular matter at issue, and therefore do not know exactly how they, as Party men, are expected to vote. Just inside the vestibule of the Chamber, where corridors on the right and left lead to the two division lobbies, one of the Government Whips stands and shouts “ayes” or “noes.” At the cry the doubts of Members dissolve and vanish away. It means that the Ministerialists are to go into the “aye” lobby or the “no” lobby, according as the Government support the question or oppose it. Sometimes not a word is spoken. The Whip simply points with his thumb to the proper lobby, and the sign so crudely given is complacently followed by his docile henchmen. Thus it would seem, to the uninstructed eye, as if the representatives of the people were personally directed, if not conducted, in the way they should vote by the Whips, those agents of that powerful force in political life called Party.

Still, it would be a mistake to suppose that the pressure of Party organization, or the thumb of the Party Whip, makes impossible the expression of independent opinion in the House of Commons. The average Member of Parliament is a thinking being, after all, and not a mere animated voting machine. It must be remembered that the vast majority of candidates for the House of Commons present themselves to the constituencies as the nominees of the central Party organizations. As Party men they are elected or rejected. It is not so much that each constituency binds its representative to join the standard of a particular Party leader, as that the candidate appeals to the electors as the supporter of a particular Party programme, and pledges himself, if returned, to work in the House of Commons for its realization. The representative is accordingly expected to obey the directions of his Party Whips, who are the official heads of the central Party organization, on whose behalf and in whose interest he has been returned to Parliament. A little thought will show that in this there is nothing derogatory to the character, or even to the independence, of the representatives. One of the most curious phases of some contemporary political thought is the belief that the Party fight is, essentially, a selfish struggle for the

power, the influence, and the spoils of office, and that between the lines of the high-sounding principles inscribed on the banners of the opposing forces may be read “personal ambition” and “personal aggrandizement.” In truth, Party may be said to be but another name for Patriotism. Interests of enormous importance to the Commonwealth depend upon the Party system. No one who studies the subject carefully can doubt but that the stability and the supremacy of Parliament, and also social and political progress in this country, are best secured by the rivalry and competition of highly organized Parties. To abolish the Party system is impossible, for men of the same views will always combine for the advancement of their cause; but were it destroyed, chaos would certainly reign in the House of Commons, and social and political stagnation would take the place of orderly progress.

But that is not all. Each Party stands upon a bedrock of principle. It may be presumed that every politician joins or supports the Party with whose average political opinion he finds himself most in general harmony. Party allegiance, therefore, or subordination to the Whips, should not press unduly on the conscience of sincere politicians. Submission of private judgment and will may occasionally be necessary for the good of the Party; but even so a man may be a loyal Party man and yet a man of sterling independence of character, holding his political opinions not less honestly, or with less conviction, because they happen to be the opinions of the Party to which he belongs. That Members of Parliament vote for or against proposals simply and solely because the Party Whip, as he stands at the door of the House of Commons, jerks his thumb to the right or to the left would be an unwarrantable assumption. The Whip’s thumb is not blown about by every passing political breeze. Its direction is controlled by a body of serious and deliberate opinion, by settled convictions, by great principles. Conviction and earnestness of purpose are, therefore, not wholly sacrificed to Party interests in Parliament. Of course, there may be in the House of Commons men who, in order to retain their seats, would vote for anything they conceived to be on the popular and winning side, no matter how flagrantly in opposition it might be to their private judgment. But the annals of Parliament, dry and arid though they may appear, are not without being bathed in the gracious light of many acts of courage and self-sacrifice for conscience’ sake. There are many instances of Members of Parliament sacrificing legitimate hopes of official advancement, breaking old ties of friendship, rather than follow their leaders upon a new path which they honestly believed led away from the long-settled principles of their Party, or support a new policy which they deemed unwise or unrighteous.

2

Before the World War the representative was assuming more and more the character of a Party delegate. The crack of the Party Whip was a far more powerful restraint upon the M.P.’s freedom of action and speech in the House of Commons than the pressure of the local opinion of his constituency. He had escaped from the bondage of the constituency only to find himself under the stricter and more direct servitude of the Party. Party was rudely shaken by the Great War, but it soon revived its organizations, and recovered some at least of its original power and influence. For instance, the case of the young supporter of the Government, purposeful and

ambitious, possessed of ideas and a ready tongue, eager to force himself to the front in the competition for fame and place, was as hard after the War as it had been before. Imagine his disappointment when he finds that in the opinion of the Whips he can best advance the cause of the Government by curbing his desire to strike a rhetorical blow on their behalf, and sitting tongue-tied in his place. In the eyes of the Ministerial Whips, intent on getting through the maximum of business in the minimum of time, the two most admirable qualities in a Member of Parliament are self-effacement and a silent mood. Their ideal of the staunch Party man is he who lays aside all urgings to express his opinions with his overcoat and umbrella at the threshold of the House of Commons. He may put a question to a Minister. He may even indulge occasionally in a faint bleat of criticism in Committee of Supply in reference to some small matter of administration. Such criticism is leniently regarded as the choleric word, but to back it up by forcing a division against the Government is rank treason. The whole duty of a Member, in the opinion of the Government Whips, is to hold his tongue, save when a Minister is speaking, for then he is expected to emphasize the inspired utterances of his leader with cheers, and he may controvert the ridiculous arguments of their protagonists on the Front Opposition Bench with cries of “No, no,” and mocking laughter. It would seem, indeed, as if the independence and initiative of the private Member and the efficiency of the Government he supports were incompatible.

The dissatisfaction of a young and energetic supporter of the Government with the unexpectedly severe and rigid discipline imposed by the Ministerial Whips is all the more bitter as he looks across the floor of the House and finds the Opposition Whips encouraging their youthful and daring cohorts in enterprises of activity and talkativeness. He sees that on the Opposition benches the main limitation to any Member’s participation in debate is his capacity to seize and realize his opportunities. But his own individuality is lost in the serried and silent ranks of his Party. He is but a unit in a large Ministerial majority. To the behest of the Government Whips to keep a silent tongue in his head, he can but say, “All right, not a word.”

There are on each side of the House, for the Government and for the Opposition, two Whips, senior and junior, and three or six assistant Whips, who are nominated by the leader of each Party to act as his aides-de-camp in the ever-waging fight for place and principles on the floor of the House of Commons. They are, indeed, most important personages in the parliamentary conflict. They do not loom so large in the public eye as the Prime Minister or the Leader of the Opposition, whose speeches are reported columns long in the public journals. But just as the fate of a big ocean steamer depends upon the skill and watchfulness of the chief engineer and his assistants, whom the passengers rarely see, so the fortunes of a Government rest on the resource and tact of its Chief Whip and his assistants. On the Chief Whip rests the duty of securing the attendance in the House of a sufficient number of the supporters of the Government at all hours to carry its measures safely over the rock-strewn shallows that abound in the division lobbies. It is not only the safety of Bills, but the very existence of the Government itself, that is at stake. Defeat in the division lobbies may mean the Party disaster of resignation or the dissolution of Parliament. The post of Chief Whip is, therefore, weighted with grave responsibility. He may be observed

flitting restlessly about the House and lobbies, consulting with the leaders of his Party, or mixing with the rank and file to ascertain their views and feelings with respect to Government Bills, and to see that insubordination or dissatisfaction, should it manifest itself, is not allowed to spread. Good temper, accessibility, persuasive manners, tact, and prudence are essential qualities in the Chief Whip, if he is to keep his forces in good spirits, and at the same time amenable to a discipline that is often very trying. “A man who can say like a gentleman what no gentleman would say” is a definition of a Whip, which has been attributed to Palmerston. Still more amusingly cynical is Disraeli’s picture of a Whip. He asserted that a good Whip could never make a good Speaker. “How could he sit in the Chair,” said the old statesman, who knew so thoroughly the working of the parliamentary machine, “and look his fellow-Members in the face, if he had been really a good Whip?”

3

The post of Chief Whip is much coveted. It has been deemed worthy of acceptance by men of large fortunes, and high and ancient lineage, the heirs of earls and dukes. It is a post of much political patronage and social distinction. Yet it should have few attractions for really able men. The Chief Whip is debarred from taking part in debates. Consequently the principal avenue which leads to success and distinction in the House of Commons is closed to him. Probably no man with the gift of speech would accept the position. Moreover, its duties are most laborious. The vigilance and alertness expected of the Chief Whip necessarily entail much drudgery. Part of the irksomeness of the office is the constant attendance in the House which is required of its occupant. The Chief Whip is bound to be always in his place from the moment the doorkeeper shouts “Mr. Speaker in the Chair,” at the opening of each sitting, until the cry of the same functionary “Who goes home?” what time the lights on the Clock Tower--which tell London that the House is sitting--are extinguished. A Minister may go out to a social function on nights that he is not personally in charge of the business before the House, though he is expected to return in time for the division. But the Chief Whip never dare leave the precincts of Westminster. There is no place where the unexpected so often happens as the House of Commons. The approach of a critical division may loom up at any moment; and it behoves the Chief Whip to be ready to dispatch at once an urgent summons by telegram, telephone, and special messengers to the followers of the Government in the clubs, in the theatres, at balls and at suppers, to hurry to Westminster to save their Party from the discredit, if not the disaster, of defeat. The Chief Whip is the one occupant of the Treasury Bench who is never seen in the late hours of the night in evening clothes. Of course he is bound to practise what he preaches. He has often to say to a follower, “You stay here to-night, like a good fellow.” It is only proper that he should set the example.

The post of Chief Whip is not, however, without its recompenses and its rewards. He fills an office in the Administration which was formerly styled “Patronage Secretary,” and is now called “Parliamentary Secretary to the Treasury.” It is an office to which the substantial salary of £2,000 per annum is attached, but it carries no official duties, so that the Chief Whip, being free of departmental work, can devote himself entirely to the important task of securing the presence of a Government

majority in the House of Commons at all hours of the sitting; and it has become the custom, at the end of his term of office, to make him a peer. The office is a survival of the time long ago when the Government bought up all the political consciences that were for sale in Parliament, and paid for them, sometimes in cash down, but more frequently in preferments and pensions. There is, of course, no traffic of that kind now. But the Chief Whip is still the channel through which honours for Party services are distributed. If a Member of Parliament desires a knighthood or a baronetcy or a baronage he first approaches the Chief Whip, who conveys to the Prime Minister his wish to be added to the list to be submitted to the King for titular distinctions. The assistant Ministerial Whips are appointed “Junior Lords of the Treasury”--also sinecure offices--at salaries of £1,000 each.

On important occasions, and particularly when critical divisions on great Party issues are expected, the Chief Whip issues to his followers a printed circular setting forth the business of the day. The circular is called “a whip.” Its importance and urgency as a summons are expressed by the number of lines with which its injunctions are underscored by way of emphasis. The parliamentary wit, Sir Wilfrid Lawson, once said that a one-line whip means “you ought to attend”; a two-line whip “you should attend”; a three-line whip “you must attend”; and a four-line whip “stay away at your peril.” During the last Gladstone Parliament, in which the Government had but the small and precarious majority of forty votes, Mr. Marjoribanks, the Chief Whip, resorted to a new kind of summons, unique in its peremptory character. Red is pre-eminently the colour of danger. So the Liberal Whip underscored his summons with a thick red line. It seemed to shout, “Come, or there will be a smash-up of the Government and a General Election.”

As a specimen of a five-line whip, which formerly denoted the highest point of urgency, the circular sent out by Mr. Akers Douglas, the Conservative Whip, on the occasion of the second reading of Gladstone’s first Home Rule Bill in 1886 is of special interest, the measure having been rejected, amid a scene of wild excitement, by a majority of 30 in a division of 652 Members.

=MOST IMPORTANT=

On Monday, June 7th, the House will meet at 4 o’clock.

The Debate on the 2nd Reading of the =Government of Ireland Bill= will be concluded, and a =Division= of the most vital importance taken.

=Your attendance not later than eleven o’clock is most earnestly and particularly requested.=

A. AKERS DOUGLAS.

4

To remain at Westminster during the whole time of a sitting of the House of Commons is most trying to many Members. The atmosphere of the place, lying low by the side of the Thames and artificially heated, is stuffy and enervating. Members can hardly be blamed for desiring, in the course of the evening, to get a blow of the fresh

air on the Embankment or in St. James's Park--the two favourite promenades of M.P.'s, especially in the long summer evenings--to go home to see their wives and children, to dine at the club, or to seek change of scene in the theatre. But if a critical division be impending, a supporter of the Government finds it difficult, if not impossible, to escape, unless he has "paired." At the exit door of the Lobby, leading to the cloak-room, two of the Ministerial Whips do sentinel duty in turn. These young gentlemen are fair-spoken and suave, but behind their engaging manners lurks the despot. Their duties are weighty, their orders are imperative. To any member of their Party who thinks of going away unpaired they firmly, resolutely, but gentle, address reasons why he must just turn back, unless he can give a definite assurance that he will reappear in time for the division. Their mission is to see that there is always a majority present, so that there may be no "snap divisions," a favourite ruse of the Opposition in the hope of defeating the Government at some moment when the attendance of Ministerialists is lax. The ruffled feelings of the Member thus stopped at the door must be tactfully and soothingly smoothed out by the Whips. But the arguments of the Whips addressed to a good Party man always prevail; and, disappointed in his hopes of spending a few hours at home or at the club, he returns, with more or less content, to one or other of the distractions provided to relieve the irksomeness of his detention at Westminster--a cigar in the smoking-room, a book in the library, or a stroll on the Terrace. It is no part of his agreement with the Whips that he should go into the Chamber. All that he has undertaken to do is to remain in the precincts of the building within sound of the division bell. When the division is called he lays aside his book or cigar, joins the flood of Members pouring into the House, and, knowing nothing, perhaps, of the question in dispute, looks out for that clue to the proper lobby--the raised thumb of the Whip.

Thus no Member sitting on the Government side of the House is supposed to leave unless he is "paired." He must find someone on the Opposition side who wants a free leg himself for the same time--be it an hour, a sitting, a week, or a month--the two thus neutralizing each other's absence in any divisions that may take place while they are away. In one of the division lobbies there is a desk with a sheet of paper on which a Member who wants to pair writes his name and the period during which he wishes to be released from attendance; and when he is balanced by an opponent he is free to go. At the top of the paper is printed the following rules, which were adopted by the Conservative and Liberal Whips at the opening of the session of 1905 for the regulation of this very curious but most convenient system called "Pairing."

1. Night pairs and sitting pairs mean the same thing, and in future will be termed sitting pairs.

2. In the event of an all-night sitting, sitting pairs will expire at 9 a.m. the day after the commencement of the sitting. After that hour Members will be free to vote.

3. Members who take a portion of a pair arranged for more than one day are debarred from voting during the currency of that portion, and are, therefore, not free to vote after 9 a.m. in the event of an all-night sitting.

4. Members can break, alter, or transfer their pairs by mutual consent, but a Member may not break, alter, or transfer his pair in the absence or without the consent of the Member with whom he has paired.

5. A Member who is unable to communicate with the Member with whom he is paired can only break, alter, or transfer his pair by the consent of the Whips on the other side, and only if the pair was made through them.

6. No pair shall be entered into during the continuance of the leave of absence granted by the House, but leave of absence may be applied for during the existence of a pair.

7. If a motion for the closure is made and put from the Chair before the time has been reached for which a pair has been made, the Member is free to vote on that motion, and in all divisions consequential on that motion, although during the closure division or the division consequential upon the closure the time is reached from which the pair would otherwise be operative.

There is a good story of a “pair” having been arranged by rival Whips on a critical occasion, which I must tell. After the division one of the Whips said to the other, “It’s all over now, but I ought to explain that my Member broke his leg, and so could not attend.” “Oh, you bad man!” exclaimed the other Whip. “But I forgive you, as the man I paired with yours was dead!”

CHAPTER XI

PARTY TRICKS AND STRATAGEMS

1

The Whips of the two chief Parties, Liberal and Conservative, have in their service at the House of Commons a band of retainers whose business it is to take note of the Members as they come and go. These clerks, or messengers, are stationed in the Lobby, and, provided with printed lists of the names of Members, they mark in those who arrive and mark out those who go away. The result is that when a division is approaching, the Whips on each side, by referring to these lists, can tell to a man the number of their followers and the number of their opponents within the precincts of the House, and consequently whether the Government would have a majority, or would be left in a minority, if the division were at once taken. If the Ministerial Whips should be in the least degree apprehensive of defeat, word is sent round to delay the division by keeping the debate going. Someone is put up who may be relied upon to keep talking as long as may be necessary. It does not matter how disconnected or incoherent his speech may be, for it is time and not wisdom that is now needed in the interest of the Government. Meanwhile urgent telephone messages are dispatched by the Whips to their absent followers dining at the clubs and dallying over their cigars, and messengers are sent in cabs here, there, and everywhere that a Party man is likely to be found; and not until the Members, thus unduly torn from gay and festive scenes, have arrived at Westminster is the division allowed to be taken.

All is fair in the Party fight, as well as in love and in war. Sometimes practical jokes are made to serve great purposes. A favourite club of Conservative Members is St. Stephen's, in Bridge Street, opposite the Clock Tower, which is connected with the House of Commons by an underground passage. Bells ring in the club, as in the precincts of the House, on a division being challenged, and when their shrill warning is heard, Members who happen to be in the club hasten to the House to record their votes. During the session of 1875 the Disraeli Administration were defeated in a "snap" division on an amendment moved in Committee on an Irish Bill, because fifty of their supporters, who were known by the Whips to be dining at St. Stephen's Club, failed to answer to the bells. It was discovered subsequently that just before the division was challenged the connecting wires between the House and the club had been cut. The same subterfuge was resorted to when Balfour was Prime Minister, and again a "snap" victory was secured. It was proposed at the time to bring the matter under the Speaker's notice; but Acland-Hood, the Chief Government Whip, took the sportsman's view that those who planned the manœuvre deserved to enjoy its gain. A Liberal Member subsequently asked why the club should be thus favoured, and it was explained that while the bell circuit was tested and maintained by the Post Office officials, it did not form part of the division bell system, but was worked independently from the Unionist Whip's room. On a similar occasion, big with the fate of the Government, the Whips sent out their corps of messengers to summon Members from dinner-tables, balls, clubs, and theatres. But not a single cab was available in Palace Yard. They had all been engaged and scattered over London a short time previously by free lances of the Opposition.

The closing session of the Balfour Administration in 1905 was marked, like the waning hours of all Parliaments, by slack attendance of Ministerialists and diminishing Government majorities. But in this instance the disintegration that affects all Government majorities, however compact and powerful they may have been, when disillusionment about politics or languor and indifference begin to creep over Members, and the General Election looms in sight, was quickened by divisions between the leaders of the Party on the entirely new issue of fiscal reform. The crack of the Party Whip had in some degree lost its potency.

"No quarter" became the watchword of the Opposition. There never was a session in which parliamentary tactics--the move and counter-move planned and engineered by the rival Whips--were so absurdly illustrated. Stories were nightly told in the Lobby of extraordinary plots hatched by the Opposition to circumvent the Ministerial Whips and their languid, divided, and dwindling majority. The Irish Members were to obtain access to the vaults of the Palace of Westminster, and there, unknown to the Ministerial Whips, were to hide themselves, as Guy Fawkes did of old, until, warned of the approaching division, they were to emerge, as it were, from the ground and overwhelm the unsuspecting Government. One of the County Council river steamboats was to be seized at night, and, with a crowd of Radicals, was to approach close to the Terrace, as if the captain were innocently satisfying the curiosity of ordinary passengers for a closer view of their representatives taking the air. At the sound of the division bells the Radicals were to scale the Terrace wall, bravely risking a ducking or even drowning, in an attempt to oust a hated Government from office.

Naturally the perplexed Ministerial Whips accosted each other in the Lobby with anxious faces. “What next?” was their constant inquiry. They adopted unprecedented measures to out-manœuvre the Opposition. They had sentries posted at all the entrances to the Palace of Westminster. They had agents in Parliament Street watching for any suspicious movement of cabs with Liberal Members towards the House of Commons. It was also said that they had two men stationed on Westminster Bridge with field-glasses on the look out for the coming of the enemy by steamboat.

The usual manner of announcing the approach of a division in Palace Yard was deemed by some of the Ministerialists to be insufficient in this fight without quarter between Government and Opposition. Shouts of “division” by the constables on duty in the corridors and passages of the building accompany the ringing of the bells. The police outside in New Palace Yard take up the cry, and all around the Palace of Westminster, “division,” “division,” swells high above the roar of the traffic. Many of the passers-by, unacquainted with parliamentary customs, think it is a cry for help--that the “D” division of the police is wanted badly on the floor of the House of Commons--and speculate whether it is the Nationalists, or the Labour Members, or the more sedate occupants of the Front Opposition Bench that are making it hot for the Government. But Members approaching the Palace of Westminster at that moment know full well what the shout forebodes, and they quicken their steps, or, if their limbs are limber enough, break into a run to get into the House before the lobbies are locked. Several devices were suggested to the First Commissioner of Works with a view to supplementing this outside warning of an approaching division. One was that the white light on the Clock Tower should flare up red. Another was that a loud-clanging bell should be placed in Palace Yard. A third suggestion was to fire off a cannon. Such are the pleasantries or absurdities in which the solemn Parliament often relaxes its ponderous strength. They show how true it is to liken the representatives of the people to a gathering of schoolboys, always ready for any “lark.” But arising out of it all, Mr. Balfour laid down the principle, which has been accepted by all Governments, that the only divisions to be regarded as conclusive are “those in which there has been a trial of strength between the Parties, with all the circumstances of notice and other attendant incidents required to make it clear that the issue to be decided is one of confidence or of no confidence.”

Sir Alexander Acland-Hood, who continued to act as Chief Unionist Whip during the earlier years of the subsequent Liberal Government, was the author of the most remarkable and unusual “Whip” that has ever been issued. In April 1907 the Government brought in new Rules of Procedure, and proposed to limit the discussion upon them. For the day upon which the “guillotine” motion was to be considered, Unionist Members received the following three-line “Whip”:

=MOST IMPORTANT=

On Monday, April 15th, the House will meet at 2.45 p.m.

=The Prime Minister will make his usual Motion to suspend the illusory 11 o’clock Rule.=

The Government, physically unable to sit up late, and mentally incapable of defending or explaining their scheme for strangling Free Debate in the House, will move a Resolution to guillotine the discussion on the New Standing Orders--a combination of Guillotine and Bowstring.

=An early Division is certain.=

=Other Divisions will follow.=

=Your punctual attendance by 3.30 p.m. is most earnestly and specially requested.=

A. ACLAND-HOOD.

2

“Whipping” is not instituted by any Standing Order. In Erskine May’s great work on _Parliamentary Practice_ (12th edition, 1917) there is only a passing reference to “the Whips,” and they are said to be “gentlemen who are entrusted by their political Parties with the office of collecting their respective forces on a division,” a description which ignores their principle work, that of Party management. The invention of the terms “Whip” and “Whipping,” or their adaptation to the parliamentary system, was due to Edmund Burke. In 1769, when there was an important debate on the expulsion of Wilkes as Member for Middlesex, the Government made unusual efforts to bring up their men for the division. They summoned some from Paris, who had anticipated the Recess, and others from their country houses in the North, acting, as Burke said, like the whipper-in of a pack of hounds. The sally was highly appreciated by a House then largely composed of country squires, and the phrases “Whip” and “Whipping” soon became part of the current coin of parliamentarians.

But the practice was far older. The Secretary to the Treasury looked after the attendance of the supporters of the Government, and his communications were known as “Treasury Notes.” At that time the practice was conducted more or less secretly, as if it were something that did not quite fairly come within the playing of the game, or was out of harmony with the boasted independence of Members. A motion condemning the practice was moved in 1748, but was negatived on a division. It ceased to be regarded as an underhand manœuvre in the later years of the eighteenth century, and from that time has been openly pursued by both Parties.

The pious opinion is often expressed in the House of Commons that this question, or that, should be lifted out of what is called “the rut of political controversy.” It is said that Party recrimination should be hushed in the presence of so great an issue. It is said that the question should be discussed in a solemn and earnest spirit. How curious it is to note this affectation, that Party is a base and sordid thing which defileth those who touch it, on the part of hardened Party men! In truth, the only questions that are earnestly discussed in the House of Commons are Party questions. Business which does not evoke the clash of Party principles is transacted, as a rule, in an almost empty Chamber. One also hears it frequently said that the House of Commons is at its best when the Whips are taken off--that is when Ministerialists are

left free to vote according to their convictions without being disturbed by the thought that they might defeat the Government. I have frequently seen the House on such occasions, and the abiding memory is always the spectacle of groups of Members gathered at the Bar, before the division is taken, apparently very unhappy in their freedom, puzzled, undecided as to which lobby they should enter, remonstrated with, and urged to go this way or that by other Members who were in the blissful position of having their minds made up. And is there not a story told in parliamentary circles that an old Member was heard to confess that once only in his long career did he vote strictly in accordance with his own personal opinion, without regard to Party considerations, and that he had come to the conclusion it was one of his few mistakes?

Moreover, the unforgivable sin in the House of Commons is Party insubordination. Any public expression of hostility within the ranks of the Party to the Party policy, any flank attack tending to disturb the solidarity or harmony of the Party, is bitterly resented and condemned. The refractory Member may be sound on the main Party programme, and the point in dispute may be but a difference merely of method and detail. It does not matter. “Crank,” “eccentric,” “humbug,” are the mildest of the terms of reproach applied to him. He may consider himself indulgently treated if he be not denounced as a traitor and ostracized as an outcast by the more earnest of his colleagues. It is, of course, open to any Member to refuse to submit himself to the dictatorship of the Party Whip. But he must be prepared to pay the penalty of his independence. From it there is rarely any escape. And that is the loss of his seat in the House of Commons. The Member whose convictions or interests prompt him to raise the flag of revolt inside the entrenchments of the Party he was returned to support had better--unless he is indifferent about his political career--return to his allegiance, or else cross the floor of the House and accept as his oriflamme the thumb of the Whip of the opposite Party. There is really no feeling against the political deserter. But there is a strong animosity to the malcontent who remains a member of a Party only to be able to attack it more effectively from within.

Revolts against Party subordination always proved impotent, at least before the World War. I think it would be impossible to point to a single instance within at least half a century before the World War--the period during which the discipline of Party increasingly became more rigid and severe--of a Member at issue with his Party on some great question of policy who succeeded in getting returned again to the House of Commons. At the General Election another candidate was adopted by the Party. The Member was usually a man of strength of will and tenacity of purpose. Perhaps to proclaim what he conceived to be the true policy of his Party, and, at any rate, to vindicate the great principle of free and independent representation, he might decide to submit himself again to the electors. There was a triangular contest. One or other of the orthodox Party nominees was returned. But the independent candidate found himself where the non-Party man was then always found--at the bottom of the poll. It was the constituency which banished him from parliamentary life. But the sentence was pronounced by the Party Whips. Thus had every politician who tried to escape from the obligations of Party got beaten and gone under.

3

When we remember that the House of Commons is composed of 707 men of all classes and the most varied types of character, it is remarkable how extremely rare are these conflicts between freedom of opinion and submission to Party. By this I do not mean to suggest anything derogatory to the House of Commons intellectually. No one who has heard a great Party debate need be told that the opposing cases are stated not only with interesting oppositions in the light and shade of argument, but with fervour and distinction, and even nobly. Nor could there be a greater error than the inference that a discipline apparently so humiliating could be accepted only by the tamest of Party men. On the contrary, Members of Parliament of the highest character and spirit find in it nothing that is distasteful or irksome. They are convinced that the highest needs of the country, as they see them, are served best by the cohesion and discipline of Party. Without Party unity, a strong and homogeneous Ministry, with a normal life of five years, is impossible. Without Party unity there would be a great deal of academic talk in the House of Commons, but very little that is practical would be done. Certainly, the more a Member of the House of Commons is animated by an earnest political faith, and has emptied his mind as a politician of every selfish thought, the more thoroughly and gladly does he consent to the complete subordination of himself personally to giving legislative expression to the principles of his Party. Every House of Commons contains a large number of serious, earnest and high-principled young Members connected with all Parties. They make manifest their recognition of the oneness of the community, of the close relations between all classes. They strive to understand the case of the other side. They are anxious to deal with all questions from the national point of view, and according to the standards of truth and justice. Yet they remain faithful Party men. They see it is only through the agency of Party that things can be done. It must never be forgotten that behind these Party moves and subterfuges in the House of Commons, which often appear so petty and undignified, great principles for the progress of human life are at stake, and it is among those representatives of the people, whose political cause has assumed in their eyes something of the sacred character of religion, that the rigid Party discipline imposed by the Whips finds its most submissive and fervid votaries.

Not the least of the many strange features which Parliament presents to the curious in the manifestations of human nature is the scanty attendance of Members during the main part of a Party debate. The reason is that Members have minds made up on all Party questions. When they attend the debate it is in the hope of hearing a speech in which rhetorical inspiration may add freshness and force to the statement of the Party case, a speech that will prove a splendid vindication of their political principles. The result of the division which is to follow is always easily anticipated. The Government will win by their normal majority. Yet it would not be true to say that the verdict pronounced in the division lobbies is the verdict of men who are more or less ignorant of the arguments on the question at issue. The Whip stands at the entrances to the lobbies with raised and pointing thumb. Still, it is matured political thinking and ripe experience of life that direct our representatives to turn into the “aye” or the “no” lobby. Often and often did Disraeli put up his eye-glass to see the

direction of his Whip’s thumb above the rush of Members answering to the division bells. Often and often did Gladstone submissively turn to the right or to the left in answer to the “ayes, sir,” or “noes, sir,” of his Whip. And their example was followed by Balfour, Asquith, and Lloyd George. These distinguished statesmen were well aware that the raised thumb of the Whip is poised and upheld, not by pride and insolence, but by the great strength both of argument and authority by which Party policy is supported; that it is, in fact, an infallible finger-post pointing--shall I say?--to the path of Party, which must always be the politician’s path of duty.

In truth, Party preserves us from political degeneracy. I am convinced that should the spirit of Party ever lie dormant in the country, the House of Commons would become but the meeting-place of “cranks” and “faddists,” and nothing would be heard there but the murmur of bees in the bonnets of daft Members.

CHAPTER XII

THE OPENING OF THE BUDGET

1

“Young man, what are your dreams?” If the question were put to a newly-elected Member of Parliament, young and ambitious, as he stood at the Bar of the House of Commons between his sponsors awaiting the invitation of the Speaker to come to the Table to be sworn, he would probably admit--if he could be induced to answer, and if he answered truly--that, while his first design was naturally on the Premiership, should he fail to get that shining post, he would not object to be Chancellor of the Exchequer.

The office carries a salary of £5,000, and a house in historic Downing Street, No. 11. There is also a gorgeous robe of black silk, heavily embroidered in gold lace. It is never worn in the House of Commons, and outside it is worn only when the Chancellor of the Exchequer sits for his portrait to photographer or painter, or presides over the Court appointed for the annual nomination of Sheriffs for England and Wales. This robe used to pass down from Chancellor of the Exchequer to Chancellor of the Exchequer for a consideration, like the furniture of the official residence in Downing Street. When Gladstone followed Disraeli as Chancellor of the Exchequer in 1853, these supreme political protagonists haggled through the post with some heat over the price that was to be paid for the succession to these effects.

There is a passing reference to the matter in Morley’s _Gladstone_ (1903); but the correspondence is given fully in Buckle’s _Disraeli_ (1914). Gladstone, in his first letter to Disraeli--addressing him as “dear sir”--after dealing with the question of the furniture, adds: “There is, I believe, a robe which passed down under some law of exchange from one Chancellor of the Exchequer to another, and I shall be very happy to receive it from you on the ordinary footing, whatever that may be.” Disraeli was so annoyed by Gladstone’s suggestion that the furniture--which Disraeli had bought from his predecessor in office, Sir Charles Wood--should be revalued and taken over by the Office of Works, instead of being sent a cheque for £307 16s. 6d., as he had

requested--that he dropped into the third person form of address, closed the correspondence, and entirely ignored Gladstone’s repeated request for a decision as to the passing of the robe. “The robe,” says Buckle, “descended, or was believed by Disraeli to descend, from Pitt. Disraeli was very proud of the association, and could not bring himself to give Gladstone the option of purchasing what he himself had bought from Wood.” Buckle adds: “He wore it again during his two subsequent tenures of the Chancellor of the Exchequer, and it remains as an heirloom at Hughenden Manor.”

But the main glory of the office is--to use the old parliamentary phrase--“the opening of the Budget,” when the Chancellor of the Exchequer makes his comprehensive statement to the House of Commons every April, dealing with the income and expenditure of the Kingdom for the ensuing twelve months. The balance sheet of the Chancellor of the Exchequer is based, as regards revenue, upon the returns from existing taxation, and new taxation--if any is proposed--for the current financial year, ending March 31st, and as regards expenditure, upon the Estimates supplied by the heads of the different spending Departments.

2

Disraeli was prouder, it is said, of being Chancellor of the Exchequer than of being Prime Minister of England. That, however, is doubtful. He showed unexpected capacity as Finance Minister, but his temperament found its completest expression in the dignity, power, and influence of the Premiership. The Exchequer was the first office he ever filled. When it was offered to him by Lord Derby, the Prime Minister, in 1852, he was reluctant to take it, as he confessed it was the one branch of Government business of which he had no knowledge. Derby’s reply was: “You know as much as Mr. Canning did. They give you the figures”--and that settled it. Old Lord Lyndhurst remarked in a letter of congratulation to Disraeli: “You will, I am sure, evince to the world that addition and subtraction are not the only qualifications for a Chancellor of the Exchequer”; and he did, though the Derby Administration were defeated on his Budget and resigned.

3

The greatest Chancellor of the Exchequer was undoubtedly Gladstone, “the man who set figures to music,” as somebody remarked. He was the one statesman for whom the post had an irresistible charm. He told Sir Henry Taylor in 1864 that for nine or ten months of the year he was always willing to go out of office. “But,” said he, “in the two or three that precede the Budget I begin to feel an itch to have the handling of it.” During those two or three months every Chancellor of the Exchequer lives, moves and has his being in an atmosphere of figures. Gladstone introduced or opened as many as thirteen Budgets. The first of the series was the Budget of 1853, when, in his forty-third year, he was Chancellor of the Exchequer in the Government of Lord Aberdeen. The Duke of Argyll gives a graphic account of how Gladstone explained the proposals of this Budget at a meeting of the Cabinet. “He came into the room,” the Duke writes, “with a large, flat, shallow official box, very old and shabby, covered with drab-coloured leather. He sat on a chair nearly fronting the window,

whilst we all sat in a kind of loop around him. Opening the box on his knee, so that its lid stood upright and afforded a rest for any paper placed upon its edge, he began a conversational exposition, which endured, without a moment's interruption, for more than three hours." A speech of more than three hour's at a Cabinet meeting! What speculations must have been indulged in at the clubs that evening as to the meaning of this abnormal sitting of the Ministers in council! The Opposition newspapers asserted, no doubt, that Gladstone's scheme of taxation was fiercely contested. "Not one of us," says the Duke of Argyll, "could think for a moment of interrupting him."

But it is not always that the objections and doubts of Ministers in regard to the Budget are thus silenced by the magic of a great financier. Indeed, Gladstone himself declared that no Chancellor of the Exchequer should attend a Cabinet discussion on financial proposals without a letter of resignation in his pocket. Conflicts are inevitable, perhaps, between him and his colleagues who are in charge of the spending Departments. The Chancellor of the Exchequer's desire is for economy. He protests that he cannot meet the claims of a colleague without imposing fresh taxation. The Minister is concerned almost wholly for success in office. He declines to accept a reduction of the expenditure which he holds to be essential to the efficient working of his Department. The difference can be settled, if it is amenable to settlement at all, only by the Prime Minister. He possesses the controlling power in the Cabinet, and in the interest of harmony and stability he exercises it in the investigation and settlement of differences between Ministers. If no settlement is possible, then the Chancellor of the Exchequer or the Minister concerned resigns.

In the House of Commons Gladstone spoke for close on five hours in explanation of the proposals of his first Budget, exactly the same time that Disraeli had taken explaining his the year before. It was in this Budget that Gladstone extended the income tax to Ireland for the first time, and provided that the imposition of the tax over the United Kingdom should be limited to a period of seven years. For two years it was to be sevenpence in the pound; for two years more it was to be sixpence; for the remaining three years fivepence; and after that the tax was never to be heard of again. What an example of the futility of prognostication in political affairs! The income tax is the mightiest of all engines for the raising of revenue, and seems destined to endure for ever. But let us not prophesy, unless we can see the completion of this human scheme of things. Gladstone's speech, however, was a mighty oratorical achievement. And yet thus modestly is it to be found recorded in his _Diary_, under the date Monday, April 18, 1858:

Wrote minutes. Read Shakespeare at night. This day was devoted to working up my papers and figures for the evening. Then drove and walked with C. (Mrs. Gladstone). Went at 4½ to the House. Spoke 4¾ hours in detailing the financial measures, and my strength stood out well, thank God. Many kind congratulations afterwards. Herberts and Wortleys came home with us, and had soup and negus.

It took Gladstone four hours to explain the Budget of 1860. The note in his _Diary_ in reference to this speech discloses the nature of the refreshment from which he obtained sustenance in the great mental and physical strain of a long speech. He writes: "Spoke 5-9 without great exhaustion, aided by a large stock of egg and wine.

Thank God! Home at 11. This was the most arduous operation I have ever had in Parliament." I have often seen from the Reporters' Gallery the curious vessel in which Gladstone carried his favourite refreshment of an egg beaten up in sherry. It was a short but wide bottle, of the kind in which unguents or ointments for the hair are usually sold. Producing it from the inside pocket of his frock-coat and placing it on the table beside the dispatch box--which already contained his notes--before rising to make his speech, he would resort, perhaps, three or four times during the oration to this old pomatum-pot--thus turned to a strange and mighty use--for the glow and the ardour which his voice, so lubricated, gave to his flowing periods.

Disraeli made no secret of the fact that it was brandy and soda that he fortified himself with on Budget nights. Sir William Harcourt found water sufficient to sustain his energies while unfolding his Budgets. Goschen used to introduce his Budgets on port. I remember an amusing incident during his Budget speech in 1890. That year was one of commercial prosperity, and so great was the concurrent consumption of beer and spirits, from which, of course, the State derived a considerable revenue, that Goschen humorously expressed the hope that it would not be known as "the drunken year." Just then, by an awkward turn of his elbow, the Chancellor of the Exchequer upset the contents of the glass containing his refreshment, and immediately the pungent aroma of port pervaded the Chamber. The awkward pause which Goschen made in his speech, while he dried his soaking documents with a piece of blotting-paper, was filled up by the humorous sally of an Irish Member named Edward Harrington: "The House will soon be as drunk as the year."

4

History, perhaps, will record that the first momentous Budget of the twentieth century--a century which is destined, I think, to see many such Budgets--is that which Mr. Lloyd George, as Chancellor of the Exchequer for the first time, introduced in 1909. It was remarkable for its wide development of our fiscal system, and the novel reliefs from taxation which it afforded. Duties were imposed on unearned land increments, and a special abatement of £10 was given to payers of income tax on £500 and under for every child up to sixteen years of age. Mr. Lloyd George's speech occupied four hours and a half in actual delivery. The physical effort was too much for him. He became so exhausted that in the middle of the speech he asked in faint tones for the indulgence of the House; and on the suggestion of Mr. Balfour, then Leader of the Opposition, there was an adjournment for half an hour to give him a rest. The Budget was thrown out by the House of Lords. The Liberal Government thereupon appealed to the country, and being again returned to power, they were enabled to carry the Budget triumphantly through the new Parliament in 1910.

But the associations of the Chancellorship of the Exchequer and the Budget are not all so dazzling. There is a most pathetic line in Mr. Winston Churchill's biography of his father. "He is the only Chancellor of the Exchequer who never introduced a Budget." As early as December, 1886, Lord Randolph Churchill, just appointed Chancellor of the Exchequer in the first Unionist Government under Lord Salisbury, laid before the Cabinet his proposals for the Budget he was to introduce more than four months later in April. He only gained the half-hearted consent of his colleagues

to the draft of his scheme of taxation. “They said nothing--nothing at all--but you should have seen their faces!” he remarked on his return to the Treasury. He gave directions that all his figures and calculations should be gone over again with a view to their being carefully checked. “There are all the materials of our Budget,” said he, handing over his box to Sir Algernon West, then Permanent Secretary. “They are unpolished gems. Put the facets on them as well as you can, but do not speak to me on the subject again until the end of the financial year.” Long before the end of the financial year (March 31)--indeed, before that very month of December was out--Lord Randolph Churchill, seeing that the Cabinet would not sanction his proposed reduction of the estimated expenditure upon the Navy, resigned, and the first Unionist Budget was opened in the following April by Goschen.

CHAPTER XIII

THE CONTROL OF THE PUBLIC PURSE

1

Legislation is but one of the functions of Parliament. Equally if not more important is its control of taxation and the expenditure of the revenue derived from it. It was around taxation that in the past the battle of securities for good government and the liberty of the subject was fought and won. In the fresh field of political and social thought and action that was opened up in this country, after the World War, and into which the Legislature entered, swayed by new impulses and ideas, taxation occupies a position almost of even greater magnitude than legislation. Still more does it promise to be the engine by which momentous political changes and revolutions will be effected, or at least attempted, in the future.

The greater part of the national revenue is raised by permanent taxation, that is, by taxation which does not require to be annually reviewed and sanctioned by Parliament. This includes the proceeds accruing from the death duties, the land taxes, the stamp duties, the charges of the post office and telegraph services. They are fixed taxes, duties and charges. The taxation by which the remainder of the revenue is raised must be sanctioned every year by Parliament. In this section are included the income tax, and the duties on spirits, beer, tea and tobacco. All the revenue of the country is lodged by the Departments of the State charged with its collection in the Bank of England to the account of “His Majesty’s Exchequer,” and constitute what is called “The Consolidated Fund.” As into this fund flows the streams of revenue from all quarters, so out of it comes the money to meet every item of national and Imperial expenditure. Payments from it are divided into two classes--one for “Consolidated Fund Services” and the other for “Supply Services.” The “Consolidated Fund Services” consist of several charges of regular annual recurrence which have been authorized and made permanent by different Acts of Parliament, and are, therefore, paid out without receiving, every year, the sanction of the House of Commons. These charges include such items as the interest on the National Debt; the King’s privy purse; the annuities to the Queen and other members of the Royal

Family; the emoluments of the Lord Lieutenant of Ireland; the salary of the Speaker of the House of Commons; the salaries and pensions of the Judges of the High Court. The House of Commons, by placing these charges on the Consolidated Fund, and thus making them permanent, has removed them beyond its own criticism, for the reason that the services they are intended to meet--and especially the personages associated with these services--ought not to be liable every year to discussion, and perhaps heated and undignified attack, which would be the case if the money necessary to defray them had to be voted annually by the House. But over the “Supply Services” the Commons exercise an annual supervision. They are divided into three classes--Army, Navy, and Civil Service.

In November and December the permanent officials of the various Departments are busy calculating the amount of money required for salaries and expenses during the coming financial year, which begins on April 1. These statements, setting out in detail the items of expenditure, with notes explanatory of new or increased charges, are called “Estimates,” and have to be approved in each case by the Minister, who is the political chief of the Department, on whom will fall the task of first getting the Cabinet to assent to them, and afterwards of expounding and justifying them in the House of Commons.

2

But before the Estimates are submitted even to the Cabinet they come under the scrutiny of the Treasury, which is vested with the supervision or control of the other Departments in the spending of public money. What the Treasury aims at is the keeping of expenditure within bounds, consistently with the public good. And, by all accounts, it retains a tight hold, in the interest of the taxpayer, on the strings of the public purse. I heard a remarkable criticism of the Treasury in the House of Lords by Lord Salisbury, when he was Prime Minister, during the South African War. The Prime Minister did not go so far as to blame the Treasury for the deficiency in guns and stores which greatly hampered the operations of the Army in the first stages of that war, but he intimated that so parsimonious was its control over the spending Departments that it led to delay in action, and consequently to the weakening of the power of the Executive in a crisis. The position was certainly curious. Here was a Prime Minister, strong-willed personally, with a harmonious Cabinet, and a united Party supreme in the House of Commons, and yet on his own confession he was unable to assert his authority over “the system”--as he called it--of the Treasury. Salisbury’s speech seemed to indicate that the Treasury is possessed of a statutory or constitutional control over the Public Purse which enables it absolutely to disallow any item of departmental expenditure which may not meet with its approval, even though the political chief of the Department, and the Cabinet as a whole, declare the spending of the money to be essential to the national welfare. But it is difficult to accept this presentation of the Treasury as an authority independent of the Ministry. The Treasury officially rejoices in the high-sounding title of “The Board of Commissioners for executing the office of Treasurer of the Exchequer of Great Britain, and the Lord High Treasurer of Ireland”; and its directions to the spending Departments--or its ukases, according to Lord Salisbury--are issued in the

awe-inspiring name of “My Lords of the Treasury.” But the power behind the Board of Treasury is really the Chancellor of the Exchequer, a Member of the Government, of course, and the chief henchman of the Prime Minister in all things concerned with finance. We may be sure that whatever is done by the Treasury in the way of revising and curtailing the Estimates is inspired by the Chancellor of the Exchequer, and that he has the Cabinet at his back.

Early in each session the Estimates are laid before the House of Commons, printed in three huge quarto volumes--“Army Estimates,” “Navy Estimates,” and “Civil Service Estimates”--each of them running to several hundred pages, crammed full of tabulated figures. It is upon these statements of departmental expenditure that the Chancellor of the Exchequer bases his reckoning of the total amount of money which he will have to raise by taxation to provide for the public services during the year. His object is to present a popular Budget, which means a Budget that proposes a decrease rather than an increase in taxation. With that end in view the Treasury endeavours to induce habits of economy in the Departments. But should any expenditure involve a question of policy, to which the Party in office is pledged, the Treasury’s craving for economy must remain unsatisfied. It is impossible to think of the Treasury arrogating to itself a general control over the policy of the Government; or that such a claim would for one moment stand unchallenged by the Cabinet. In fact, any strong Minister, one occupying a powerful position in popular favour, could easily impose his will on the Treasury, not to speak of the Government as a whole. With that qualification, the authority of the Treasury is final and complete over expenditure.

The Chancellor of the Exchequer has at the Treasury probably the strongest staff of any Minister in the Administration. He needs it. Without his staff even Gladstone would have collapsed under the attack of “Budgetitis,” so enormous is the rush of business as the time approaches for the annual financial statement. It is curious to read how Lord Althorp, who was Chancellor of the Exchequer in the early ’thirties of the nineteenth century, used to do all his Budget calculations, however complicated, alone in his closet. This system of working unaided in seclusion strikes the biographer of the noble lord as very admirable; and he contrasts with it the practice of William Pitt, who, as Chancellor of the Exchequer, used to take a Treasury Clerk into his confidence. Pitt himself tells us that he never had a private secretary, as he had no duties requiring such assistance; and Macaulay dwells in wonder on the fact that he could explain a Budget without notes. And his first Budget in 1784 was very complicated. It dealt with as many as 133 different taxes. In our times the Chancellor of the Exchequer unfolds his Budget to the House of Commons with the aid of a huge pile of typewritten documents. And the number of taxed commodities were greatly reduced long ago by Peel and Gladstone.

“Budget night” is awaited with intense interest throughout the Kingdom. It is one of the big occasions of the House of Commons--an occasion when the House is crowded to its utmost extent, and is most animated. There is much speculation in the newspapers beforehand as to what the Chancellor of the Exchequer proposes to do. The accounts of the Exchequer have already been published. It is therefore known

whether the estimated revenue balances the estimated expenditure, or whether there will be a deficit--an excess of the estimated expenditure over the estimated revenue; or a surplus--an excess of the estimated revenue over the estimated expenditure. If there is a deficit, the Chancellor of the Exchequer must devise means to meet it. New taxes will have to be imposed, or existing taxes augmented. If, on the other hand, there is a prospective surplus, the Chancellor of the Exchequer chooses the particular imposts to be modified or abolished. Even if expenditure and revenue are evenly balanced, there is always the prospect of the Chancellor of the Exchequer announcing some readjustment of the public burdens--a transfer of taxation from one class of the community to another class, or from some commodities to other commodities. And as the financial secrets of the Government are never allowed to leak out until they are disclosed by the Chancellor of the Exchequer, “Budget Night” is usually, therefore, an interesting night, and, sometimes, a night of surprises.

3

There are two Committees of the House of Commons for dealing with the national revenue and expenditure. One is called “Committee of Ways and Means,” and the other “Committee of Supply.” The Committee of Ways and Means deals with the proposals of the Government for obtaining the money it needs by loans, taxes, duties, and other imposts. In other words, it determines how the national revenue is to be raised. The Committee of Supply decides what sums shall be granted to meet the requirements of the various Departments. In other words, it settles how the national revenue is to be spent. The House, accordingly, goes into Committee of Ways and Means for the Budget statement of the Chancellor. It is an ancient constitutional rule that every demand for money on behalf of the Crown must originate in a resolution agreed to in Committee of Ways and Means. Therefore, when the Chancellor of the Exchequer has made his financial statement, he moves a series of resolutions providing for the continuance of such existing taxation, or for the imposition of such new taxation, as he thinks necessary, in order to balance income with outgo. These resolutions may be amended or rejected by the Committee, and even when they are approved by the Committee they still require confirmation by Act of Parliament. To put it in another way, the resolutions agreed to in Committee of Ways and Means are embodied in the Finance Bill, which has to pass through all the five stages prescribed for legislative measures--first reading, second reading, committee, report, and third reading. Accordingly, the House of Commons is found, long after “Budget Night,” discussing and discussing again the taxing proposals of the Budget, at one stage or another of the Finance Bill.

Yet any new duties on wines, spirits, beer, or tobacco, or increased duties, proposed by the Chancellor of the Exchequer, come into operation the morning after he opens his Budget in the House of Commons. In order to give these proceedings an anticipatory authority, the resolutions sanctioning these duties are passed by the Committee of Ways and Means before the adjournment of the House on Budget night, and instructions to begin levying them forthwith are posted to the Customs and Excise centres throughout the Kingdom. The imposts, however, are not legalized until the passing of the Finance Act. That alone can give them the force of law. If,

therefore, a resolution to which anticipatory effect has been given is subsequently modified in the progress of the Finance Bill through the House of Commons, any money collected by the Customs or Excise authorities in excess of the amount to which legislative sanction is ultimately given would have to be refunded. Such readjustments became necessary in 1885, when the Liberal Government was defeated on the Budget, Childers being Chancellor of the Exchequer, after a resolution had been agreed to increasing the beer duty; and again in 1888, Goschen being Chancellor of the Exchequer, when a proposal to put an increased duty on all bottled wines was, before the passing of the Finance Bill, limited to sparkling wines only.

This practice of making all new taxes payable on the resolutions being agreed to in Committee of Ways and Means was instituted for the protection of the Revenue. If traders had notice of the increased duties it is assumed that they would forestall imports of wines, tea and tobacco, or withdraw spirits from bond, to such an extent as greatly to reduce the yield of the increased duties. For many years it was accepted that the resolutions of the Committee of Ways and Means were sufficient authority at law to enforce the payment of the taxes. Yet it depended all the time only on usage or custom. In 1912 Thomas Gibson Bowles--well known in his day both as a great economist and a great stickler for the constitutional proprieties--challenged in the Law Courts this provisional collection of new imposts, so far as it related to income tax. The judgment of Mr. Justice Parker was that as the statute of William and Mary, generally known as the Bill of Rights, remained unrepealed, there could be no taxation except under the provisions of an Act of Parliament; and accordingly he decided that a resolution of the House of Commons could give no authority to anyone to collect income tax until the tax had been imposed by an Act of Parliament. The Bank of England, which had deducted £52 10s. income tax on a dividend of £900 12s. 6d. interest on Government stock, had therefore to refund to Gibson Bowles the sum they had illegally retained.

Two remarkable traits of the British character, constitutional and political, are illustrated by this incident. The first is the extent to which the affairs of the country are controlled by compromises and understandings. When the House of Lords threw out Lloyd George’s Budget in 1909, and, as a consequence, no Finance Act at all was passed that year, it was feared not only that the finances of the country would be plunged into inextricable confusion, but that the ordinary machinery of Government would be brought to a standstill for want of revenue to keep it going. Neither of these gloomy anticipations were realized. By force of habit, and that innate respect for law and authority which is so characteristic of the British community, vast sums were paid in that year by the taxpayers on the mere faith of the resolutions of Committee of Ways and Means. The second trait is the personal sacrifice which strong political partisans are willing to endure in order to make things awkward for the Party in office to which they are opposed. Gibson Bowles confessed at the time that he bought £65,500 of Irish Land Stock specially to test the authority of the resolutions of Committee of Ways and Means. “Since I bought the stock,” said he, “it has depreciated nearly £3,000. But that I don’t mind.” And he had ultimately to repay the income tax that was returned to him.

The resources and power of Parliament were, of course, equal to getting over the difficulty raised by Gibson Bowles. The Chancellor of the Exchequer got passed the Provisional Collection of Taxes Act, which gives statutory effect to the resolutions in Committee of Ways and Means pending the passing of the Finance Act. Each resolution has had since then the following addendum: “And it is declared that it is expedient in the public interest that this resolution shall have statutory effect under the provisions of the Provisional Collection of Taxes Act, 1913.”

4

The functions of the second committee for the transaction of financial business, that is the Committee of Supply, are entirely different from those of the Committee of Ways and Means. It considers the estimates of expenditure presented by the Ministers at the head of the various spending Departments. The first day the House of Commons resolves itself into Committee of Supply in a new Parliament the Chairman of Committees is appointed. He is an official almost as important, if much less conspicuous, than the Speaker, for he presides in Committee of Ways and Means when the Budget is opened and discussed, in Committee of Supply when the Estimates are under consideration, as well as in Committee on the clauses of Bills. Since 1858 he takes the chair as Deputy-Speaker in the absence of the Speaker. The office is held, like the Speakership, until the dissolution of Parliament, and carries a salary of £2,500 per annum (half that of the Speaker); but, unlike the Speakership, there is no official residence and no pension, though it is customary to reward him, after some years of service, with a peerage. The informality with which the Chairman is selected is in striking contrast to the ceremonial associated with the installation of the Speaker. The appointment rests, like the Speakership, with the House itself, but whereas the election to the Chair is regarded as non-political--the proposer and seconder never being Ministers or ex-Ministers--and is permanent, subject only to formal reappointment at the beginning of each new Parliament, the office of Chairman is admittedly political or Party in its character, being filled on the nomination of the Leader of the House of Commons, and terminating with the downfall or resignation of the Government. Directly the order “Supply” is read out for the first time by the Clerk, after the assembling of the new Parliament, the Speaker leaves the Chair, and the Leader of the House says: “I move that Mr. ---- do take the Chair.” The motion is endorsed by a cheer from the Ministerial benches, and the Member nominated takes the Chair accordingly--not the Speaker’s Chair, but the place at the Table usually occupied by the Clerk, who leaves the Chamber when the House goes into Committee. The Chairman has no distinctive costume. He usually wears evening dress. There is also a Deputy-Chairman, appointed likewise by the Government at the commencement of a new Parliament, who in the absence of the Chairman presides in Committee, and acts also, when necessary, as Deputy-Speaker. He has a salary of £1,000 a year. Moreover, for the relief of the Chairman and Deputy-Chairman the Speaker nominates a panel of five Members, men of experience selected from all Parties, to act as temporary Chairmen of Committees.

In what a puzzled state of mind the stranger unacquainted with parliamentary procedure must be who is present in the gallery of the House of Commons for the

first time on a night that the House is in Committee of Supply! He cranes his neck as far over the high barrier in front of him as those sharp-eyed, attendants in evening dress, with gilt-chains on their breasts, will permit him, and sees--what? Well, not much more than empty benches. He is surprised to observe that the Speaker’s Chair is empty. The Mace, too, is invisible, for that emblem lies on the Table only when the whole House is sitting and the Speaker is in the Chair. A gentleman in evening dress, or ordinary morning attire, sitting in the place of the Chief Clerk, with the Clerks-assistant by his side, is in control. Deserted and unpicturesque is the House on such nights, when the money of the taxpayers necessary to grease the wheels of that mammoth machine, the British Empire, and provide it with steam, is being voted by the “Faithful Commons.” The proceedings are often dull, but they are usually practical and businesslike.

The Chairman puts each vote to the Committee in the prescribed form. As an example: “The question is, that a sum not exceeding £---- be granted to his Majesty to defray the charge which will come in course of payment during the year ending the 31st day of March, for the salaries and expenses of the department of his Majesty’s Secretary of State for the Home Department.” On the Treasury Bench sits the Minister who represents the Department for which the vote under discussion is required. By his side is a small red oblong box, known as a “dispatch box,” filled with papers and memorandums of various kinds, to aid him in answering questions in relation to matters of administration for which he is responsible. But however efficient and industrious the Minister may be, it would be impossible for him to carry in his head, or even in his notes, all the details of the work of his Department. Seated close at hand, therefore, on a bench immediately behind the Speaker’s Chair are one or two of the permanent officials of his office--whom we have seen there previously when a Bill was in Committee--ready to supply him with any information he may lack. A Member rises and calls attention to some subject new or unexpected, though relating, of course, to the vote under discussion. Left to himself the Minister probably would be unable to make an adequate reply. But he slips behind the Speaker’s Chair, and, after a brief chat with his official advisers, returns to the Treasury Bench competent to tell the Member politely that he does not know what he is talking about.

It is these questions relating to small things, but of personal concern, rather than matters of policy, abstract or general, that contribute the element of entertainment--or, as some people would say, absurdity--to proceedings in Committee of Supply. Notwithstanding the changes which are being continuously made in the personnel of the Legislature by death, by resignation, and the ill-fortune of General Elections, there are always in the House a number of Members who delight to burrow into the three ponderous quarto volumes--each with its hundreds of pages crammed with figures--issued every year, containing the Estimates for the Army, Navy and Civil Service respectively; and passing by items of expenditure millions in amount, call attention, in Committee of Supply, to insignificant, but none the less interesting, demands on the public purse. The votes for the Civil Service afford the most opportunities for the display of this sort of futile industry in the interest of economy. For instance, when the Chairman informs the Committee in the usual form that a sum not exceeding £17,062 be granted to his Majesty for the maintenance and repair of

the palaces in the personal occupation of his Majesty, a Member may rise and ask the First Commissioner of Works, to whose department this vote belongs, why it is the ancient office of rat-catcher to the Royal palaces is not abolished. The abolition of the office would mean a saving of only £18 a year to the State, £8 being paid to the rat-catcher of Buckingham Palace, and £10 to the rat-catcher of Windsor Palace, but I have seen this question debated for hours with the greatest interest, not to say excitement, by Radical Members when a Unionist Government was in office.

5

"This House," one of the Standing Orders declares, "will receive no petition for any sum relating to the public service, or proceed upon any motion for a grant or charge upon the public revenue, whether payable out of the Consolidated Fund or out of money to be provided by Parliament, unless recommended from the Crown." In other words, the House of Commons can vote money only on the motion of a responsible Minister, in which, of course, is involved the sanction of the Cabinet. It follows, therefore, that unofficial Members are precluded from proposing the increase of any of the Estimates in Committee of Supply. This restriction not only provides a check to extravagance--though, perhaps, a small one--but, what is more important, makes impossible the spending of public money in the way of local expenditure in the constituencies which might be regarded as a form of political bribery. But if a Member cannot move to increase a vote, he may propose to reduce it. A motion to reduce a vote by a nominal sum is frequently moved in Committee of Supply; and it is done for the purpose of giving an additional emphasis to a complaint against the Minister--whose salary is covered by the vote--on account of some matter of departmental administration. Accordingly, Committee of Supply affords to the representatives of the people opportunities for calling attention to abuses and demanding the redress of grievances. In olden times, when executive authority was vested in the King, and Ministers appointed by him were responsible to him alone, the representatives of the people in Parliament insisted upon the righting of public wrongs before they granted the subsidy the King demanded, and now that executive and administrative authority is centred in the Ministry, all complaints and remonstrances are addressed to them in Committee of Supply.

Possibly the anticipation of criticism in Committee of Supply exercises a wholesome check on the actions of the Government, and tends to maintain honest and pure administration and expenditure by the Departments. If the motion for the reduction of the vote is pressed to a division, as it frequently is, when Members are dissatisfied with the explanation of the Minister, it is almost invariably rejected, being opposed by the supporters of the Government. The political policy of the Government is expressed as much in financial business as in legislation, in Estimates as in Bills. It follows that if a motion for the reduction of a vote or the reduction of the salary of a Minister were earned, it would mean the Committee's disapproval of the policy for which the money is required, or imply discontent with the administration of the Minister; and as the responsibility of the Government is collective, what would ensue would be, not the downfall of the Minister specially attacked, but, if the matter in dispute was of real moment, the resignation of the Cabinet.

Yet it is by no means an uncommon thing for the Government to incur obligations involving the expenditure of public money without having first obtained the authority of Parliament. Is it that the House of Commons may always be relied on by the Government to give parliamentary recognition to accomplished facts? Or is it that the Government take care never to do anything in that way without making sure of the subsequent approval of their followers? In June 1920 it was announced the Army Council had decided to reclothe in the old scarlet the Army that was in khaki during the World War, at an estimated cost of £3,000,000. Protests against this unnecessary waste of public money, as it was called, was raised in Parliament and in the Press. The Chancellor of the Exchequer (Austen Chamberlain) explained that the change of uniform had not only been approved by the Government, but that steps had actually been taken to carry it into effect. “But suppose the House does not sanction the expenditure when it comes before us in Committee of Supply?” a Member asked. “In that case,” said the Chancellor of the Exchequer, “it would be for the successors of the present Government to decide the action to be taken.” In plain language, the Government would resign if the vote were rejected.

It used to be the custom to take Supply intermittently during the session. In 1895 new Standing Orders were adopted on the motion of Arthur Balfour, then Leader of the House, by which twenty days are allotted for the consideration of the Estimates, with three additional days at the option of the Government, if they can spare the time. When the debate on the King’s Speech has concluded, it is customary to put down Supply as the first “Order of the Day” on every Thursday. The votes to be taken on each of the allotted days are arranged by the Whips for the convenience of Members. What happens is that the Opposition, or any other section of the House, tell the Whips that they desire to discuss some particular matter, and the vote on which it can be raised is put down. This regular progress of Supply is intended to afford weekly opportunities throughout the session for the discussion of questions of public policy. But it happens at the end of every session that vast sums of public money are voted by the House without examination because no time was available to discuss them within the allotted days. At ten o’clock on the last but one of the allotted days in Committee of Supply the Chairman proceeds to put without discussion all the remaining Estimates, and at the same hour on the following night in the House the reports of the Estimates are disposed of in a similarly silent and summary fashion.

It must not be supposed, however, that the check of the House on departmental expenditure is thereby weakened to any great extent. Just as Estimates, in their original framing, are regulated by policy, and are big or little according to the political and social schemes of the Government, so, too, criticism and attack by the Opposition in Committee of Supply are mainly directed against policy and administration rather than against expenditure. It may be, indeed, that the aim of the Opposition is to have more money spent in particular cases.

CHAPTER XIV

THE LORDS AND MONEY BILLS

1

Among the securities provided by the Constitution against the imposition of taxes unauthorized by the representatives of the people, and the corrupt or extravagant administration of the revenue, are the passing of three separate Acts of Parliament. The first is the Finance Act, which, as I have already explained, sets out the taxes and duties contained in the Budget and sanctioned by the House of Commons. The second is the Consolidated Fund Act, empowering the Treasury to receive such sums of money out of the Consolidated Fund as are necessary for the services of the Departments. The draft on the Consolidated Fund, authorized by this statute, must not exceed the amount of Supply which has been previously granted by the House of Commons. But should the Government run short of money because the necessary Supply has yet to be voted, they can get it by asking the House of Commons to pass a Vote of Credit or a Vote on Account. For reasons of financial convenience Consolidated Fund Bills are passed at intervals during the session. The passing of the third measure, the Appropriation Act, at the end of each session is the consummation of the control which Parliament exercises over expenditure. The purpose of this Act, in which are embodied all the votes agreed to in Committee of Supply, is to ensure that the money is applied strictly to the purposes for which it has been granted. These Acts have to go through all the required stages in both Houses, the Lords as well as the Commons, before they become law. This long and elaborate procedure also gives opportunities for the discussion of grievances and complaints over and over and over again.

2

According to all writers of authority on Government and Parliament, it has long been an established principle of the Constitution that the House of Lords is precluded from originating and even from amending a Money Bill. The Lords, however, have never formally, or in set terms, agreed to this principle. At first the Lords exercised, co-ordinately with the Commons, the little power that was vested in the Parliament over the national revenue in the days of absolute Monarchy. But with the growing control of the Parliament over taxation and expenditure, the Commons began to regard the interference of the Lords in money matters with increasing jealousy and resentment. The struggles between the two Houses for the control of finance reached a crisis in 1677 over a Supply Bill--by which money was to be raised for the building of ships of war--in the first Parliament of Charles II which was elected in 1661, after the Restoration. The peers made amendments in the Bill, and with these the Commons disagreed, upon the ground “that the grant of all aids to the King is by the Commons, and that the terms, conditions, limitations, and qualifications of such grants have been made by the Commons only.” The Lords, on the plea of the necessities of the public service, gave way, but they passed a resolution declaring that their right to amend Money Bills was just, and could not constitutionally be questioned. The next year, when another Supply Bill was sent up by the Commons, the Lord Chancellor declared that if the Lords were to yield their right to amend it they would “give up the greatest share of the Legislature to the Commons, and, by consequences, the chief power of judging what laws are best for the Kingdom.” The

Lords accordingly amended the Supply Bill, and as they resolutely refused to yield to the protests of the Commons, the measure had to be dropped for the session. It was at this juncture that the Commons passed on July 3, 1678, the following historic resolution:

That all Aids and Supplies, and Aids to his Majesty in Parliament, are the sole gift of the Commons; and all Bills for the Granting of any such Aids and Supplies ought to begin with the Commons; and that it is the undoubted and sole right of the Commons to direct, limit, and appoint in such Bills the Ends, Purposes, Considerations, Conditions, Limitations, and Qualifications for such Grants, which ought not to be changed or altered by the House of Lords.

The House of Lords for a long time stubbornly opposed these claims of the Commons. More than a quarter of a century later, in the reign of Queen Anne, they protested that the Commons were constantly trying to “break in upon the Lords’ share in the Legislature,” and affirmed “that neither House of Parliament hath any power, by any Vote or Declaration, to create to themselves, any new privilege that is not warranted by the known Laws and Customs of Parliament.” But the growing power of the Commons enabled them to assert their exclusive right to determine the matter, the measure and the time of every tax imposed upon the people. This right, however, has never been established by legislation. As I have said, it has never even been agreed to by the Lords. It is based on the axiom now universally acknowledged that taxation and representation should go together, and as all classes of the Commonwealth are represented in the Commons by election, therefore only the Commons have power to tax the people. The Lords have bowed to it, at least to the extent of giving to the denial by the Commons of any right in them to initiate or alter proposals of taxation or expenditure, a tacit admission, or the acquiescence of silence--except, as I shall show later, when there is a question of principle involved. Yet it is a curious fact that until 1911 the Commons were unable to grant a farthing of these “aids and supplies” to the Crown, which, they say, is their “sole and entire gift,” without the concurrence of the peers. All proposals involving the raising or spending of public money can originate only with the Commons. That is fully admitted even by the Lords. Should a Bill which entails a charge on the Public Purse be first introduced in the Lords, the financial clause appears, like a pale shadow, in italics, to convey that it forms no integral part of the Bill as it passed the Lords, but is offered merely as a suggestion for the acceptance of the representative Chamber, whose assent alone can give it vitality. But the taxing or expending proposals of the Commons must, nevertheless, be clothed with the form of law. Accordingly, when the Finance Bill in which these proposals are embodied, has passed through the House of Commons, it is sent, like all other legislative measures, to the House of Lords. This Money Bill the Lords, according to the Commons, had never any power to alter or amend. But the Lords, no more than the Commons, could be taxed without their consent. The Lords might, consequently as the Commons admitted--reject the Finance Bill until 1911.

The first serious collision between the hereditary and the elective Chambers on the subject of a Money Bill in recent times occurred in 1860. Gladstone was Chancellor of the Exchequer, and Palmerston was Prime Minister. Part of the Budget proposals was

the abolition of the duty on paper, which yielded the Revenue £1,200,000 a year, and made the morning newspaper a luxury at sixpenny a copy. The repeal of the paper duty was not, however, included in the Finance Bill, but was embodied in a separate measure, and so strong was the feeling in the Commons against it, because the loss to the revenue would have to be met by the imposition of other taxes, that the third reading of the Bill was carried only by the narrow majority of nine. The strange fact that the Prime Minister was personally opposed to this Bill, introduced by his own Chancellor of the Exchequer, was subsequently disclosed. Palmerston in his letter sent as Leader of the House to Queen Victoria that night dwelt on the small majority by which the Bill had been passed, and went on to say: “This may probably encourage the House of Lords to throw out the Bill when it comes to their House, and Viscount Palmerston is bound to say that if they do so they will perform a good public service. Circumstances have greatly changed since the measure was agreed to by the Cabinet, and although it would undoubtedly have been difficult for the Government to have given up the Bill, yet if Parliament were to reject it the Government might well submit to so welcome a defeat.” The Lords did exactly as Palmerston anticipated and evidently desired. They threw out the Bill by a majority of eighty-nine. Palmerston subsequently proposed in the House of Commons three resolutions to the effect that, although the Lords had on occasions, few and far between, rejected Bills relating to taxation, the Commons were determined to maintain the supreme control in all financial matters; and these resolutions were agreed to, but in moving them Palmerston went so far as to admit that the Lords had not exceeded their strict rights. In the following year, however, Gladstone adopted a method by which the Lords were practically compelled to accept the repeal of the paper duties. As I have said, the Lords, in the opinion of the Commons, have no power of amending a Money Bill. All they can do is to reject it. In 1861 Gladstone combined the repeal of the paper duties with all the other taxing proposals in the Finance Bill, and, although the Finance Bill was carried in the Commons only by a majority of fifteen in a full House, the Lords did not care to face the responsibility of throwing out the whole Budget on account of a single obnoxious provision. This expedient of embracing all the financial provisions of the year in one Finance Bill has since been regularly followed.

3

The next great conflict between the two Houses on this issue, and the final and conclusive one, perhaps, arose on the memorable Lloyd George Budget of 1909. The Finance Bill embodying the proposals of the Budget to tax land values and undeveloped land was thrown out by the Lords on the ground that it was confiscatory of property in land. An appeal to the country resulted in the return of the Liberal Government to power again. Not only was the Finance Bill carried in the session of 1910, but in 1911 the Parliament Act was passed for regulating the relations between the two Houses. This Act provides, among other things, that if a Money Bill, which has been passed by the House of Commons, and sent to the House of Lords at least one month before the end of the session, “is not passed by the House of Lords without amendment within one month after it is so sent up to that House,” it is to be presented to the King, and becomes an Act of Parliament on the Royal Assent being signified, “notwithstanding that the House of Lords have not consented to the Bill.” A

Money Bill as defined in the Parliament Act is a Bill relating to the imposition, repeal, remission, alteration or regulation of taxation. Such a Bill must have an endorsement by the Speaker that it is a Money Bill within the meaning of the Parliament Act when it is presented to the King for his Assent. Thus were the Lords deprived of the power to reject, as well as to amend, a Money Bill. Or, rather, if they reject it, it is passed over their heads.

The procedure in regard to Money Bills at the giving of the Royal Assent in the House of Lords differs from that in regard to other Bills by long custom and usage. All Bills, except Money Bills, passed by the House of Lords remain in the custody of the Clerk of the Parliaments. A Money Bill, after it is passed by the House of Lords, is at once sent back to the House of Commons and remains in the possession of the Clerk of the House until such time as the Royal Assent is to be signified to it. The Clerk of the Parliaments draws up the list of Bills to which the King's Assent is to be signified, Money Bills being placed first in the list, and on the day appointed he has all the Bills in his custody except the Money Bill. When the Commons are summoned to the House of Lords to hear the Royal Assent given to Acts that have passed both Houses, the Clerk of the House of Commons brings the Money Bill with him. When they are come to the Bar of the House of Lords, he hands it to the Speaker. The Clerk of the Parliaments goes to the Bar of the House and receives the Bill from the hands of the Speaker and brings it to the Table. The Royal Assent is signified to each Money Bill in these words:--"Le Roi remercie ses bons sujets, accepte leur benevolence, et ainsi le veult," instead of, in the shorter form, "Le Roi le veult," which are the words signifying the Assent to other Public Bills. It is a matter of some doubt to whom the words "ses bons sujets" apply, but high authorities hold that they apply both to Lords and Commons. In fact, the preamble to each Money Bill declares that it is passed "by and with the consent of Lords and Commons in Parliament assembled," unless it has been carried under the Parliament Act.

The spending authority of each Department is limited during the financial year to the amount voted for its service by Parliament. If the money should prove insufficient, owing to careless calculations, or developments of policy, the Treasury can raise the sum necessary to cover the deficit by the issue of bills on the security of the Exchequer, and these bills are subsequently redeemed by means of Supplementary Estimates, which must be presented to the House of Commons and approved of before the close of the financial year, on March 31st. On the other hand, should a Department spend less than the amount voted for its service, the unexpended balance has to be returned to the Exchequer at the close of the financial year, as well as any money it may have received from any other source, though sometimes these proceeds are used to help to pay the expenses of the Department, and when so applied are called "appropriations in aid." As the amount of taxation imposed each year is calculated to provide for the expenditure of that year, and no more, it may be asked how new and unforeseen demands on the Public Purse are met. Has the Executive to wait for another year to get the money from Parliament? The "Civil Contingencies Fund," consisting of £120,000, is placed permanently at the disposal of the Government to meet unexpected public services at home and abroad.

4

Supply is voted by the House of Commons as a grant to the King. “Gentlemen of the House of Commons,” says his Majesty, in the Speech from the Throne at the end of each session, “I thank you for the liberality with which you have made provision for the services of the year.” The King then places Supply at the disposal of the Exchequer by warrant under the Sign Manual. The money, as we know, is in the custody of the Bank of England. Under the authority of the “Supply resolutions” of the House of Commons, the Comptroller and Auditor-General grants to the Treasury a general credit on the Exchequer Account at the Bank of England. But the Treasury does not pay over to the Departments the sums voted for their services by Parliament. In fact, the money does not reach the Departments at all through the Treasury. Armed with the warrants issued by the Comptroller and Auditor-General, the Treasury, according as the money is required, directs the Bank of England to place the sums to the account of the Paymaster-General, a member of the Administration, who acts as the banker of the Departments, and these transfers are immediately communicated to the Comptroller and Auditor-General. Payments are made by the Paymaster-General only against orders issued upon him by the Departments. These orders are somewhat like bank cheques. Indeed, the books of the Paymaster-General are kept in the same manner as those of a banker--that is, each Department is credited with the amounts received on its account from the Treasury, and is debited with the various sums paid on the orders or cheques it issues.

It all seems a very elaborate procedure from start to finish. Yet it can hardly be said that there is a thoroughly searching supervision by the House of Commons itself of public expenditure. Indeed, that would perhaps be impossible, having regard to the nature and circumstances of parliamentary procedure. Criticism of the Estimates in Committee of Supply is, I repeat, directed, not so much to effecting economy as to ventilation of general public grievances or to opposing the political policy of the Government, so far as that policy finds expression in administration. Beyond this, Members are content with asking for fuller information with respect to items of expenditure than is given in the Estimates. That vigilant control and scrutiny which are necessary to prevent the misapplication of public funds, once the money gets into the possession of the Departments, are supplied by means extra-parliamentary. The ultimate guardianship of the spending of the money in the Public Purse strictly to the purposes sanctioned by the Commons may be said to repose in the Comptroller of the Issues and Auditor-General. He is a permanent official appointed by Letters Patent, and is independent of the Executive Government. His salary is paid direct out of the Consolidated Fund; he cannot be a Member of either the House of Lords or the House of Commons, and he can be removed from office only by a joint address from both Houses. He is represented on each of the spending departments by an Accounting Officer with supervising powers. By the creation of this office, under the Exchequer and Audit Department Act, 1866--one of Gladstone’s great financial measures--Parliament set up an authority, outside itself, and beyond the influence of the Government, to look after the right disposal of the money it votes annually for the public services.

The chief duty of the Comptroller and Auditor-General is to take care that nothing is paid out of the National Exchequer except under proper authority. He also examines the vouchers and audits the accounts of the expenditure of each Department and reports upon them annually to Parliament in three big volumes of figures and comment, dealing separately with the Army, the Navy, and the Civil Service. Lest this supervision of the Exchequer and Audit Department over expenditure should not be sufficient, the House of Commons appoints every session a Public Accounts Committee composed of members of business experience whose duty it is, so to speak, to give moral support to the audit of the auditor. If the Comptroller and Auditor-General has a complaint to make of any abuses or irregularity in the accounts of any Department, he makes it to the Public Accounts Committee, and they, in turn, call the attention of the House of Commons to it. Moreover, the Committee passes in review the annual volumes of the Comptroller and Auditor-General called "Appropriation Accounts," containing the accounts which are supplied to him by each of the Departments, showing what it has done with the money voted for its services, and his own comments upon these accounts, and they disallow any expenditure which the supervision shows to have been unlawfully or unduly made. The reports of the Committee to the House of Commons are noted for independence of view and criticism uninfluenced by Party considerations. It is a sort of watch-dog of the Departments, which, by its insistent and minatory barks, draws public attention to any irregularity or extravagance in expenditure. Thus, the Public Accounts Committee helps to maintain parliamentary control over expenditure to the extent, at least, of seeing that the Departments fulfil their statutory obligation to expend the moneys voted to them strictly in conformity with the resolutions of Parliament.

The disposal of the public revenue is, indeed, beyond suspicion. Mistakes are occasionally made. But the officials are absolutely clean-handed. Peculation is unknown in the public service. Equally unknown is expenditure purely for the purposes of political bribery. Every penny of the people's money is accounted for. Every penny of the people's money is spent on the purpose for which it is voted by Parliament. The point of importance, after all--the vital point for the community--so far as expenditure is concerned, is the purpose or the policy. Where parliamentary control is weak is in the supervision of the Estimates as they are being prepared by the Departments. The prevention of extravagance by the Departments is left to the Treasury. According to the Constitution, it is the function of the Treasury to see that the Departments enter into no unnecessary commitments, and do not ask Parliament for more money than they properly need.

As I have pointed out, in Committee of Supply the policy of a Department is scarcely ever considered in relation to its cost. It is criticized, usually, because it goes too far or because it does not go far enough, politically. Yet the policy embodied in Government Bills is, almost invariably, scrutinized from the point of view of expenditure. Before any Bill which involves a charge upon the Exchequer can be proceeded with, what is called "the money resolution," authorizing the charge, must be passed in Committee of Ways and Means. Then the cry, "economy, economy," is heard in the House. But why not also in regard to policy as expressed in the Estimates?

CHAPTER XV

PRIVATE BILL LEGISLATION

1

In the early morning, long before the curtain rises on the larger and more prominent stage of the House of Commons, work, useful and practical, of which the public hears but little, is being done in the committee-rooms upstairs. This is the consideration, laborious as well as meritorious, by Members of both Houses of Parliament of the details of the numerous and important Private Bills which are introduced every session. A visitor to the Central Hall of the Houses of Parliament between eleven and twelve o'clock will witness a spectacle of a kind entirely unexpected in association with the Legislature. An eager throng passes by and disappears up the broad staircase that leads to the committee-room corridor. It is a mixed and varied crowd indeed. There are company promoters, barristers, surveyors, clerks, porters--carrying huge plans and maps--Members of the House of Commons, peers, scientists, fishermen, artisans, farmers, railway directors, shopkeepers, solicitors, engineers, mayors, town councillors--all interested in the fate of those Private Bills containing, often, large and far-reaching powers, involving the expenditure of hundreds of thousands of pounds, promoting great commercial and municipal undertakings, affecting the convenience and comfort and social well-being of the community. It is a scene that appears more appropriate to the Law Courts than to Parliament.

By a Private Bill is meant a Bill in which a company or a local authority seeks for powers to carry out a commercial undertaking, or a social scheme, involving interference with public rights or the rights of property. Parliament alone can abrogate public or private rights. Therefore, when a municipal body or a company desires to build or extend a railway, to provide a local community with gas or water, to lay down a tramway, to open a cemetery, to construct a system of sewerage, to erect municipal buildings, to make a canal, to provide harbour and dock accommodation, or construct works of any kind, which, in their execution or operation would trench on public rights or private interests, it must embody its scheme in a Bill and submit it to Parliament, which alone possesses and can alone confer on an outside authority, the power, for instance, of acquiring land compulsorily--subject, of course, to proper compensation to the owner; and no step can legally be taken by the promoters in the carrying out of the scheme until the Bill has passed through Parliament.

Every Private Bill--a Bill, say, empowering a little country town to provide itself with gas--has to go through precisely the same stages in both Houses of Parliament as a Public Bill dealing with a matter in which the whole country is interested. It must be presented in either House and read a first time, pass its second reading, be committed, or referred to a committee for the consideration of its details, reported to the House, read a third time, then go up to the Lords, if it originated in the Commons, or down to the Commons, if it originated in the Lords, where it must again go through

all the same stages, and finally receive the Royal Assent which transforms all Bills into Acts of Parliament. Nevertheless, there are certain marked distinctions between procedure on a Private Bill and procedure on a Public Bill. The proceedings in committee on Public Bills is of a purely legislative character, whether the committee is a Committee of the whole House sitting in the Chamber itself, or a Grand Committee meeting in one of the committee-rooms upstairs. But a committee on a Private Bill always sits upstairs and exercises judicial as well as legislative functions.

There is also a striking difference in the manner in which Public Bills and Private Bills are presented to Parliament. A Public Bill is introduced in either House without any preliminary proceedings outside. But before any Private Bill can be presented in either House, a petition for such a Bill, together with plans of the proposed scheme or undertaking and an estimate of its cost, must be deposited by the parliamentary agent of the promoters in the Private Bill Office. Copies of these documents must also be sent to the Government Department interested in the scheme--the Board of Trade, in the case of railways, and the Ministry of Health, in the case of undertakings by local authorities. Due notice must be given to all persons affected, such as the owners and occupiers of the land and houses proposed to be compulsorily acquired under the Bill. Each House has an official known as the “Examiner of Private Bills,” whose duty it is to see that the Standing Orders regulating Private Bills have been complied with. They sit together at Westminster about a fortnight before the meeting of Parliament, to hear the parliamentary agents of the interested parties--the promoters and opponents of the scheme--as to whether or not there has been proper compliance with the Standing Orders.

Parliamentary agents are usually--though not necessarily--solicitors. Any person, save a Member of Parliament (a term which includes, of course, Lords as well as Commons), or an official of either House, may become a parliamentary agent, by writing his name on the register of agents in the Private Bill Office, and by entering into a bond for £500 for the payment of the Private Bill fees, and for the due performance of the declaration he is also required to make, to obey the rules, orders, regulations, and practices of Parliament.

If the examiners find that the Standing Orders have been observed, the Private Bill may be presented in the House of Lords or the House of Commons. But if they report a breach of the Standing Orders, such as insufficiency of notice to parties concerned, or inaccuracy in the plans, the matter is referred to two committees--one appointed by each House at the commencement of every session--and known as the “Committee on Standing Orders.” These committees decide between them, on written statements supplied by the promoters and opponents of the scheme, whether the Bill should be allowed to be proceeded with that session, and if so under what, if any, conditions.

The next stage in the progress of a Private Bill is the selection of the House through which it shall first pass, for, as I have said, it must pass both Houses before it becomes an Act of Parliament. This question is settled by the Chairman of Ways and Means in the House of Commons, and the Lord Chairman of Committees in the House of Lords, who meet at the commencement of each session, to determine, in conjunction with the Counsel to Mr. Speaker, the House in which the respective

Private Bills should be first considered. Private Bill legislation is in that respect almost equally divided between the two Houses.

2

Let us follow a Private Bill in its initial courses through the House of Commons. After the preliminary proceedings which I have described, the Bill is lodged by the parliamentary agent in the Private Bill Office, and printed copies of it are delivered to the doorkeeper of the House for the use of Members. Every Private Bill is endorsed or "backed" by the names of two Members, at the request of constituents or the promoters; but these Members have, as a rule, nothing further to do with its progress through the House. All notices in relation to the Bill which appear on the "Orders of the Day," except notices of opposition, are given by the parliamentary agent of the promoters. It is he who fixes the day for the first, second, or third reading, subject, however, to the revision of the Chairman of Ways and Means. But as no stage of a Bill, private or public, can be passed except by a motion made and put in the usual manner from the Chair, one Member of the House--generally an old and respected Member--undertakes the duty of moving these motions in regard to Private Bills.

The first thing the House of Commons does after prayers, with which it opens each sitting, is to proceed with any Private Bills that may be down on the notice-paper for consideration. The normal aspect of the Chamber at this hour is empty and listless. Half a dozen Members or so are scattered over the benches at each side. The responsibility of Ministers in regard to public legislation does not extend to Private Bills. Indeed, Ministers, as a rule, abstain from any interference in these measures. The only occupant of the Treasury Bench is the obliging unofficial Member, who, to the great convenience of the House, as well as of the parties interested in the Private Bills, has undertaken to see these measures through the different stages.

The proceedings are purely formal. The Speaker rises and says, "The Clerk will now proceed to read the titles of Private Bills set down for consideration this day." There may be six or eight such Bills some days, and on other days no more than one or two, in various stages of advancement. But be the list long or short, it is generally gone through in a few minutes. The Clerk, reading from the "Orders of the Day," says, "The Essex Railway Extension Bill--second reading"; the Member on the Treasury Bench lifts his hat to indicate that he moves the Order, and the voice of Mr. Speaker is again heard reciting the formula of putting a question: "As many as are of that opinion will say 'Aye'; the contrary, 'No.'" No one responds to the Speaker's invitation. Not a solitary "Aye" or "No" is heard from the few uninterested and inattentive Members present. But, nevertheless, the Speaker imperturbably declares he thinks the "Ayes" have it, and then pronounces the irrevocable decision, "The 'Ayes' have it." And so on through the entire list. The Clerk reads the title and stage of each Bill; the occupant of the Treasury Bench raises his hat; the Speaker declares the order passed.

But all Private Bills are not disposed of in this formal manner. Many of them closely affect for good or ill the well-being and convenience of large masses of the people, and naturally, are strongly opposed. Private Bills of this character are often

debated for hours with great animation, not, however, at the opening of the sitting, but at a quarter-past eight o'clock, till which hour opposed Private Bills are adjourned. The progress of the average Private Bill through the House is even and uneventful, and it is only when, after second reading--by which the House has affirmed the general principle or expediency of the measure--it is referred to a committee, sitting upstairs, that it finds itself in troubled waters.

Before we follow the Private Bill upstairs, let us see how the committee, which is to decide its fate, has been appointed. The committee consists of a chairman and three other Members who are selected--like the Members of Grand Committees to which, as I have already described, Public Bills are referred--by the Committee of Selection. Each Member must sign a declaration that his constituents have no local interest, and that he himself has no personal interest, in the undertaking which is the subject of the Private Bill; and that he will not vote on any question which may arise before the committee without having heard and attended to the evidence. Members of the Administration do not act on these Private Bill Committees. Ex-Ministers are also excused. Professional men, such as doctors and lawyers, or men actively engaged in business, are rarely called upon to serve. Work in the committee-rooms is important and useful; but it is also responsible, wearisome and obscure. Many Members accordingly try to escape it; and it is notorious that many succeeded in doing so--professional men especially--with the connivance of the Whips, by whom lists of those in each Party available for service are prepared for the Committee of Selection.

But no Member selected for the duty is allowed to shirk it without sufficient reason--aye, though he may have been suspended from the service of the House for disorderly conduct. Any Member failing to attend a committee for which he has been appointed is reported to the House by the Committee of Selection as "a defaulting Member." He is then required to attend in his place in the House and explain his neglect of duty. Should he still prove contumacious, he may be brought to the Bar and admonished by the Speaker, or he may even be sent to the Clock Tower, as the House directs. Curiously enough, in almost every other branch of parliamentary work attendance is optional. There are on record only two cases of Members reported for absence from Private Bill Committees. One was due to a misunderstanding. In 1860 Pope Hennessy, an Irish Member, was reported to the House for disobedience of the summons of the Committee of Selection to serve on a railway committee. He was ordered to attend in his place in the House and give an explanation. Two days later the Speaker announced that the hon. Member, had sent him from Cork a telegram, which ran: "Railway Committee had escaped my recollection. I most respectfully apologize to the House. I hasten to London without delay." Next day Pope Hennessy appeared in his place. His explanation was accepted, but he was directed to attend the committee forthwith. In 1846 another Irish Member, Smith O'Brien, refused to serve on a Private Bill Committee, to which he was nominated, as a protest against the Irish policy of the Government. He was committed to the custody of the Serjeant-at-Arms, and was detained in prison at Westminster for as long as three weeks before the House ordered his discharge. Two years later he led the Young Ireland Party in rebellion, and was sentenced to be hanged, drawn and quartered, but was reprieved.

To such a committee, so selected and so composed, a Private Bill, if it be objected to--that is to say, if after the first reading a petition against it has been lodged in the Private Bill Office, in which the petitioners pray to be heard by themselves, their counsel, or their agents--is referred for the consideration of its details. Of unopposed Private Bills it is only necessary to say that they are sent to a committee over which the Chairman of Ways and Means presides. The procedure of a Private Bill Committee partakes more of a judicial than of a legislative character; or, perhaps, it would be more accurate to say that it is partly judicial and partly legislative. The Members first sit as judges. They hear evidence on behalf of the promoters and opponents of the Bill; they listen to speeches of counsel; and finally they adjudicate upon the merits of the undertaking. If they find against the Bill--if they decide to report to the House “that the preamble has not been proved”--the Bill is thrown out. But if they declare that the preamble, or introductory portion of the Bill, in which its intentions are defined, has been proved, they then proceed, in their legislative capacity, to go through the clauses, and approve, amend, or reject as they think proper.

3

The rooms in which these committees sit are along a magnificent corridor, running the whole length of the Palace of Westminster, facing the Thames. Access to this busy hive of commercial legislation is obtained from the Central Hall by a broad flight of stairs. To the right are the Lords’ committee-rooms, and to the left the committee-rooms of the Commons. On days the committees are sitting--the Lords’ from 11 to 4, the Commons’ from 12 to 4--the long corridor presents a scene of bustle and excitement. Serving the same purpose as the central hall of the Law Courts, it is thronged with parties interested in the Private Bills--barristers in wig and gown passing to and fro from one committee-room to another, agents and their clerks, witnesses of all kinds. Each room has a distinctive number. One of them, “Committee-Room 15,” in which were held the famous meetings of the Irish Parliamentary Party in December 1891, which culminated in the split of the Nationalists, the deposition of Parnell, closely followed by his tragic death, will always be an apartment of historic memories. There are two entrances to each room, one for “Members Only,” the other the “Public Entrance”; and at each door also (at which a policeman stands on guard) is a framed announcement, in large letters, of the name of the Select Committee sitting within.

There are nineteen of these committee-rooms. Each is a large and lofty chamber, with windows commanding a view of the river. A table, in shape like a horse-shoe, fills half the room. On a raised seat at the top of the table sits the chairman, flanked at each side by his colleagues. Fronting them, inside the table, is seated the witness under examination. At a small separate table close at hand is a clerk of the Private Bill Office, who keeps minutes of the proceedings; but the evidence is fully taken by an official stenographer, who sits at a table close to the witness-chair. At the end of the horse-shoe table there is a long table for the accommodation of counsel, the parliamentary agent, and the local solicitors on behalf both of the promoters and the opponents of the Bill. At the back of the room stand the witnesses waiting to be called

and others interested in the Bill, with occasionally a sprinkling of the general public, who are being shown over the Palace of Westminster by Members of Parliament, while at a detached table close to the windows several newspaper reporters are busily at work. The walls are generally hung with huge maps showing the route of the proposed railway, canal, or tramway, or plans illustrating the scheme under consideration, the details of which are indicated by the witnesses by means of long pointers. The witnesses, of course, are brought up by the parties interested. The prospect of big fees, liberal expenses, and a pleasant holiday in London secures their attendance. But if these inducements should fail in the case of a person whose testimony, in the opinion of the committee, is essential, he is reported to the House, and if extreme measures are deemed necessary to compel his attendance, Mr. Speaker issues to the Serjeant-at-Arms a warrant for his arrest.

An inquiry before a Private Bill Committee can hardly be described as exhilarating. Sometimes the proceedings have that intellectual interest which is aroused by the contradictory statements of eminent experts on opposite sides, by a clever cross-examination of these professional witnesses, or by a passage at arms between opposing counsel. But on the whole it is dull work. The investigations are often protracted as well as irksome. Richard Cobden was appointed on a railway committee in the session of 1845, and his letters to his wife and brother in reference to the exacting nature and the tediousness of the service are just as applicable to the state of affairs to-day. On June 24, 1845, he writes to his wife:

There never was such a case of petty persecution as I am enduring in this railway committee. We have been nearly five weeks sitting, hearing witnesses and listening to the tedious harangues of counsel about a lot of paltry lines among the little towns and villages in Norfolk and Suffolk. I thought we should have got to the end of our work in a fortnight or three weeks, but now we are threatened with another week or ten days. And the great misfortune is that we have no power to put any restraint upon the tongues of the counsel, who are paid in proportion to the length of time they can waste.

At the same time Cobden was groaning over his ill luck to his brother, who was communicating to him pressing and unpleasant business affairs; he writes:

June 6th.--I am sorry to say it is impossible for me to come down even for a day. Our committee have determined to sit on Saturdays, and the rule of the House precludes me from being absent even for an hour. God only knows when this odious committee will come to a close.

June 19th.--Your letters keep me on the tenter-hooks, for I know not in what extremity you may be placed. I am in the same predicament as ever. The committee will in all probability last a week more. To-day we have been treated to a three hours' speech by a counsel upon a mere fraction of the group. What makes it more difficult to escape is that the committee does not give a decision on any part until we have heard the whole, and consequently nobody not acquainted with the evidence already taken could step in to fill my place. Sir Benjamin Hall, very luckily for him, was pitched from his horse on his head the second day of our meeting, and he was

excused from further attendance.

4

It is no wonder, then, that Members of Parliament should desire to escape service on these committees. There is a popular belief that they are paid five guineas a day, but it has no foundation in fact. They get no special remuneration whatever for their time and labour. They have, however, one curious privilege. A seat in the House of Commons for the evening is secured only by attendance at prayers. From this rule Members serving on committees are exempt. On their way to the committee-room in the morning they may enter the Chamber and slip a pink card--as distinguished from the white card of Members who have been at prayers--into the slit at the back of the seats they desire to retain. But it is doubtful whether many of them are satisfied with that as an adequate compensation for the inconvenience of having to appear in the committee-room so early as twelve o'clock, after, perhaps, a late sitting of the House the night before, and give attention for hours to long statements of dull facts and figures and dry technical details.

So tied are the Members of the committee to their task that not more than one of them can be absent at the same time, for it takes three of the four to form a quorum. If two Members absent themselves, the sitting is suspended for an hour; if at the end of that time one of them does not appear, the committee is adjourned till next day, and, unless a reasonable excuse can be given, the defaulters are reported to the House. The presence of the Members in the committee-room is therefore essential to the progress of the proceedings. On the chairman--always a man of experience, with a special aptitude for business and familiarity with the procedure on Private Bills--falls most of the burden of the work and responsibility. He gives all his attention to the inquiry. He sedulously listens to the arguments and most carefully weighs the evidence. The example he sets is followed by the other Members, though, perhaps, at some distance. Nevertheless, this kind of service is more enjoyed by some Members than that of making speeches in the House, or hearing them, because they feel they are "doing something real."

At a quarter to three o'clock, the time the House meets, one of the messengers pops his head into the committee-room and shouts: "Mr. Speaker at prayers." The committee, however, do not join the Speaker for devotions. They remain to wrestle with the question whether or not some little town newly sprung to municipal dignity should be allowed to make its own gas or run its own trams. But should a division take place in the House during the remaining hour or so the committee sits, the Members jump to their feet at the first sound of the signal bell, rush headlong from the room and down the staircase leading to the Legislative Chamber, and knowing little or nothing, perhaps, of the issue which hangs on the division--a vital issue, it may be, of national policy--pass into the lobby pointed out by the Government Whips if they are supporters of the Government, and go into the other lobby if they are of the Opposition. Then, after this remarkable display of devotion to Party, they return to the committee-room, and resume the consideration of the municipal question at the point at which it was interrupted by the summons of the division bell.

But apart from this diversion, which does not often happen, the monotony of the inquiry is unbroken even by an interval for luncheon. A waiter brings a Member, on his order, a sandwich, or a few biscuits, with a glass of milk, or a bottle of ginger beer, and this modest fare is partaken of while listening to a prosy counsel or a tedious witness. Disraeli once said that a Member of Parliament who desired to be a success in the House should live on Blue-Books and biscuits. Of all our representatives, the Members of committees on Private Bills more closely attain to that ideally heroic state of parliamentary existence.

In the committee-rooms of Parliament there is not the same strictness as to the manner of examining witnesses that is maintained in the Law Courts. The witnesses are not sworn, except at inquiries of a special character. To ask “leading questions” is a matter of ordinary practice. A well-known member of the Parliamentary Bar appearing in one of the High Courts of Justice had not proceeded far with his examination of a witness when he was interrupted by the Judge. “No, no,” exclaimed his lordship. “That may be good enough for Westminster, but here we take evidence according to the laws of evidence.” The Members of the Private Bill Committees are similarly unfettered by rules or precedents. The decisions are guided by no fixed principles. Accordingly, they are without uniformity, and, indeed, are sometimes contradictory. It is also the fact that some Members nominated on Private Bill Committees are unqualified by experience or training to act as judges on the business matters at issue. There is a story told of a young Member, sitting on a committee to decide on the engineering merits of two rival lines of railways, who, after days of silence, aroused himself to ask, “Pray, what is a gradient?” But, on the other hand, it may be said that an average share of shrewdness and common sense is alone sufficient to guide the committee to a proper decision on the question of public expediency or policy at stake in a Private Bill.

“Do the advantages, or services, offered to the public by the scheme justify the interference with private rights which the execution of the scheme involves?” That is the main question, and when the evidence is concluded, and counsel on each side have been heard, the committee deliberate upon it with closed doors. If the committee decide the question in the negative, the parties are called in, and the chairman simply says: “The preamble of the Bill has not been proved to our satisfaction.” That is all. The committee on a Private Bill never give reasons for their decision. If the committee decide that the preamble of the Bill has been proved, the clauses are then taken up and gone through, one by one, as in the case of a Public Bill before the Committee of the Whole House, or one of the Grand Committees. Amendments may be moved, or new clauses submitted, on behalf of both promoters and opponents; but, of course, the questions are decided solely by the Members of the committee. The chairman votes in every division, and if the numbers are equal, he also gives a casting vote. It is the interest of the community directly concerned, or the general public benefit, that the committee keep in view in deciding all questions. They limit the amount of taxes, rates, tolls, or fares which the company may charge the public, and even restrict the profits the company may divide among the shareholders.

5

Having passed successfully through the committee stage, the Bill is reported to the House of Commons, and some day it is formally read a third time. It then goes up to the House of Lords, where a similar ordeal awaits it. Its first reading and second reading are generally mere formal stages, but if it embodies a scheme which is stoutly opposed it is referred to a committee--consisting of a chairman and five other peers, appointed, as in the Commons, by a Committee of Selection--before which the same evidence is given, and the same counsel appear for promoters and opponents, exactly as before the committee of the Commons. The Bill may even be rejected by the committee of the Lords. After hearing the evidence, the Lords may find that “it is inexpedient to proceed with the Bill” (the form in which committees of the Lords declare their judgment), and the Bill is accordingly thrown out, without any reasons being assigned. In that event, the expense and time and worry of getting the Bill through the House of Commons have all led to nothing. That this sometimes happens, the story of the Manchester Ship Canal Bill for making a seaport of Manchester--one of the most important Private Bills ever promoted--affords proof. In 1883 the Bill was introduced in the House of Commons, and, though strongly opposed on behalf of Liverpool, passed successfully through all the stages, including an inquiry, extending over thirty-nine days, before the Commons’ Committee; but was rejected, after another prolonged investigation, by the Lords’ Committee. In the following session the Bill was first brought into the House of Lords. It was referred to a committee in the usual course, and this time it passed triumphantly through the trying ordeal of an inquiry which lasted forty-one days. Then it came down to the Commons, got through its first and second readings in the House, but came to grief at the end of twenty days’ investigation before the Commons’ Committee. The Bill subsequently passed through the same stages in both Houses, and became law--as the existence of the Manchester Ship Canal sufficiently indicates--but the long and arduous contest over it added £100,000 to the expenses of the undertaking, and probably cost the Corporation of Liverpool and the railway companies which opposed it at least the same amount.

However, every Private Bill has not to go through this double inquiry before different committees of both Houses of Parliament. The opponents, if defeated before the committee of the House in which the Bill originated, allow, as a rule, the Bill to go through. It is only in the case of an undertaking of great magnitude that the opponents use the second committee as a court of review in regard to the decision of the first. The high fees tend to restrain vexatious proceedings on the part of promoters and opponents alike. Moreover, even if the investigation should be twice repeated, it is seldom that a Bill which has passed the committee of one House is rejected by the committee of the other, though it happens occasionally that the production of new evidence before the second inquiry leads to the material amending of the Bill. But in most cases a Private Bill that has passed through one House is referred, if the House be the Commons, to the Chairman of Committees in the Lords, or, if the House be the Lords, to the Chairman of Ways and Means in the Commons, and the approval of the one chairman or the other renders the passage of the Bill through its remaining stages, in the Lords or in the Commons, easy and expeditious.

Nothing now remains but the Royal Assent. When that is given, as it is in due course, the Private Bill becomes an Act of Parliament.

Parliament derives a substantial revenue from fees charged to promoters and opponents of Private Bills. The aggregate sum paid to Lords and Commons is, on an average, about £80,000 a year, and is applied as appropriations in aid towards the salaries and expenses of the officials of the Private Bill Office of each House. Altogether, a sum of about £800,000 is spent, on an average, in each session on promoting and opposing Private Bills. The biggest items in this expenditure are the payments to counsel and professional witnesses. The Parliamentary Bar, as it is called, is quite a distinct branch of the legal profession, at which specialists in the law relating to Private Bills practice exclusively. The work is usually compressed within three or four months of the session. Within that period the “leaders” live lives of tremendous pressure. They are usually briefed to appear for or against all the Private Bills under investigation before the committees sitting the same day, and so they may be observed hurrying from room to room--always calm and bland, nevertheless--examining a witness here, making a speech there, conducting a cross-examination elsewhere, their movements being regulated by their watchful clerks, who keep them informed of the progress of events before each committee in which they are interested. It is said that a few of the “leaders” earn in these three months £20,000. At any rate, I remember reading in a speech by the chairman of the Manchester Ship Canal, delivered during the protracted proceedings, with varying fortunes, in relation to that gigantic engineering scheme, before different committees of both Houses, during four or five sessions, that the promoters paid 80 guineas per hour (or 120 guineas per day of four hours) for each hour each Select Committee sat on the Bill, to four counsel, only one of whom was present at any time in the committee-room.

6

The acceptance by a Member of the House of Commons of a bribe for advancing or defeating a Private Bill is punished by expulsion from the House. To solicit a bribe is visited with imprisonment. Happily, Private Bill legislation is absolutely free from all taint or suspicion of corruption. There is no instance known of a Member of Parliament having been guilty of personal dishonesty in the exercise of his legislative functions. There is one case of the solicitation of a bribe. In 1879 the chairman of a committee which sat to consider the Tower High Level Bridge Bill reported to the House of Commons that a Member of the House, named Grissell, had represented to the agents conducting the opposition to the measure that he would control the decision of the committee and procure the withdrawal or rejection of the Bill for the sum of £2,000. A solicitor named Ward was involved with Grissell in the charge. Both were found guilty by the House, and the Serjeant-at-Arms was ordered to arrest them and bring them to the Bar for judgment. Ward was apprehended. Grissell escaped to Boulogne, whither he was followed by a messenger of the House; but as the warrant of the House runs only within the kingdom, the absconder could not be brought back. Ward was committed to the Clock Tower during the pleasure of the House. After a week’s imprisonment, he sent a humble petition to the House expressing the deepest

contrition and was set at liberty. Grissell returned to London and surrendered himself to the Serjeant-at-Arms. But this was two days only before the termination of the session, when, as Grissell was well aware, any order of the House in regard to his imprisonment would lapse. He was committed to Newgate on August 13, and was released the next day on the prorogation of Parliament, but was informed he would be arrested again in the next session. On the assembling of Parliament in 1880 he expressed his sincere sorrow for his offence, but he was again committed to Newgate for having evaded in the first instance the warrant of the House. His imprisonment ended, perforce, with the end of that session.

This system of Private Bill legislation, under the direct authority and supervision of Parliament, has existed for centuries. On the whole, it has worked excellently well. Under these Private Bills which are passed session after session great municipal and commercial undertakings are carried out. The kingdom has been honeycombed with railways and canals. Docks and harbours have been built in its seaports. The cities and towns have been provided with drainage systems, supplies of water, gas and electric light and tramways. The prosperity, health and comfort of the community have been immensely promoted. Spacious cemeteries have been opened in urban areas for the decorous disposal of the dead. And exacting and laborious though service on committees is to Members, Parliament has always rejected proposals for the transference of the work to an outside body, such as a Government department or judicial tribunal. Parliament is reluctant to part with any of its direct power and authority over matters involving the abolition of existing rights or the creation of new ones. Even the setting up of joint committees of Lords and Commons to consider Private Bills--thus dispensing with that duplication of the detailed hearing of the arguments for and against a Bill by separate committees of the two Houses--to the saving of time, money and labour, though sometimes resorted to, is usually received with disfavour. Here we have an illustration of how jealous each House is for the preservation of its ancient privileges and customs.

What Parliament has done is to relieve itself of some of the work associated with inquiries into Private Bills by means of the system known as “Provisional Orders.” Such Government departments as the Home Office and the Ministry of Health are authorized by various Acts of Parliament to grant these Provisional Orders on the application of local authorities. The Orders are, however, limited mainly to the repeal, alteration or amendment of existing local Acts. Under them no fresh powers can be granted. Until it has been confirmed by Parliament the Provisional Order does not become law. But the system enables local authorities to obtain the necessary parliamentary sanction for the execution of certain local works with greater expedition and at much less cost than by Private Bills. A Provisional Order can be got through Parliament in a week or two when a Private Bill would take months to pass. The promoters of Provisional Orders are exempt from the payment of fees, but should an Order be opposed, which is a rare occurrence, the opponents are obliged to pay the same fees as in the case of Private Bills. It has been calculated that the average expense to local authorities in promoting Provisional Orders is £233 per Order, as compared with an average cost of £2,178 for a Private Bill.

In 1899 the weary shoulders of Parliament was still further relieved, by the Unionist Administration, of a part of this burden of Private Bill legislation. A new tribunal for dealing with Scottish Private Bills by a separate procedure was established. All private legislative proposals from Scotland are deposited at Westminster in the form of Provisional Orders. The Chairman of Committees in the Lords, and the Chairman of Ways and Means in the Commons, meet and consider whether these proposals should go forward as Provisional Orders or as Private Bills. If they decide in favour of Private Bill procedure, the proposed schemes must receive parliamentary sanction at Westminster. But should the decision be in favour of Provisional Orders, as it generally is, the proposed undertakings, if opposed, are sent down to the locality concerned to be inquired into locally by a committee composed of two Scottish peers and two Scottish Members of the House of Commons, having no interest, local or personal, in the matter. If a scheme should be unopposed, it is simply examined by the Government department to whose province it relates. But though the inquiry be local or departmental, Parliament watches and controls the acts and decisions of the new tribunals. All these Provisional Orders, unopposed or opposed, have ultimately to receive the sanction of both Houses of the Legislature.

CHAPTER XVI

PARLIAMENT DURING THE WORLD WAR

1

The World War had a more transforming or modifying effect on Parliament than any other event of magnitude in history. Parliament, indeed, has had to face but few disintegrating shocks in the past, and it emerged from them but little changed, if changed at all. Parliament passed unaffected, first through the Civil War, and afterwards through the Revolution. Only a slight alteration was made in the character and social status of its Members, and in its spirit, by the Reform Act of 1832, which was expected by friends and opponents alike to have stupendous results. It has only been in later years, by means of the extension of the franchise, that important modifications in the nature of its membership took place. But the influences of the World War on Parliament, passing and permanent, were both sweeping and profound.

There are certain attributes of the House of Commons which are generally recognized. It is an open and unfettered deliberative Assembly. Its Members pride themselves on being free to say what they think, within the bounds of order and relevancy, in the hearing of the whole world. It has the sole control of the imposition of taxation and the spending of the revenue. It enacts laws. It is composed of two elements, the Government and the Opposition. By means of question and debate the Opposition provide a check on the policy and administration of the Government, and should the Government be defeated by their action they are ready to supply an alternative Government. The followers of both are regimented by the system called “Whipping” for the advancement of Party principles. In regard to all these functions, the working of the House of Commons was, with general consent, practically

suspended for the period of the War. These effects were but temporary. But there were others, relating more to the spirit of the Assembly than to its procedure, which seem destined to endure. Party discipline is unlikely ever again to be so rigid and punitive as it was before the War. The House of Commons is still divided, as of yore, between Government and Opposition, but the old solidarity on each side would seem to have been permanently shaken. For one thing, the group system has been introduced. I do not mean groups unattached to Government or Opposition, in the sense that they do not accept the Whips of either, but groups within the organized Parties, Unionist, Liberal and Labour, advocating policies not antagonistic exactly to the Party creeds, but somewhat out of harmony with the day's policy of the Government or Opposition. The influence of such a system is disintegrating. For another thing, the independent Member made his appearance, and it looked as if he had come to stay and to increase and multiply--the Member, that is, who is attached politically neither to Government nor Opposition, criticizing or supporting one or the other according to the appeal the current subject of debate makes to his stable--or is it unstable?--mind. The control of Government over its followers has thereby been much weakened. Again and again after the War, the Government, impressed or intimidated by the volume of attack from Members who were nominally counted among their own supporters, consented not to put on their Whips in the division, thus permitting a vote to be freely taken on the matter in dispute, and allowing their followers to act as thinking men, according to their individual opinions, instead of as Party men as the Government dictated. All this had the effect of making both debates and decisions truer expressions of real conviction, uninfluenced by Party interests than they ever had been before. But were the example to spread, a Government backed by a solid majority, and strong enough to retain office and carry its measures, might become far more exceptional than it has been in the past. Yet this also must be pointed out, that every time the Whips were withdrawn, the Government had a substantial, if reduced, majority, showing they had right on their side--in the opinion of the vast body of their supporters.

2

One of the War's first effects was the easing of the political situation at home by means of a Party truce. Parties at the time had reached their highest point of strength and rigidity and were intensely embittered. The question in dispute between the Liberal Government and the Unionist Opposition was Home Rule for Ireland. Civil war, or, at the least, grave political disturbances, seemed inevitable. Suddenly into this scene of domestic turmoil and disruption appeared the still more terrifying spectre of the World War. What would the Opposition do? In all previous wars the Government were criticized and bated by the Opposition, or by large and influential sections of the Opposition, and, indeed, in some cases, were hampered and harassed in the very conduct of operations. But on Sunday, August 2, 1914, when the action of the Government with respect to the declaration of War between Germany and France was still in doubt--Germany not having then invaded Belgium--Mr. Bonar Law, as Leader of the Opposition in the Commons, and Lord Lansdowne as Leader of the Opposition in the Lords, wrote a private letter to Mr. Asquith, the Prime Minister, declaring their belief that any hesitation to stand by France would be fatal to the

honour and security of the United Kingdom, and promising the support of the Unionist Party in any measures the Government might consider necessary in aid of France. This decision of the Opposition was made public by Mr. Bonar Law in a speech on December 14, 1914. “Many times in the past,” said he, “nations with more or less free institutions, have been brought to the verge of ruin because, even in the face of danger without, they have not been able to stifle domestic conflict within.” That was not to be so now. The World War developed a higher degree of solidarity among Members of the House of Commons than had ever been attained since the introduction of the Party system. When Sir Edward Grey announced in the House of Commons, on Monday, August 3, 1914, that this country was constrained to draw the sword upon Germany, the Government had the support of all Parties united and unanimous, save for a small pacifist group composed of Labour and Radical representatives.

The Party conflict was thus suspended. It was arranged that there were to be no electoral contests during the War. If a seat became vacant, the right and title to it of the Party in possession was not to be disputed. All Party organizations, whether at headquarters in London or in the constituencies, were put to “work of national importance”--to use a phrase that came into common use during the War. Their trained speakers were sent through the country to explain to the people the origin of the War, and its objects, evil and good.

The Party truce quickly developed into a Party alliance. The Party Administration in power gave way to a National Government. The first move in this direction was the appointment of Lord Kitchener, a neutral in politics, to the post of Secretary of State for War. He stated publicly that he took office not as a Party man but as a soldier, to give the State the benefit of his experience in the prosecution of the War. Then in May 1915 Mr. Asquith, as Prime Minister, came to the conclusion--or so it was said--that the War had attained to such a magnitude that the State in waging it required the active support of all Parties, and his colleagues in the Ministry having, by his direction, placed their respective offices at his disposal--an exception being made in the case of Sir Edward Grey, Foreign Secretary--he formed a Coalition Government, representative of the Unionist and Labour Parties, as well as the Liberal. The Irish Nationalists stood aloof. John Redmond, their leader, was invited to take Cabinet office, but though the Home Rule Act had been placed on the Statute Book, in a state of suspension until the War was over, he adhered to the settled policy of the Party that no Member of it should take or seek office in any Government until Home Rule had been established. The Nationalists, however, supported the War. Mr. Asquith, announcing the formation of the Coalition to the House of Commons, said it must not be taken as indicating anything in the nature of a surrender or compromise on the part of any persons, or bodies of persons, of their several political purposes or ideals. “One reason only could justify,” he said, “such a new departure in the constitutional practice of Parliament--a clear and urgent case of national necessity.” At the conclusion of the War, he added, Parties would be free to revert to their original positions.

The situation was anomalous in some respects. It was said at the time that this sweeping reconstruction of the Ministry was the work of a very small number of men, not more than a dozen, representing the Government and the Opposition. The Parties, Unionist, Liberal and Labour, were not consulted at any meeting called for the purpose, and some of the Ministers were unaware, as they publicly stated, that a Coalition had been arranged until they received the Prime Minister's request to resign their offices. What was most remarkable of all was that the Liberal Government, which had been returned at the General Election to carry Party measures, was put out of existence, and its place was taken by a Government which had no mandate direct from the people. The Coalition Government, nevertheless, was accepted by the King, by Parliament and by the country. The truth is, there was dissatisfaction with the conduct of the War. It was not moving to victory, or did not appear to be, in the eyes of the public. Its direction lacked vigour and far-sightedness at home, and at the front high explosives. So the Coalition was formed not only to bring in fresh minds, but also to widen the field of Party responsibility and thus curtail the line of partisan attack. It was one of the most striking examples afforded during the War of the adaptability of Parliament to circumstances, even the most unprecedented and unforeseen, and the swiftness with which it can move in a time of national danger. Another instance of the pliancy of the Constitution in the face of emergency quickly followed. The new Ministers did not have to go to their constituencies for a renewal of their trust. This was avoided by the passing of an Act temporarily suspending the old Statute of 1707 requiring the re-election of Members of the House of Commons on acceptance of office.

Thus were the swords of all Parties sheathed in their scabbards. Thus did the Opposition almost entirely disappear. Thus did Parties agree to put their political opinions in the background for the duration of the War. An Empire may be run on political principles; a man may regulate his relations towards his fellow-men, or towards the State, on political principles. But a World War cannot be conducted on political principles, be they Conservative, Liberal or Labour, any more than if you had the misfortune to fall into the hands of footpads you could save yourself by summoning to your aid the political principles in which you have faith. The real function of Parliament was also made clear. It is often forgotten that Parliament does not govern. The purpose of Parliament is to advise as to policy. That is to say, it does not administer the affairs of the country, small or great. Executive government is in the hands of the King's Ministers. The part played by Parliament during the War was to pass measures for the prosecution of the War submitted by Ministers, subject only to the merest attempt at control, or influence rather, by means of questions and criticism.

3

Parliament settled down to the concentration of all the energies and resources of the country in the efficient conduct of the War. Legislation unconnected with the War was suspended. No Private Bills relating to commercial and municipal undertakings were introduced. At the commencement of each session a Standing Order was adopted which prevented the bringing in of Bills, or the moving of motions dealing

with public affairs, by unofficial Members, thus sweeping away a privilege always highly valued. Even the control of the Commons over financial supplies and expenditure--the most ancient and imperative duty of the representative Chamber--was allowed to fall into abeyance. No Estimates of the customary kind were presented by the Service departments. Only token votes of the nominal sum of £1,000 were asked for. Each might mean, and probably did mean, £50,000,000 or £100,000,000. There was no debate on details. It was recognized that secrecy was most essential in the public interest. Expenditure to the extent of thousands of millions was authorized by successive Votes of Credit. The House willingly sanctioned the nature and amount of the taxes proposed for the raising of the national revenue. It also agreed without discussion to proposals for obtaining most of the money required for financing the War by means of loans.

Other business of the highest importance was transacted with the utmost celerity. Acts of Parliament of enormous scope were often passed in a single day, which in ordinary times would have been wrangled over for months. What Sir Frederick Banbury, of the City of London, the most searching and tireless critic of the policy and measures of the Government before the War, said of himself on the War Loan Bill--turning over a new leaf as a parliamentarian--may be applied to Members generally. “For twenty-three years,” he said, “I have been promoting discussion and preventing legislation. Now my desire is to prevent discussion and promote legislation.”

The one distinctive feature of the House of Commons which has struck all visitors for many a year was the Government and the Opposition seated facing one another on rising tiers of benches, and, in moments of high Party excitement, shouting challenge and defiance across the estranging floor. That picture was turned to the wall during the World War. There was an entire change in the aspect and temper of the House of Commons as the great arena of political controversy. The traditional seating of Members according to their Party principles was disturbed by the formation of the National Government. The floor lost its historic political significance. To cross it no longer meant so tremendous a personal revolution as a change in Party convictions--a passing from one political camp to the other. Certain conventions in regard to the occupation of seats, which appear to have arisen principally in the later half of the nineteenth century, have been so long accepted that they have now almost the force of settled rules. In theory no Member has a prescriptive right to a particular seat. There is only one way by which a Member can secure a place for the sitting, and that is, according to the Standing Order, by being present at prayers. I should say, parenthetically, that if a Member is thanked by the House for some great service, the place in which he sits at the time is reserved for his sole use, but that is a thing that has not occurred for many, many years. Nevertheless, the application of this Standing Order has been limited to the general body of Members on both sides of the House, who, by the use of the convenient, though irregular, term “private Members,” are distinguished from Ministers. The Treasury Bench, to the right of the Speaker, has long been appropriated exclusively by Members of the Government. At one time it was known not only as the Treasury Bench, but also as the Privy Councillors’ Bench. Not even a Privy Councillor who is a supporter of the Party in power, but not himself

a Minister, ever takes a seat on the Treasury Bench now. The corresponding Front Bench at the other side of the Clerk's table, called the "Front Opposition Bench," has long been reserved to Members who have held office in the preceding Administration of different political principles from the Administration in power. Apart from Ministers and ex-Ministers, certain distinguished Members, such as leaders of groups, are recognized as having a right to certain seats. But these places are reserved solely by usage and courtesy. In like manner it is the custom for old and respected Members, irrespective of Party, to be allowed to occupy without question places they have a mind to.

4

During the War, Liberals, Unionists and Labour sat where they pleased. Political forces that for centuries had been antagonistic in their very nature and composition coalesced, as if by a miracle, in defiance of all the accepted principles of political strife. Evidence of this amazing fusion was to be observed in all parts of the Chamber--in the appearance of familiar faces in strange places, among the general body of Members to the right and left of the Speaker, and still more in the juxtaposition on the Front Benches of Party leaders who were lately in the bitterest antagonism. Liberals, Unionists and Socialists sat together as Ministers on the Treasury Bench. For the first time in the history of Parliament the "Front Opposition Bench," as the appellation of the corresponding bench on the other side of the Table, became obsolete, because, for the first time in the history of Parliament, it was filled with partisans of widely different political opinions who were united in supporting the Government. No longer did Members blaze across at each other with fiery eyes from under clouded brows. On the contrary, one called the other "my honourable friend" in the true Coalition spirit. During the long time of international peace, but of domestic Party strife, it was as rare as summer snow for a Member to refer in debate to a Member on the other side of the floor as his honourable friend. Disraeli would not allow a Minister in his Government to call an opponent his honourable or right honourable friend. "Such ostentatious intimacy," he used to say, "would make the Party struggle appear to outsiders a mere game." By the etiquette of the House the leaders on each side of the Table were "right honourable gentlemen" to one another, no matter how close might have been their personal relations. During the War it was a common thing to hear the term "my right honourable friend" exchanged across the floor by political opponents of old standing.

A similar transformation took place in the House of Lords. Unionist leaders sat as Ministers on the Government Bench with such of the Liberal leaders in the late Ministry as were reappointed to office by Mr. Asquith. The Leader of the House, Lord Crewe, speaking on June 4, 1915, when the Coalition made its first appearance, referred to his new colleagues as "my noble friends, whom a few weeks ago I should not have ventured to address by that term." "All the House," he continued, "is now composed of cross-benches, and happily we have here no fractious politicians." It had been suggested that Tory peers in the Government should retain their old seats, but this was rejected, as Lord Lansdowne, late Leader of the Opposition afterwards explained, for two reasons. These were that close consultation between colleagues in

the Ministry is necessary to legislation, and that the public would not believe there was a Coalition if Ministers did not sit side by side on the same bench. Lord Lansdowne's brief speech was, perhaps, the most moving incident of that historic day. He was not a man given to emotion, but his voice faltered as he told his followers, sitting opposite, that the old comradeship was now "all at an end," and that he addressed them as leader "for the last time." He added a word of thanks to the Unionists for their faithfulness to himself in the past, and gave a pledge of their whole-hearted support to the Prime Minister in the prosecution of the War.

5

Another novel experience was the two Houses in secret session for the consideration of War measures. The first of these sessions was held on April 25, 1916, when the Government laid before Commons and Lords in their respective Chambers the proposals for the compulsory recruiting of men for the armies in the field. Only on two previous occasions did the House of Commons decide to exclude "strangers," and among them, of course, the representatives of the Press. These were, in 1870 for a debate on sexual diseases, and in 1878 for a debate on the murder of Lord Leitrim, an Irish landowner. Summarized reports of both discussions were published in the newspapers. These must have been supplied by Members. In order to prevent similar disclosures of the debates in secret session on War measures, the Privy Council issued a Regulation under the Defence of the Realm Acts, declaring it unlawful for any person in any newspaper or periodical, or in any public speech, to publish any report of the proceedings except such report as might be officially communicated.

The procedure by which the public galleries are cleared is the ancient one of "spying strangers." It is a reminder that by the theory of the Constitution debates in Parliament are secret, and that reports of them are still, as they always have been, permitted as a matter of grace by either House. Accordingly, in the House of Commons, Mr. Asquith drew the Speaker's attention to the presence of strangers. The question "that strangers be ordered to withdraw" was put at once, without debate, and carried, and the occupants of the public galleries, about a dozen peers, and the Press representatives, got up and left. On former occasions the order for the withdrawal of strangers did not extend to the Ladies' Gallery, which, by one of those curious parliamentary fictions, is not supposed to be within the House. "Ladies," says Erskine May in _Parliamentary Practice_, "can only be informed of the subject of debate, and left to withdraw or not, at their own discretion." This difficulty was got over on April 25 and 26, 1916--the secret session having lasted two days--by the Speaker directing that the Ladies' Gallery should not be opened. All the doors were locked and bolted. No one was present in the House who was not an elected representative, save the Clerk and the Serjeant-at-Arms.

As there is no rule in regard to "spying strangers" in the House of Lords, the procedure there took the form of moving a resolution that strangers be ordered to withdraw. On this an interesting debate arose. The Lord Great Chamberlain, who controls admission to the House of Lords, had closed the Chamber and its precincts to strangers without waiting for the peers' decision. This technical irregularity was held to be an infringement of their lordships' privilege to prescribe the conditions

under which any debate should take place, and a protest against it on their part was put upon record. Before this discussion in the Lords ended with the passing of the resolution to exclude strangers, it was made clear that the view which the Government took of the obligation of secrecy resting upon each individual Member of Parliament was not only in regard to printing and public speaking, which were covered by the new Regulation under the Defence of the Realm Acts, but in regard to private communications as well. Lord Crewe treated it as a matter of course that none of the Peers present at the secret session would “in any way divulge what passed, so far as its character was confidential.” In the official reports of the secret proceedings in both Houses, which were given to the Press, the purposes of the Government were briefly stated, but nothing was said as to the reasons for them, which would disclose the military situation to the enemy.

Parliament was found capable of adapting itself, in all respects, to the national needs in that roughest and most perilous passage which this country has encountered in its voyage through time.

CHAPTER XVII

CHANGES UNDER THE WAR-ECLIPSE

1

One of the general effects of a War in which the nations of the world were in death-grips was the belittlement of such national institutions as in time of peace derive their strength and influence from the sway of moral and intellectual ideals. It was the same with living beings. The young man, as the embodiment of physical force and fitness, was alone exalted. It appeared as if the soldier was the only man who really mattered, and that the factories and workshops which were concerned with equipping him efficiently for his work in the field of battle were the institutions that should be thought of most account. As compared with muscle and brawn, all else shrunk and shrivelled in importance. Even Parliament, one of the most ancient and renowned of English institutions, and certainly the most powerful, shared to some extent in the common fate. It was overshadowed and dwarfed in the deep anxiety that prevailed as to the possibility of a great disaster being brought about by the War. Indeed, it was said that in a time of war Parliament was not of much use, and might possibly become a hindrance to the Executive in the conduct of affairs. Some people urged that it would be better to close Parliament up altogether. It was found, however, that Parliament could not be dispensed with. Parliament remained the organ through which the policy of the National Government was announced to the people. And such measures as were necessary for the security of the Realm, in the opinion of the National Government, had to be passed by Parliament.

Accordingly, the sessions of both Houses were as long, if not longer, than those in times of peace. It is also the fact that only in Parliament did public opinion find free and unfettered expression, subject, of course, to the discretion called for in a state of war. While the Press was vigorously censored in news and comment, no attempt was

made to censor the parliamentary debates. But, as the Grand Council of the Nation, Parliament was a pale shadow of what it had been only a year before. Procedure, manners, customs were modified; and the most remarkable change of all occurred in the spirit of its Members--in their ways of feeling, thinking and acting as politicians. In short, the English Parliament, that for 700 years--since 1213, when the idea of representation first became associated with the National Assembly--had been the arena of conflict between the two main tendencies of thought in politics, the progressive and the conservative, suffered an eclipse in the black shadow of the European catastrophe. Party opinions counted for nothing. They were merely as dust in the balance. Such interest and distinction as Parliament retained during the War were due to the extent to which it expressed itself as the symbol of the national unity and determination in the conflict.

Some outward signs of the change that came over Parliament were visible to those who passed by the Palace of Westminster. There was Big Ben, the great clock up in its high tower, by which the people of London are accustomed to set their watches. On its four immense dials the passing of time was still recorded, but the familiar musical chimes that marked the quarters and the resonant bell which struck the hours were both silent. At night-time the clock was no longer illuminated. The brilliant lamp on the top of the tower which, seen for miles around, tells comforted London that the House of Commons is sitting, was put out. The windows along the great river front that used to gleam so brightly at night were shrouded by thick blinds. Shaded and dim lights were substituted for the blaze of street lamps around the Palace of Westminster. But the Flag was kept flying. Over the mighty Victoria Tower the Union Jack flew predominantly mast-high in the day-time. It was a symbol of the unconquerable temper of the country in that time of darkness and peril.

2

The first thing that must have struck the visitor to both the House of Lords and the House of Commons was the absence of youth, ever the pride and hope and promise of these Assemblies. This was particularly noticeable in the House of Commons. All were vanished, those bright and ardent spirits, whose voices were loudest in the approving cheers or defiant cries that marked the passionate debates on Home Rule but a little while ago. Two hundred or so were on active service in the Army and Navy. Some were dispersed among the ships of the Grand Fleet, which, silent and invisible, yet constituted an impregnable wall of steel and fire against invasion. Most of them were in Flanders or at the Dardanelles, or in Egypt or Mesopotamia--those grim arenas of conflict between divergent principles of statecraft and government, where the only speeches on both sides were the roar of cannon, sending forth the one common argument of a high explosive. The middle-aged and the old remained in the House--the middle-aged and the old who rule and manage and sometimes succeed, and other times make a frightful failure of things, so that the young and strong must go forth and try to make the crooked straight by brute force, at tremendous suffering and appalling sacrifice of life.

Several M.P.’s were wounded, others were taken prisoners of war; some died on the field of battle. It was in connection with the issue of new writs for the election of

Members for the constituencies of those who had fallen in the War that the first change in old customs caused by the War was observable. As an old parliamentary journalist, I have always wondered at the seeming indifference with which the House of Commons as a body hears that a Member has been struck off its rolls by death. A new Member is brought into the House amid the cheers of his Party. He may sit at the deliberations of the House for a quarter of a century or more, but, unless he attains to the highest rank as a Minister, no notice is taken of his loss when he passes away. The writ to fill his vacant place is moved for by the Whip of his Party; and though, no doubt, the mention of his name awakens in the minds of his intimate friends a thought of kindly remembrance, the House as a whole is unmoved. Not a hat is raised by way of respect. This insensibility to the visits of death to the House was brought to an end by the War. On the moving for a new writ for the election of a Member in room of Lieutenant Gladstone, “killed in action”--as the motion said--every Member simultaneously uncovered at the mention of the gallant officer’s name, and the cause of his death.

3

One effect of the absence of all the young Members in the field was very remarkable. Probably never since the Witenagemot, the ancient assembly of wise men that was the governing body of the nation under the Anglo-Saxon kings, had there been in Parliament so many grey-beards, or--as hair is scarce or has gone out of fashion--so many bald heads, as during the War. It was a Parliament of seigniors, the “most grave and reverend” of the Shakespearian quotation, but hardly the “potent,” for in that time of War it would seem as if potency were the attribute of young manhood alone. It was a gathering of the Fathers of the Nation. Still, a few Members were usually to be seen in the brown of the soldier or the blue of the sailor. This was when officers home from the Front, wounded or on short furlough, appeared in the House in their active service uniforms. Other soldiers and sailors present were those in training in home camps or engaged in administrative duties. But the importance of this spectacle of Members in uniform was that it marked a breach with a long-established custom. Hitherto there was but one occasion when the wearing of uniforms, or any other dress but the dress of the civilian, was allowed in Parliament. That was at the opening of a new session. In both Houses, the mover and seconder of the Address in reply to the King’s Speech are required to attend in uniform or levee dress. On any other day but the opening day of the session, a Member would not be permitted to enter the Chamber in any clothes but the clothes of a civilian. I have seen Lord Haldane, when he was Mr. Haldane and Member for Haddington, refused admittance because he wore at the time the gown and wig of a barrister. Appearing as counsel before a Royal Commission sitting in the precincts of the House, he hastened to the Chamber to vote, at the sound of the division bells, and was stopped at the threshold by the doorkeeper who told him that he must disrobe before he could pass in. This custom prescribing civilian dress was suspended only for soldiers and sailors, and only for the period of the War. Even so, it marked a striking departure from tradition. Those who saw new Members introduced wearing the khaki service dress of a soldier or the blue uniform of a naval officer during the War witnessed a thing that was without parallel in the long annals of Parliament. It was also the case

that, until the War broke out, khaki had never been worn in the House of Commons; and very conspicuous it was during the War, despite its supposed “invisibility,” in that assembly of civilians, though it did not tend to the easy identification of those who wore it. It was to be noticed, too, in all parts of the House--in the Nationalist and Labour quarters, as well as on the benches of the two main political parties, Liberal and Conservative--showing how general was the response of Members to the call to arms.

But in the midst of all these relaxations of ancient rules, which the War had brought about in regard to uniforms, there was, curiously enough, a rigid adherence to one kindred and closely allied custom. Even in that time of war no weapon of war could be taken into the House by a Member. Swords are worn by the uniformed mover and seconder of the Address at the opening of a session. That, again, is the only occasion when any symbol of the lethal duty of the soldier is permitted to affront the gaze of the unarmed representatives of the people in Parliament assembled. A revolver is an essential part of the service equipment of an officer. Yet one Member in khaki who during the War displayed a revolver in its lanyard was stopped at the door and required to leave the weapon in his locker outside before he could go to his place in the Chamber. Nevertheless, a sword is to be seen in the House of Commons at every sitting. The Serjeant-at-Arms carries it at his belt; but, then, the Serjeant-at-Arms is the chief executive officer of the House.

The interesting constitutional point, whether in the national crisis the proper place for Members of Parliament was in the House of Commons or in the field, was, after much discussion, settled by the acceptance of the view that the primary duty of a Member of Parliament is service in Parliament, which is the highest service under the Crown. The point was raised on the consideration of the second Military Service Act, 1916, extending the principle of compulsion to all men between the ages of 18 and 41. An amendment was moved in Committee to include Members of Parliament among the exempted persons, such as clergymen of all denominations. Many of the younger Members of Parliament had, as I have already indicated, joined the Forces while recruiting was still voluntary, and their patriotic action was an example to young men generally. On the other hand, it was contended that, as Members of both Houses were immediately concerned in the government of the Nation, their duty was to be in constant attendance at Westminster during the session, and that, in fact, to render them liable to compulsory service in the Army was a violation of the privileges of Parliament. But the motion was negatived. It was felt that the House of Commons, in passing a Bill calling up men of all classes to the Army, could not, in honour, or for shame sake, exempt its own Members. That, however, did not settle the question. Members of Parliament, like all other men called up by the Act, could go before one of the appeal tribunals set up for the hearing of claims for exemption. One Member did so, Mr. W. C. Anderson--the Labour representative of Athercliffe, Sheffield--and he was granted exemption on the ground, advanced by himself, that he was carrying on work of national importance, inasmuch as he was a Member of Parliament. That being so, it was announced in the House of Commons that the War Cabinet had decided to give to Members who were not already serving the option of joining the Army or continuing their work as Members of the House, and to Members who were

serving the choice either of continuing in the Army or returning to the House. The decision appears to me to have been right and proper. Members had important duties to discharge outside as well as inside the House--enlightening their constituencies as to the progress of the War, maintaining the public spirit, ascertaining local grievances and obtaining their redress.

4

It would not be quite correct to say that criticism of the proposals of the Government was no longer heard in the House of Commons. The House remained the great central organ of the Nation. The questions were too stupendous--the supply of man-power, the supply of munitions, to mention a few--and the issues dependent upon them too momentous, and there were, moreover, in the House too many minds representing divergent interests and opposing points of view. There were even a few Members, in a pettish kind of humour, disposed to fret and tease the Ministers. But anything like censorious or merely factious criticism would so grate on the sensibilities of the Assembly that any Member attempting to indulge in it would be overwhelmed in a storm of indignation. What was over and done with for the period of the War was Party controversy, or the discussion of public questions in the light of Party principles. In the deep peace which brooded over the House of Commons the division bells were practically silent. On the few occasions that divisions were challenged, the majorities for the Government were immense. The first Compulsory Service Bill was read a second time by a majority of close on 400, and a third time by a majority of 347. This mood of the House found vent in small things as well as great. Hitherto, all proposals to remove the _grille_, or iron screen, in front of the Ladies' Gallery was scouted by both Parties. In 1917 the _grille_ was taken away, and no one objected. What is more, women were allowed to sit with men in the public galleries at the other end of the Chamber.

5

But this state of things did not last. It could not last, for it was repugnant to the ineradicable disposition of politicians to differ, to contend, to oppose, and ultimately to form groups for the advancement of particular opinions and aims. Even before the War, when the disciplinary methods of Party organization were so rigid and powerful, there were a few Members on both sides unwilling to run always in harness, or inclined, on occasions, to bolt. Men of this type, with independent or wayward minds, have always been regarded by the Whips as intriguers and factionists, boasters and loud talkers. The disorganization, the actual break-up, of the Party system caused by the War allowed them freer play than ever, and dissatisfaction with the conduct and progress of the War gave a direction to their activities. "Ginger groups" were formed by both Liberal and Conservative Members, having as their common watchwords "efficiency and vigilance." They sought to test every executive and administrative act of the Government by the question, "Will it tend to the achievement of Victory?" More variety of opinion in regard to the War began to show itself, and, consequently, much less unity of action between the Coalition Government and its followers, Liberals, Unionists and Labour. In time, the spreading discontent led to something like a revival of an organized Opposition, and, as in peace time, its aim was to discredit the

Government with a view to its overthrow.

The disruption came early in December 1916. Mr. Lloyd George left the Government because the changes he proposed in the Cabinet system of directing the War were unacceptable to Mr. Asquith, as Prime Minister. In this action Mr. Lloyd George had the support of the Unionist Members of the Cabinet. Mr. Asquith, being unable therefore to carry on his Administration, resigned. The King sent for Mr. Lloyd George, who undertook, as Prime Minister, to form a new Government, having the co-operation not only of the Unionist Party, but of the Labour Party, and a large section of the Liberals also. He proceeded on extraordinarily novel and bold lines. Executive Government by Cabinet was suspended. In place of the orthodox Cabinet of twenty-four, consisting of Ministers at the head of the chief Departments, he created a small War Cabinet of five Members, in whose hands he concentrated the supreme direction of the War.

It consisted of the Prime Minister himself; Lord Curzon, who was then Lord President of the Council and Leader of the House of Lords; Mr. Arthur Henderson (Chairman of the Labour Party), Minister without office or without portfolio, as it was called; Lord Milner, Minister without portfolio; and Mr. Bonar Law, Chancellor of the Exchequer, who, being also Leader of the House of Commons (hitherto the post of the Prime Minister), was not expected to attend the meetings of the War Cabinet regularly.

All this marked a vast change in constitutional procedure. Yet it was carried out without any previous consultation with Parliament, though, undoubtedly, if there had been, Parliament would have approved, for the statement of policy subsequently made to the House of Commons by Mr. Lloyd George, and the reasons he gave for his constitutional experiments, were enthusiastically endorsed by the majority of the Members. Nor was the country consulted. As in the case of the formation of the first Coalition Government, so in the second, the new Ministers were relieved of the necessity of vacating their seats and being re-elected. Once more it was demonstrated how swiftly and effectively the Constitution can be made to work to great ends, whether for good or evil, in rapidly changing conditions. A still more remarkable thing was done in June 1917. General Smuts, the great South African statesman and soldier, was appointed a member of the War Cabinet by Mr. Lloyd George. Previously, Prime Ministers of Dominions on a visit to London during the War attended meetings of the Cabinet--Sir Robert Borden of Canada, in 1915, and Mr. Hughes of Australia, in 1916; but these attendances were only for single meetings, at the invitation of the Prime Minister of England, Mr. Asquith. The appointment of General Smuts was for the period of the War. It was welcomed by men of all political schools of thought, but while there was in constitutional law no formal obstacle to it, the inclusion in the Cabinet of one who was not a Member of either House of Parliament was without precedent.

6

Finally, one Parliament saw the War through, from Sir Edward Grey’s memorable declaration on August 3, 1914, as Secretary for Foreign Affairs, that the Cabinet had

decided to stand by France, to Mr. Lloyd George's announcement as Prime Minister of the terms of the Armistice with Germany on November 11, 1918--the two greatest and most momentous scenes that Parliament has witnessed, perhaps, in its long history. It was elected in December 1910, and assembled in January 1911. One of the first things it did was to pass the Parliament Act limiting the veto of the House of Lords on Bills passed by the House of Commons, and reducing its own statutory term of existence from seven years to five. Dicey in his fine work, _Law of the Constitution_, declares there are things which Parliament has done in other times, and done successfully, which a modern Parliament would not venture to repeat. "Parliament," he says, "would not at the present day prolong by law the duration of an existing House of Commons." That was true enough in 1885, when the work was first published, having regard to the political thought prevailing at the time. The passage stands in the eighth, and, as the author calls it, the final edition, which appeared in 1915. But the War being then on, circumstances had arisen that were undreamt of in 1885; and in August 1915 Parliament extended its existence by seven months without a word of protest being raised in either House. The period of five years fixed for the life of Parliament by the Parliament Act would have come to an end on January 30, 1916. It was unanimously agreed that the country must not be plunged into the distraction and turmoil of a General Election in a time of war. Four other Acts amending the Parliament Act had, in fact, to be passed. This, however, did not interfere with the prerogative of the Crown to dissolve Parliament at any time. It was always in the power of the House of Commons, should it become dissatisfied with the conduct of the War by the Government, to pass a vote of want of confidence, upon which the Government would have immediately resigned, and a new Government, acceptable to the House of Commons, would have been formed, with or without a General Election. But, in the result, the War Parliament had the unique distinction of having first abridged and then five times extended its own life. It lasted into the last quarter of its eighth year. Thus, the period of seven years fixed by the Septennial Act, under which Parliaments had been elected for two centuries, was exceeded. The War Parliament lived longer than any of its twenty-nine predecessors since the Union with Ireland in 1800. The longest of these Parliaments was that of 1820-26, which lasted six years and forty-two days. On November 25, 1918, the War Parliament was dissolved just a fortnight after the Armistice which brought hostilities in the World War to an end. Nineteen Members of the House of Commons, and twelve peers were killed. Two volumes containing their names and their services, together with the names and services of parliamentary officials who also fell in the War, were placed in the libraries of Lords and Commons. Shields with the names of Members of the House of Commons who gave their lives were put up in the Chamber, at each side of the Clock.

The Parliament to the very end was dominated by the influences of the War. One of the last things it did was to pass the Representation of the People Act, which, though it effected a change amounting to a revolution in the method of electing the House of Commons, and consequently in its constitution, passed both Houses with the tamest debate and unprecedented infrequency of divisions. The General Election took place in December 1918, on the greatly extended franchise laid down by the Reform Act;

and the new Parliament assembled early in 1919, with a vast number of measures for the reconstruction of Society rendered necessary by the War and pressing for immediate settlement in the light of new political canons, estimates, and revaluations, called forth by the War, and with far less money at the command of the Government for social purposes. Before the War public expenditure was £200,000,000 a year. The Estimates for 1920 were £1,400,000,000. This brought about an entire change in the financial moods of the House of Commons. Before the War, the rule was, “Expenditure is determined by policy.” After the War it became, “Policy must be controlled by revenue.” The return of Government by Party--each with definite political principles--was also quickly called for. The Coalition was found in peace to have no properly defined policy. It was a thing of compromises. Party organization was re-established, and though there were some fresh Party regroupings, and some new Party names were adopted, there appeared again the old two main divisions of conservatism and progress--one with a banner inscribed, “Go slow,” and the other with a banner inscribed, “Let her rip.”

CHAPTER XVIII

STEWARDSHIP OF THE CHILTERN HUNDREDS

1

A Member of the House of Commons cannot freely, on his part, resign his seat. Nor can he be given a notice to quit by his constituents, should he repudiate some pledge or disavow some principle, by reason of which the majority voted for him at his election. The law of the Constitution says in effect, “Once a Member, always a Member, until the Parliament to which he is elected comes to an end, or death removes him from the scene.” There is, however, a way by which the law can be circumvented--by the Member, but not by the constituency--and the story makes an interesting chapter of parliamentary theory and practice.

The Journals of the House of Commons do really contain a resolution that a Member duly chosen by a constituency cannot relinquish his seat. It was passed so far back as 1628, when country gentlemen were rather reluctant to undertake the duties and responsibilities of representatives; and, absurd as it may seem in these days of eager competition for the letters “M.P.”--costly, troublesome, yet most alluring and desirable--the Constitution, which never unlearns anything, but goes on learning a great deal from practical experience, still in theory supposes that Members of Parliament need to be bound down to its service.

If a Member be convicted of treason or felony, he is forthwith expelled from the House. I have seen three expulsions for criminal offences. Should a Member have the misfortune to lose his reason and be committed to a lunatic asylum, his seat is declared vacant. If he is made a peer, he ceases to be a Member of the House of Commons. But if he should grow tired of his parliamentary duties, or become incapable of discharging them because of old age or ill-health, or feel himself unable conscientiously to support the policy of his Party, or desire to retire to private life

upon any pretext or consideration whatever, he is powerless to do so by the natural and simple expedient of sending a letter of resignation to the Speaker or to his constituents. On one condition only are the gates of Westminster thrown open, and an unwilling representative allowed to depart in peace during the life of the Parliament. He must obtain “an office of profit under the Crown.” A Member of Parliament who accepts such a post by that very act vacates his seat. Now, “an office of profit under the Crown” is usually a cosy berth, with light duties and a liberal salary. The sole exception, perhaps, is the “Stewardship of the Chiltern Hundreds”--it has no duties and no salary--and that is the position to which a Member of the House of Commons, wishing to resign, is appointed.

Not until the middle of the eighteenth century was this agency or expedient provided by which a Member could formally quit the House before the existence of the Parliament was terminated. Before that, an M.P., weary of Westminster, had to appeal to the House for his discharge. “That he shall still serve, and that he shall not be removed.” Such was the sharp and peremptory order of the House in the case of John Hassard, one of the Members for Lyme Regis, who in 1605 represented that he was suffering from “sickness by the joint,” and desired that he might be allowed to resign his seat. Four years passed, and, as the Parliament--the first of James I--was still in being, John Hassard was still reluctantly M.P. In 1609 his constituents petitioned the House that he might be released. Was it not hard on the borough, they asked, that it should “be deprived of the services of one of its representatives?” The House yielded so far as to appoint a committee to inquire into the case. They reported that Hassard was bedridden of an incurable disease. On this report the House was induced to yield, and a new writ was issued. Of course, if a representative were unable or indisposed to attend to his duties and the House refused him release, he might absent himself until the Parliament was dissolved. But the House had the power of fining for non-attendance, and, indeed, of compelling the recalcitrant Member to repair to Westminster forthwith, and, as the Journals of the House show, these powers were often exercised.

At last a means of escape to reluctant legislators was afforded by the famous Place Act of 1705--one of the really great events in that long process, the evolution of the British Constitution. The House of Commons, in the first stirrings of a desire for independence, naturally became jealous of the presence of office-holders and pensioners who were disposed to be subservient to the Sovereign. The Act passed in 1700, settling the Crown on the House of Hanover, contained the clause: “That no person who has an office or place of profit under the Crown, or receives a pension from the Crown, shall be capable of serving as a Member of the House of Commons.” The clause was never put into operation. Ministers were covered by the clause, and, of course, it was found impracticable to exclude Ministers from the House. But the Act of Queen Anne safeguarded the independence of the House by establishing the great principle that a Minister should give his constituency the opportunity of passing judgment on his acceptance of office. “Provided always,” says the Act of 1705, “that if any person being chosen a Member of the House of Commons shall at any time after the dissolution or determination of this present Parliament accept of any office of profit from the Crown during such time as he shall continue a Member, his election

shall be and is hereby declared to be void, and a new writ shall issue for a new election as if such person so accepting was naturally dead; provided, nevertheless, that such person shall be capable of being again elected as if his place had not become void as aforesaid." The object of this provision was twofold: first, to make it impossible for the Sovereign to appoint a Member of Parliament to a lucrative post, and retain his services in the House of Commons as a subservient place-man independently of the wishes of his constituents; and secondly, to enable a Member of Parliament to accept an office in the Government and still keep his seat in the House of Commons, if his constituents were agreeable. But the statute had been forty-five years in operation before it was ingeniously turned to a purpose for which originally it was never intended. There was an ancient office-holder called a Crown Steward. He was the custodian of one of the Manors or Hundreds belonging to the Royal demesne. Under Charles II most of the stewardships were abolished. One of the few which survived was that of "the three Hundreds of Chiltern, in the County of Bucks, that is to say, Stoke, Desborough and Bodenham," which from earliest Norman times had been in the hands of my Lord the King. Sequestrated and sold under the Commonwealth, it reverted to the Crown at the Restoration, and appears to have been leased from 1679 to 1710 by one Thomas Doyley, who was its last _bona fide_ steward.

2

The Chiltern Hundreds are a range of chalk downs that gently undulate through Buckinghamshire, from Tring in Hertfordshire to Henley-on Thames in Oxfordshire. Many years ago the Hundreds were partly covered by a thick forest of beech-trees, in which bands of desperate rogues and robbers found a secure hiding-place, and it was the dangerous duty of the steward to protect the surrounding country from the marauding expeditions of these outlaws, as well as to collect the revenues of my Lord the King. The revenues are gone. The freebooters have long disappeared. But the office of Steward of the Chiltern Hundreds survives, without the duties and without the emoluments, to serve the singular purpose of enabling Members of Parliament to lay down the burden of their legislative responsibilities without having to wait for a dissolution. The first Member appointed to the office, solely to enable him to resign his seat, was Mr. John Pitt, and the date of the appointment was January 17, 1750.

The stewardship is in the gift of the Chancellor of the Exchequer. The warrant of appointment to the office is not given in any of the text-books on the Constitution. But looking through the papers of Lord Broughton, which have been placed in the Manuscript Department of the British Museum, I discovered the document issued by Viscount Althorp, Chancellor of the Exchequer, appointing Broughton to the Stewardship of the Chiltern Hundreds when, in 1833, as Sir John Hobhouse, he resigned his seat for Westminster. It is a quaint and curious document indeed. "To all to whom these Presents shall come, the Right Honourable Viscount Althorp, Chancellor and Under-Treasurer of His Majesty's Exchequer, sendeth Greeting." Thus it opens, and then goes on to say: "Know ye that I, the said Viscount Althorp, reposing especial trust and confidence in the care and fidelity of the Right Honourable Sir John Hobhouse, have constituted and appointed, and by these

Presents do constitute and appoint, the said Sir John Hobhouse to be Steward and Bailiff of the Three Hundreds of Chiltern, in the County of Buckinghamshire, that is to say, Stoke, Desborough and Bodenham, with the returns of all Writs, Warrants and Executions of the same (in the room and place of E. B. Portman, Esq., whose constitution to the said offices I do hereby revoke and determine), together with all Wages, Fees, Allowances, and other Privileges and Pre-eminences whatsoever to the said offices of Steward and Bailiff belonging, or in any wise appertaining, with full power and authority to hold and keep Courts, and to do all and every other Act and Acts, Thing and Things, which to the said offices of Steward and Bailiff of the Three Hundreds aforesaid, or either of them, do belong, or in any wise appertain, in as full and ample manner as any former Steward or Bailiff of the said Three Hundreds hath lawfully had, received or enjoyed the same; to have and to hold the said offices of Steward and Bailiff of the said Three Hundreds, together with all Wages, Fees, Allowances, and other Privileges, and Pre-eminences whatsoever, to the said Sir John Hobhouse, during His Majesty's pleasure."

The Warrant thus concludes:

And I do hereby authorize and empower the said Sir John Hobhouse to demand and receive for His Majesty's use all Court Rolls and other writings relating to the said Three Hundreds from any person or persons having the same in their hands or custody. And all and every such person and persons having the same in their hands and custody are hereby required to deliver up the same to the said Sir John Hobhouse. Provided, nevertheless, that the said Sir John Hobhouse shall enter these Presents in the Office of the proper Auditor within forty days next after the date hereof, and shall yearly return the Court Rolls of the said Three Hundreds into the said office of the said Auditor, and account with the said Auditor for all such sum and sums of money as he, the said Sir John Hobhouse, shall receive for and to His Majesty's use within forty days next after the Feast Day of St. Michael the Archangel, which shall happen in every year, or else these Presents and everything herein contained to be void.

In witness whereof I have hereunto set my hand and seal the First Day of May in the Third Year of the Reign of His Majesty King William the Fourth, and in the Year of our Lord One thousand Eight Hundred and Thirty-Three.

Sealed and delivered (being first duly stampt) in the presence of T. Drummond.

ALTHORP.

At first, the Stewardship of the Chiltern Hundreds was treated as a piece of Government patronage to which the Opposition had no claim. Its gift was made a matter of Party favour. It was readily bestowed on a supporter of the Government when an advantage was to be gained at a bye-election. To harass a political opponent by refusing it was considered quite a legitimate move in Party tactics. In order to deprive the Government of this power to prevent a Member of the Opposition from resigning his seat, on March 15, 1775, in the House of Commons, George Grenville asked for leave to bring in a Bill to enable a Member to vacate his seat by simply sending a letter of resignation to the Speaker. Nathaniel Bayly, who supported the

Bill, told a curious story. He sat for Westbury. He had first contested Abingdon, but was defeated. The victor was a supporter of the Government, named Mayor, who was subsequently disqualified on the ground that he was the high sheriff of the county. Bayly applied to Lord North, the Prime Minister and Chancellor of the Exchequer, for the Stewardship of the Chiltern Hundreds in respect of his seat for Westbury, in order that he might be set free to again contest Abingdon with Mayor, who had resigned the shrievalty. Lord North refused the stewardship, saying he wished to save a political supporter from being opposed. “The cases,” he wrote, “have certainly been very few in which I have excused myself from granting vacated offices to Members of Parliament; but I have made it my constant rule to resist every application of that kind where any gentleman entitled to my friendship would have been prejudiced by my compliance. Mr. Mayor would, therefore, have just reason to complain of my conduct towards him if I should make his case an exception to my general rule.”

Lord North was very indignant that Bayly should have read in debate this letter, which, he said, was intended to be private. He denounced the hon. gentleman’s conduct as “a breach of common decency and confidence.” Still, he did not think there was anything blameable in the letter. “I am not personally known to Mr. Mayor,” said he with engaging frankness, “but then that gentleman has entitled himself to my friendship by showing himself a strenuous supporter of the honour and dignity of this country in concurring with the Government’s measures in respect to the American Colonies.” “I see,” said Edmund Burke, “the noble Lord holds out the granting or refusal of the Stewardship of the Chiltern Hundreds as one more _douceur_ for those who will support him in that ruinous and mad career of violence which tends to alienate the Colonies of America.” Grenville’s motion was refused by 178 votes to 126. Rigby, a prominent politician, then Paymaster of the Land Forces, contended that if the Bill were passed it would be possible for the Opposition, by withdrawing in large numbers from the House of Commons, to force the Government to dissolve Parliament. However, the ingenuity of the Opposition discovered a means of outwitting the Government. Under the Place Act of 1705, office-holders called agents of regiments were excluded from the House of Commons. In 1779 a vacancy occurred in the representation of Hampshire. Jervoise Clarke Jervoise, a member of the Opposition who sat for the borough of Yarmouth, Isle of Wight, desiring to contest Hampshire in the interests of the Opposition, asked Lord North for the Chiltern Hundreds. The Chancellor of the Exchequer replied in effect that the office was not for the likes of him. Jervoise then got himself appointed agent of the Sussex Militia, and lo! the gates of Westminster were thrown open to him, and he was free to go down and woo the electors of Hampshire. Since then the liberating stewardship is granted as a matter of course to any Member of the House of Commons who desires an honourable discharge from the House, without any regard being paid to Party or political considerations. The stewardship is retained only until a fresh application for the office is made to the Chancellor of the Exchequer. Each new warrant expressly revokes the grant to the previous occupant of the post, and the new steward in turn continues in office till the time comes for him to make way for another.

3

It was stated by Sir Robert Peel, as Chancellor of the Exchequer, on February 1846, that the office cannot be conferred twice on the same day. If there is a second application for the position on the same day recourse is had to two other stewardships of an identically nominal character--those of the Manors of East Hendred in Berkshire and of Northstead and Hempholme in Yorkshire. There was still another office used for the same purpose, the Escheator of Munster, a survival of the Irish Parliament and confined to Irish representatives, but it was abolished in 1838. Since 1850, the statement of Sir Robert Peel in 1846 notwithstanding, there have been four instances of the stewardship of the Chiltern Hundreds having been granted twice on the same day--the cases are set forth in a list of the Stewards since 1850, issued by Parliament in 1893--but, of course, two men did not hold the position at the same time, as the second appointment, in each instance, cancelled the first.

Not the least remarkable feature of this strange business is that the tie between the constituency and the Member can only be severed by the Member with the help of the Chancellor of the Exchequer. Once a constituency elects a representative, it cannot get rid of him until the General Election, if he be unwilling to go. In the warrant of 1833 the Chancellor of the Exchequer declares that he reposes in the steward's "care and fidelity" "especial trust and confidence." Now, it has occasionally happened that a Member of Parliament has been compelled by the fear of outraged public opinion hastily to retire into private life because of some act which, while it did not bring him within the meshes of the law, was morally wrong or socially disgraceful. To meet the cases of these black sheep, Gladstone, in 1861, while Chancellor of the Exchequer, made an alteration in the phraseology of the warrant so as to remove any misconception that the granting of the Stewardship of the Chiltern Hundreds conferred either honour or credit. In that year a Member of the House of Commons, and a conspicuous lawyer, Edwin James, suddenly applied for and was granted the Chiltern Hundreds, and a new writ for his constituency was immediately issued. It subsequently transpired that his patent of Q.C. was revoked, and he was disbarred for unprofessional conduct. It was this case of an escape, as it were, by the back door that led Gladstone to omit from the warrant of appointment to the Chilterns and similar stewardships the words expressing "special trust and confidence in the care and fidelity" of the office-holder, but for some reason, presumably because no official record was kept of the change, the omitted words were subsequently replaced. In 1877 Sir Stafford Northcote, as Chancellor of the Exchequer, again omitted them, and since then the warrant has been issued without the halo of honour which the original phraseology imparted.

The warrant was issued, as I have said, in all cases as a matter of course, save where it was known that the applicant was liable to expulsion from the House for a criminal offence, or deprivation of his seat on an election petition for bribery or corruption. In these cases it was refused, so that the House might retain the control over the offender with a view to censuring him or expelling him. Gladstone laid it down that the duty of the Chancellor of the Exchequer, on receiving an application for the stewardship, was "to consider whether the gentleman who asks for the office can, by any possibility, be escaping from any duty he owes to Parliament, or any law under which he has come by his election to Parliament; and, unless there is some

ground or colour of positive objection of this nature, to grant the office without making further inquiry." The office was refused in 1842. The applicant was Lord Chelsea, against whose election for Reading a petition had been lodged. During the trial of the petition Lord Chelsea, as a compromise, entered into an agreement--in order, it was said, to avoid a bribery and corruption inquiry--to vacate his seat and to obtain it for the petitioner (his opponent at the election), or forfeit £2,000. But his application to Goulburn, the Chancellor of the Exchequer, for the Stewardship of the Chiltern Hundreds was rejected. "I consider," wrote Goulburn, "that by lending my assistance to the fulfilment of any engagements which may have been entered into, as arising out of such compromise, I should, in some sort, make myself a party to transactions which I do not approve, and of which the House of Commons has implied its condemnation." Lord Chelsea was thus compelled against his will to remain a Member of Parliament.

According to a memorandum submitted to the Select Committee on the House of Commons (Vacating of Seats) Bill in July 1894, by Sir W. Harcourt (then Chancellor of the Exchequer), the general principles applying to applications for the Chilterns were stated as follows: The stewardship should be granted immediately, and as a matter of course, except in very extreme cases, the argument being that to withhold the appointment, on the assumption that at some future date the seat may be vacated by other means is unfair--(1) to the applicant himself, who, even in the most suspicious circumstances, has a claim to be considered innocent until he is actually proved guilty; (2) to the House in general, which desires to purge itself as soon as possible of doubtful characters; (3) to the political Party to which the applicant belongs, whose reputation is injured and whose numerical strength may be diminished by his retaining his seat without appearing in the House; (4) to the constituency he represents, which, for the same reason, may be practically disfranchised; and finally (5) to the Chancellor of the Exchequer, who might lay himself open to the charge of opposing a Member's retirement for partisan motives. The memorandum went on to say, however, that it is the duty of the Chancellor of the Exchequer to refuse to grant the appointment, either if the House directly enjoins him to do so, or if the Member's resignation would anticipate proceedings, whether imminent or actually pending, either in the House for censuring or punishing him, or before the Election Judges for voiding his election.

4

Every appointment to the Stewardship is immediately "gazetted." That is to say, a notice, of which the following is an example, is published in the _London Gazette_:

TREASURY CHAMBERS, _February 1907_.

The Chancellor of the Exchequer has appointed the Right Hon. James Bryce, M.P., to be Steward and Bailiff of the Chiltern Hundreds.

This notice having been brought to the attention of the House of Commons, a new writ of election was issued, and in the Journals of the House the following record appears:

New Writ for Aberdeen South in the room of the Right Hon. James Bryce, who since his election has accepted the office of Steward and Bailiff of the Chiltern Hundreds.

I mention this case because the real cause of the resignation of Mr. Bryce was his appointment as Ambassador to the United States. But it is a curious circumstance, illustrative of the anomalies of the Constitution, that the office of an Ambassador or other Minister to a foreign country, though undoubtedly an office of profit under the Crown, is yet a position the acceptance of which does not vacate a seat in the House of Commons. Mr. Bryce, therefore, was obliged to apply for the purely nominal office of Steward of the Chiltern Hundreds in order to be enabled to get away from Westminster.

The principle that the office of Ambassador or Minister to a foreign Court does not disqualify, nor its acceptance vacate the seat of, a Member was formally affirmed by the House of Commons in the reign of Queen Elizabeth. It was resolved on February 9, 1575, “that any person being a Member, and in service of Ambassade, shall not be amoved during such service.” Some thirty years later, in the time of James I, a committee having been appointed to consider the case of several persons “who had received employments from the King,” it was adjudged, on their report, that Sir Charles Cornwallis, Ambassador in Spain, Sir George Carew, Ambassador in France, and Sir Thomas Edmunds, Ambassador with the Archduke of Austria, “should still stand in their several places” in the Commons House of Parliament; and after George I came to the Throne it was decided (July 7, 1715) that Mr. Carpenter, who had been appointed Envoy to the Court of Vienna, was not thereby included in the disability of the Act of Queen Anne.

When, in the recess of 1850-51, Richard Lalor Sheil was appointed Minister Plenipotentiary to the Grand Duke of Tuscany, the fact was at first overlooked that his seat was not thereby vacated, and on the opening day of the session a new writ for Dungarvan was, on the motion of Hayter, the Chief Whip, ordered to be made out. At the next sitting, however, Hayter informed the House that he had acted under a misconception; and he submitted a motion of supersedeas, with a view to putting matters on a proper footing. In the course of a brief discussion which preceded the adoption of this action, Sir John Romilly, the then Attorney-General, recalled that Canning retained his seat for Liverpool while acting as British Ambassador in Portugal, and that, similarly, Lord Burghersh continued to represent Lyme Regis in Parliament while discharging ambassadorial duties abroad. Sheil promptly applied for the Chiltern Hundreds, and the new writ for Dungarvan was ordered on March 11, 1851. This lesson was borne in mind when, in the recess of 1869-70, Austen Henry Layard, at that time Chief Commissioner of Works and Liberal Member for Southwark, went as British Ambassador to Madrid. Layard accepted the Chiltern Hundreds without delay, and the new writ for Southwark was issued at the beginning of the session of 1870.

5

The assumption that the Stewardship of the Chiltern Hundreds is an office of profit under the Crown is one of the most amusing of the many amusing pretences which meet one in exploring the byways of the British Constitution. There are no official duties of any sort attached to the office. The steward is said to be an agent for property belonging to the Crown. But the Crown has no proprietorial rights whatever in the Hundreds of Chiltern in the county of Buckingham. As agent for this non-existent estate, the steward is required to receive moneys which are never paid, and to preside in Courts which are never held. The duties of the office are, therefore, extremely light, but it cannot be said the emoluments are so tempting. It is true that the warrant of appointment prescribes that the Steward of the Chiltern Hundreds is to enjoy “all Wages, Fees, Allowances and other Privileges and Pre-eminences whatsoever” appertaining to the position; but notwithstanding the initial capital letters which give to these good things a convincing appearance of reality--as they are set forth in the official document under the hand and seal of that master of the public purse, the Chancellor of the Exchequer--they are all purely imaginary.

The Chiltern Hundreds in Bucks is not only a place of great rural charm, but of haunting literary and political memories. Burnham Beeches survive to tell of its forests once infested with the knaves who made things troublesome for the Crown Steward. In the delightful village of Chalfont St. Giles blind Milton completed “Paradise Lost.” Gray, in the churchyard of Stoke Pogis, speculated that among the rude forefathers of the hamlet at rest in the surrounding graves there were “hands that the rod of Empire might have swayed” had fortune been kind. But not far off is Eton, the undoubted nursery of statesmen of the past. Two of the mightiest Members of Parliament lived among these pleasant hills. At Beaconsfield, Edmund Burke, the political philosopher and sentimentalist, endeavoured “God willing,” as he expressed it, “to become a farmer in good earnest”; and at Hughenden, the practical politician, Benjamin Disraeli, romantic and fantastic to the last, fed his gorgeous peacocks. They sleep, too, in these sylvan retreats. Surely these splendid phantoms may well be described as the immortal Stewards of the Chiltern Hundreds.

CHAPTER XIX

THE DISSOLUTION OF PARLIAMENT

1

By the Parliament Act, 1911, five years is the time fixed for the maximum duration of a Parliament. It ceases to exist after five years from the day on which it is summoned to meet by Royal Proclamation, if it is not brought to an earlier end by the defeat of the Government on a vital question of policy, followed by a dissolution.

Before the Revolution of 1688 the life of a Parliament could be terminated only in one of two ways--by the will of the Sovereign or by his death. In the opinion of the Stuarts the purpose of Parliament was rather to carry out the behests of the King than to advise him in matters relating to the government and well-being of the Realm. Parliament was retained in being as long as it suited the King, or was dismissed

summarily and abruptly at any time, if it so pleased his Royal will and pleasure. Furthermore, it was held that as Parliament was summoned to meet by the King, his decease necessarily brought it to an end. The Sovereign, alive or dead, has not for many years exercised so supreme an influence on the existence of Parliament.

By an Act passed in 1694, during the reign of William and Mary, the duration of Parliament was limited to three years. In 1715, at the beginning of the reign of George I, the Septennial Act was passed. It provided that Parliament, if not sooner dissolved by Royal Proclamation, issued on the advice of the Ministers, or by the death of the Sovereign, should expire at the end of seven years. The Parliament which passed the Septennial Act thereby prolonged its life for four years beyond the time for which it was elected. This was done because there was reason to fear that an appeal to the electors in 1717--the year in which the General Election was due--would have resulted in the return of a majority of Members of the House of Commons favourable to the restoration of the Stuarts. Previously, in the reign of Queen Anne, there had been a further change in the law regulating the life of a Parliament. Parliament was no longer to die instanter with the Sovereign. As it was deemed needful that the new Sovereign should have immediately at his disposal a Parliament ready to act in any emergency, the Parliament in existence at the demise of the Crown was to continue to live for six months, if not sooner dissolved by the successor to the Throne. It was next provided by a statute of George III that if a demise of the Crown should take place at a time when there was no Parliament in being--that is after the dissolution of the old Parliament, and before the election of the new was completed--the old Parliament should be revived and continue to exist for six months more at the discretion of the new Sovereign. These laws have been out of date for years. The Reform Act of 1867--Disraeli’s democratic statute which first established the principle of household suffrage--contains a section which makes the duration of Parliament entirely independent of the death of the Sovereign. The Members of the Parliament in being at the demise of the Crown retain their seats, but take a fresh oath of allegiance to the new Sovereign. The first operation of this provision was on the death of Queen Victoria in January 1901. The Parliament then in existence was the first in history which was not brought to an end by the demise of the Crown. Thus the last Parliament of Queen Victoria became the first of King Edward VII. It is important to mention, by the way, that the demise of the Crown in January 1901 vacated the offices of every Minister of the Crown. The then Ministers were formally reappointed by King Edward, and as the acceptance of office, even in these circumstances, might have been held to have vacated their seats, an Indemnity Act was passed to protect them from penalties by declaring that notwithstanding their reappointment to office, they need not seek re-election. But though seven years was the legal life of a Parliament, it did not follow that every Parliament enjoyed fixity of tenure for that period. Indeed, since the passing of the Septennial Act, not a single Parliament died a natural death, or, in other words, did not come to an end simply by the efflux of its statutory term of existence. Parliaments have been suddenly cut short by the fall of the Ministry on an adverse vote of the House of Commons, and Parliaments have been calmly dissolved, their purposes being fulfilled, well within the period of seven years. And so matters remain under the statutory term of five years

fixed by the Parliament Act of 1911.

Each House of Parliament can adjourn its proceedings for days or weeks, solely on its own initiative, and without regard to the other House. The House of Lords can adjourn while the House of Commons is in session, and the House of Commons can adjourn while the House of Lords is in session. This is done by a motion proposed in the usual way by a Minister, then put by the Speaker or the Lord Chancellor, and, after debate, agreed to or carried on a division. By thus adjourning, neither House puts an end to any of its proceedings. When each House meets again, business is resumed at the stage it had reached when the adjournment took place. But there are two other functions which, unlike adjournments, have a determining effect, in the one case on the business of the Parliament, and in the other on the Parliament's course or career. One is "prorogation," which brings the sittings of both Houses to a simultaneous close and puts an end to all pending Bills or other matters. The carrying over of uncompleted Bills from one session to another has often been advocated as a saving of time and trouble by relieving Parliament of the necessity of repeating in two successive sessions the same debates upon the same questions. But it has always been consistently rejected by the House of Commons on the ground principally that the power of the Government would be greatly strengthened by any system that would facilitate the rapid progress of business, which is regarded as a thing not at all to be desired. The other is "dissolution," which terminates the life of the Parliament. A prorogation is but the last of a session, and foretells the coming of another. Parliament may be called back, in an emergency, at six days' notice. A dissolution is the close of a Parliament, and is followed by a General Election. Neither House, nor the two of them acting conjointly, can prorogue or dissolve. Both these functions are exercised solely by the Sovereign, acting, of course, on the advice of the Prime Minister.

2

According to the law of the Constitution, the right of the Sovereign to dissolve Parliament, or to refuse a dissolution--at his own pleasure or discretion, and without the consent of his Ministers--would seem to be unquestionable. Circumstances might conceivably arise in which the King might dissolve Parliament, even against the wishes of his Ministers, in order to obtain the opinion of the electorate. But that would be a course attended with most serious consequences. Supposing the General Election vindicated the Ministers whose advice the King had set aside? The plain truth of the matter is that the Sovereign has no will in parliamentary affairs but that of his Ministers, who are supported by a majority of the House of Commons. The power of dissolution is really vested in the Prime Minister. The personal exercise of the Royal Prerogative has been atrophied by long disuse. The King could not now, constitutionally, force a dissolution against the wishes of his Ministers, nor could he constitutionally refuse a dissolution if his Ministers decided that the time for it had come. It has long been the first principle of the Constitution that the King acts solely on the advice of his Ministers. For the consequences of that advice they and not the King are entirely responsible.

But for a clear understanding of the law and practice of the Constitution we must see the procedure of dissolution at work. If the King were to decide against the wishes of the existing Government that there must be a General Election on the question in dispute, he would first dismiss the Prime Minister and summon the recognized Leader of the Opposition to form a new Administration, and then upon their advice dissolve Parliament. There are only two cases within modern times of Ministers being dismissed by the Sovereign, while they still possessed the confidence of the House of Commons, of fresh Ministers being appointed, and of the new Government appealing to the country for the support which they lacked in Parliament. These cases occurred in 1784 and 1834. In each instance the Sovereign took a step which might have had the serious result of showing a disagreement between him and the majority of his people, of the people forcing him to accept as advisers Ministers whom he did not personally desire. Taking the spirit of our modern political life into account, it is surely very unlikely that any Sovereign would now run so grave a risk--I will not say to the stability of the Throne, but to the esteem and honour in which he as King is held by the Nation--of seeing maintained at the polls the advice given him by the Ministers whom he had dismissed because of that very advice.

In both cases of dismissal the King was out of sympathy with his Ministers. It was the famous Coalition Government formed by North, the Tory, and Fox, the Whig, and in office in 1783, that was affected by the first case. George III treated them with undisguised aversion. Fox he utterly detested, and as he considered he had been betrayed by his old friend and adviser, North, his hatred of him was equally bitter. But apart from these personal feelings, he resented the fact that the Ministers, instead of being his own nominees and agents, were the nominees and agents of the House of Commons. He thwarted them in every way, and finally, in December 1783, dismissed them and sent for William Pitt to form a new Government. But the King refused to dissolve Parliament immediately, as he was doubtful of the feeling in the country. It was not until March 1784 that the General Election took place. The result was a decisive verdict in favour of Pitt. The King was therefore proved to be right in thinking that the majority in the old House of Commons had ceased to represent its constituents. All constitutional writers are, however, agreed that both the diminution in the political power of the Crown and the rise in the authority of the Prime Minister steadily began in 1784, and are traceable to this exercise of the Royal prerogative by George III, in opposition to the spirit of the Constitution. The second case of the dismissal of a Ministry which was supported by a majority in the House of Commons--that by William IV in 1834--affords a warning of the danger to the Crown of the unwarranted use of the prerogative. As the King was personally opposed to the policy of the Whig Ministry of Lord Melbourne, he thought it well to dismiss them and called Sir Robert Peel to office. William had perhaps better warrant for his action than George, having regard to the political situation at the time. The Government, torn by dissensions, was rapidly falling to pieces. Melbourne gave the King more than one hint that he was not unwilling to go, and it would appear from his correspondence that he thought the King was justified in sending for other advisers. Still, Melbourne did not formally send in his resignation to the King. The Ministry

were actually dismissed. That was in November 1834. There was an appeal to the country early in 1835, and it had an unexpected result. The Whigs came back with a majority, and in April Peel was forced to resign by an adverse vote of the House of Commons. The verdict of the electorate was decisive against the King.

It will be noticed that in both cases the exercise of the prerogative on the King's personal responsibility was confined to the dismissal of the Ministers. For the dissolution of Parliament, which followed in each case, the responsibility really rested upon the succeeding Prime Minister, Pitt or Peel. Nevertheless, the lesson which was thus taught King William IV had its effect on his successor, Queen Victoria. There is a very significant letter written by Queen Victoria in 1846 to the then Prime Minister, Lord John Russell, on the risk which the Crown runs in wrongly estimating public opinion. With the aid of the Whig Opposition, Peel carried the abolition of the Corn Laws against the wishes of a large body of Protectionists among his own Tory followers. The very night the Corn Bill passed the third reading in the House of Lords, Peel was defeated in the House of Commons by a coalition of the Whigs and Protectionists on a measure for the suppression of O'Connell's agitation for the Repeal of the Union. Lord John Russell, the Whig leader, was then sent for by Queen Victoria and took office as Prime Minister for the first time. The question of an appeal to the country was raised, and the Queen thus sagaciously expressed her opinion on the use of the prerogative of dissolution by the Sovereign:

As Lord John touches in his letter on the possibility of a dissolution, the Queen thinks it right to put Lord John in possession of her views generally. She considers the power of dissolving Parliament a most valuable and powerful instrument in the hands of the Crown, but one which ought not to be used except in extreme cases with a certainty of success. To use this instrument and be defeated is a thing most lowering to the Crown and hurtful to the country.

An interesting point affecting the constitutional position and authority of both the Sovereign and the Prime Minister in relation to the dissolution of Parliament arose again in 1858. The facts are gathered from _Queen Victoria's Letters_. Public confidence in the Government of which Lord Derby was Prime Minister was rudely shaken during the Indian Mutiny by the terms of a dispatch to Lord Canning, the Governor-General of India, which were prematurely published. In anticipation of the capture of Lucknow, the Governor-General prepared a proclamation, addressed to the natives, declaring that the proprietory rights of the chiefs in the soil of the Province of Oudh would be confiscated, and a draft of it was sent to the Government at home. Meanwhile Sir James Outram, the Chief Commissioner of Oudh, protested against the severity of the proclamation, and, in consequence, the Governor-General mitigated it to the extent of inserting an exemption from its operation in favour of such chiefs as should actively co-operate in restoring order in the Province. On receiving the draft of the proclamation in its original and unamended form, Lord Ellenborough, President of the Board of Control--as the Minister in charge of Indian affairs was then called--sent a dispatch to Lord Canning severely rebuking him for departing from the historic policy of the British as generous conquerors by inflicting upon the mass of the native population a form of punishment which they would

regard as most severe. This dispatch was published in England long before it could possibly have reached India. So great was the outcry at home of indignation against the dispatch, and sympathy with the action of the Governor-General, that Lord Ellenborough was compelled to resign his office. But this propitiatory sacrifice of a victim did not allay the storm of popular wrath. Notice was given in both Houses of Parliament of motions of censure and want of confidence. The debates were to take place on May 14, 1858. Three days previously--according to a memorandum written by Prince Albert--the Prime Minister had an audience of Queen Victoria and asked to be allowed to announce, during the debates, that, in the event of the motions being carried, he had her Majesty's sanction to dissolve Parliament. Such an announcement, Lord Derby added, would lead either to the withdrawal of the motions or their rejection in the division lobbies. The Queen at once refused her assent to such a course, saying that it would be a very unconstitutional threat to hold over Parliament with her authority, by way of biasing the decision of the two Houses. Her Majesty also sent Sir Charles Phipps to interview Lord Aberdeen--an ex-Prime Minister in whose sagacity she had complete confidence--and obtain his views on this curious constitutional situation. The Queen's messenger, in his report of the interview, writes:

Lord Aberdeen interrupted me by saying that the Queen had done quite right--that he never heard of such a request being made, or authority for such an announcement being sought--and he could not at all understand Lord Derby making such an application. He knew that the Government had threatened a dissolution, that he thought that they had a perfect right to do so, but that they would be quite wrong in joining the Queen's name with it.

He said that he had never entertained the slightest doubt that if the Minister advised the Queen to dissolve she would, as a matter of course, do so. The Minister who advised the dissolution took upon himself the heavy responsibility of doing so, but that the Sovereign was bound to suppose that the person whom she had appointed as a Minister was a gentleman and an honest man, and that he would not advise her Majesty to take such a step unless he thought that it was for the good of the country. There was no doubt of the power and prerogative of the Sovereign to refuse a dissolution--it was one of the very few acts which the Queen of England could do without responsible advice at the moment; but even in this case, whoever was sent for to succeed, must, with his appointment, assume the responsibility of this act, and be prepared to defend it in Parliament.

Lord Aberdeen added that he could not remember a single instance in which the undoubted power of the Sovereign had been exercised upon this point, and the advice of the Minister to dissolve Parliament had been rejected, and then proceeded to say:

The Queen had during her reign, and throughout the numerous changes of Government, maintained an unassailable position of constitutional impartiality; and he had no hesitation in saying that he thought it would be more right, and certainly more safe, for her to follow the usual course, than to take this dangerous time for exercising an unusual and, he believed he might say, an unprecedented course, though the power to exercise the authority was undoubted.

The vote of censure failed in both Houses. In the Lords it was rejected by a majority of nine. It was withdrawn, after debate, in the Commons. The Prime Minister, in the customary parliamentary letter to the Queen, drew a moral which, in view of her Majesty's desire to avert a General Election, was somewhat audacious. He attributed the collapse of the Opposition to the conviction, which gradually spread in their ranks, that in the event of the Government's defeat her Majesty would sanction a dissolution.

This conflict between legal theory and constitutional practice is puzzling to unsophisticated minds. George III, a plain, blunt, and rather narrow-minded man, could never be made to understand the subtleties of a Constitution which invested him as Sovereign with the powers of an absolute ruler, and declared he could do no wrong, and yet insisted by its unwritten customs that he must do nothing on his own responsibility, but everything he is bid by his Ministers. In 1799 he told one of his Ministers, Henry Dundas, a Scotsman, how pleased he was to learn that a Union between Great Britain and Ireland was in contemplation. "But," he added, "I hope it is not true that the Government is pledged to emancipate the Roman Catholics?" "No," replied Dundas, "that will be a matter for future consideration." The King pointed out that his Coronation Oath bound him to uphold the Protestant supremacy, and protested that he would never violate it by consenting to Catholic emancipation. Dundas endeavoured to explain that the oath bound the King in his executive capacity, but left the King as head of the Legislature free and untrammelled. "None of your Scotch metaphysics, Mr. Dundas!" cried the Monarch angrily. "None of your damned Scotch metaphysics!" But so it is. According to constitutional practice, the King must be guided by the advice of his Ministers. Walter Bagehot, who is universally acknowledged to be one of the acutest commentators on the Constitution, enumerates three rights possessed by the King in his relations with Ministers: "The right to be consulted, the right to encourage, the right to warn." He adds: "A King with great sense and sagacity would want no other." It will be noticed that Bagehot does not recognize in the King the right to oppose his advisers.

CHAPTER XX

"WHO GOES HOME?"

1

As a rule, the Parliament knows that its days are numbered long before it is actually dissolved. I know of only one dissolution, that of 1880, which when announced was quite unexpected. In the abrupt way it was heralded there was also a strange mixture of the comic and dramatic. On March 8, 1880, the House of Commons met for nothing more exciting than the disposal of some unimportant Orders of the Day. The attendance was, therefore, small. Among the notable absentees were Lord Hartington, titular Leader of the Liberal Opposition, and its actual chief, Gladstone. When the questions on the paper were asked and answered, Sir Stafford Northcote, the Leader of the House, interposed with the desire--as he put

it--to “make a few remarks.” In this, of course, there was nothing unusual. Nor was there anything in Northcote’s manner, or the tone of his voice, that implied a portentous announcement. He made a few commonplace observations about the business before the House, and seemed to have finished what he had to say and to be about to sit down, when, as if starting afresh on another topic as an afterthought, he said: “Being on my legs----.” Then came the announcement that, as soon as financial business could be wound up, the Parliament would be dissolved. For delightful casualness, that “being on my legs” has no parallel in famous parliamentary phrases. Parliament is actually dissolved by Royal Proclamation, which appears in the _London Gazette_. But some weeks before this is published the ceremony of prorogation takes place in the House of Lords. Though it means the end of the Parliament, there is rarely anything in it officially to distinguish it from the function that marks the end of any session.

2

In former times it was usual for Parliament to be dissolved by the King in person. The most famous dissolution of the kind in recent times is that for the purpose of taking the sense of the country on the first Reform Bill of 1831. The second reading of the Bill had been carried in the House of Commons at three o’clock on the morning of March 23 by a majority of one, in the fullest House perhaps that ever was known--303 being for the Bill and 302 against it. During the following April the Bill was slowly and with difficulty making its way through Committee, being fought desperately word by word by the Tory Opposition, when the Whig Government made up its mind to dissolve. The Cabinet Council at which this decision was suddenly come to was held on Friday, April 22nd, at half-past eleven o’clock. The Government realized that it was most important for their ends to have the King present in the House of Lords. The Prime Minister, Earl Grey, and the Lord Chancellor, Lord Brougham, went at once to the King, William IV, at the Palace, with some fear and trembling, to try to persuade him to go down and prorogue Parliament--with a view to its dissolution--at two o’clock that very day. The King declared that he could not reconcile himself to dissolving a Parliament that had just been elected and had treated him so handsomely in the matter of the Civil List and had settled so magnificent an annuity on his Consort. The Lord Chancellor insisted that dissolution was inevitable, and that the King must go straightway to Westminster. “But who,” demanded the King, “will carry the Sword of State and the Cap of Maintenance?” That had been arranged, said the noble lords. “But the Guards,” pleaded his Majesty, “have not been ordered out.” Earl Grey, who had foreseen everything, assured the King that they had. “Treason, high treason!” shouted the astonished King, whose prerogative it was to order out the Guards. The Ministers admitted their guilt, but declared their action necessary in the interests of the State; and in the long run the King became calm and went to Westminster. “This _coup d’état_ was so sudden,” writes Greville in his _Memoirs_, “that nobody was aware of it until two or three hours of the time, and many not at all.”

The proceedings in both Houses, when they met at two o’clock and the unexpected decision of the Government was announced, were very violent. In the House of

Commons Sir Robert Peel, the Leader of the Opposition, made a furious attack upon the Ministers. Suddenly, above the uproar caused by his speech, the guns, announcing the arrival of the King, were heard, and at each explosion the followers of the Government shouted exultingly. Peel was still struggling to say bitter things of the Ministers in the midst of every sort of noise and confusion, when Black Rod knocked at the door to summon the Commons to the House of Peers. In that exalted Chamber the proceedings were, if anything, still more tumultuous. The peers on both sides were in a state of the wildest excitement. They went so far as to shake their fists at each other. Lord Chancellor Brougham was hooted by the Tories as he endeavoured to defend the action of the Government in advising the King to dissolve Parliament. He states in his _Memoirs_ that he purposely continued speaking until the roar of the guns told him that his Majesty had arrived. “Black Rod” stood at his elbow, crying: “My Lord Chancellor, you must come; the King is waiting for you; come along; you must come”; and he had to be almost dragged out of the House by that impatient functionary. In the robing-room his Majesty asked the Lord Chancellor what all the noise in the House was about. Brougham coolly replied: “It is the Lords debating, sir.” _Hansard_ is not strong in descriptive, but this is how that record of parliamentary proceedings describes the manner in which the Lords debated after the Lord Chancellor had left the Chamber: “It is impossible to describe the confusion, the noise, the impetuosity, that prevailed from one end of the House to the other. The peeresses seemed alarmed. Some of the peers were, as it appeared in the confusion, almost scuffling, and as if shaking their hands at each other in anger.” However, when the King entered the tumult ceased. “George Villiers said that in his life he never saw such a scene,” writes Greville; “and as he looked at the King upon the Throne, with the Crown loose upon his head, and the tall, grim figure of Lord Grey close beside him, with the Sword of State in his hand, it was as if the King had got his executioner by his side, and the whole picture looked strikingly typical of his and our future destinies.” The Commons summoned by “Black Rod” were now at the Bar, the Speech from the Throne proroguing Parliament “with a view,” it was stated in this instance, “to its immediate dissolution,” was read by the King, and in ten minutes all was over. Parliament was dissolved by proclamation on the following day. It may be noted that Villiers’ lugubrious imaginings have not been fulfilled. On the contrary, the Reform Bill, carried triumphantly after the General Election, added strength and depth to the foundations of the Constitution.

3

It is now the settled custom for Parliament to be prorogued, not by the Sovereign in person, but by Commission. The Lords Commissioners--five in number, of which the Lord Chancellor always is one--sit in their scarlet robes and ermine on a bench in front of the great Throne, as we have seen them when the Royal Assent was given to Bills. “Black Rod” is forthwith directed to summon the House of Commons, and within five minutes the Speaker appears at the Bar, accompanied by some of the Ministers and a crowd of unofficial Members. The Lord Chancellor then announces that the King, not thinking fit to be present, had appointed a Royal Commission to do all other necessary things in his Majesty’s name. But it is customary to make no reference whatever to the impending death of the Parliament. The Royal Commission is then

declaimed at the Table by the Reading Clerk. The King’s Speech is read by the Lord Chancellor. It contains congratulations to “My Lords and Gentlemen” on the valuable additions to the Statute Book which their labours during the session have produced. There is also a separate paragraph specially expressing thanks for the supplies granted by “the faithful Commons.” Thus the proceedings at prorogation, before dissolution in the House of Lords, are brief and simple. When they are over the Speaker and the Commons retire from the Bar. The Lords Commissioners shake hands with the Lord Chancellor, and withdraw to their robing-rooms behind the Throne. The Lord Chancellor, gathering up his long robes, and attended by the Purse-bearer and the Mace-bearer, walks down the floor to the Bar, and also disappears. So far as the House of Lords is concerned, the ceremony is simply at an end, and that is all. For the peers the General Election has no terrors. They are untroubled by any apprehension that they may never again return to the scarlet benches of the Gilded Chamber. Their position as Members of Parliament is a permanency unaffected by dissolution and the fluctuations of political opinion. It is true that only by virtue of fresh writs of summons issued to them by the Crown can they again take their seats after a dissolution. But it has been held by a series of decisions of the House of Lords itself that under the existing law or custom of the Constitution these fresh writs of summons cannot be denied by the Crown. A peerage cannot be forfeited or affected except by Act of Parliament. A peer cannot be expelled from the House of Lords for any offence, however great. For only one thing is he disqualified from sitting and voting, and that is bankruptcy, in accordance with a statute passed in 1871. Yet during the World War the Crown exercised the discretion of not issuing writs of summons to the Duke of Cumberland and the Duke of Albany, as they had joined the King’s enemies--the Germans.

4

With the Commons, however, it is entirely different. Few of them have any certainty of coming back from the country. “It is so much easier to go to the country than to return from it,” said Sir Wilfrid Lawson, from bitter personal experience. It is not unlikely, therefore, that thoughts tinged with melancholy prevail in the band of Members which, faithful to the end, follows the Speaker from the House of Lords back to the House of Commons for the last time for that Parliament. For how many of them will it be the last time they shall be permitted to cross the Bar of the House of Commons and take their places on the green benches?

The Speaker walks up the floor of the Chamber, bowing to the empty Chair. Then, standing at the head of the Table, he tells the Commons that he had been to the House of Lords, and reads the King’s Speech, with the contents of which they are already acquainted. Not a word is officially said, as a rule, about the forthcoming dissolution. But the shadow of it lowers forbiddingly over all, and fills their minds with gloomy thoughts. And so the Speaker, lingering awhile by the Chair, shakes hands with the Members that surround him, and wishes them good fortune in the approaching battle in the constituencies. Then he disappears from the Chamber. The Serjeant-at-Arms, with the Mace, is also gone. Political friend and foe among the last little company present clasp hands in a last farewell and depart. Only the Clerks, in

wig and gown, linger at the Table to collect their papers. All is over. The great debating Chamber is silent and empty. The Parliament is already but a phantom and a memory.

“Who goes home?” shouts the doorkeeper in the lobby. “Who goes home?” echoes the policeman in all the corridors of the Palace of Westminster. It is just as if it were but the end of an ordinary nightly sitting of the House of Commons. But on this occasion the ancient familiar cry falls incongruously, if not unfeelingly, upon the ear. Who goes home, indeed? In the circumstances, it is not home they go--they to whom the question is addressed--but to the North, the South, the East and the West, to renew the wooing of the electors, to tread again for weeks that steep and thorny way which leads to a seat in the House of Commons!

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Printed in Great Britain by UNWIN BROTHERS, LIMITED WOKING AND LONDON

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